

FREE MIXING

ITS LEVELS, LIMITS AND GUIDELINES

Sheikh Dr. Ibrāhīm bin Muhammad Al-Ubaykī



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Guidelines

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A Gift to the Ummah

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Publisher's Introduction

In the Name of Allah, the Most Gracious, the Most Merciful

All praise is due to Allah and to Allah alone. We praise Him, seek His assistance, and ask for His forgiveness. We seek refuge in Allah from the evil of our souls and from the wickedness of our deeds. Whomsoever Allah guides, none can misguide, and whomsoever Allah leaves to stray, none can guide. I bear witness that none has the right to be worshipped except Allah, and I bear witness that Muhammad ﷺ is His servant and the seal of the Prophets and Messengers.

To proceed:

The study of Islam is an obligation upon every Muslim. It is only through sound knowledge that a believer acquires clarity, conviction, and steadfastness—enabling him to worship Allah with understanding, sincerity, and confidence, upon the guidance brought by the final Messenger, Muhammad ﷺ. True knowledge illuminates the heart, protects the faith, and provides the believer with the means to navigate the trials of life with wisdom.

This book—now presented in English—addresses a vital issue that has far-reaching implications for Muslim societies: the Islamic ruling on free mixing between men and women. The original Arabic work, authored with clarity, scholarly precision, and fidelity to the sources, examines the evidences from the Qur'an, the Sunnah, and the statements of the early generations regarding the boundaries of lawful interaction between the sexes. It highlights the wisdom of these divine injunctions and their role in safeguarding faith, morality, and the well-being of the community.

By making this important discussion accessible in English, the translation seeks to benefit a wider audience—particularly Muslims striving to preserve their values in a world where social norms increasingly encourage permissiveness and the erosion of modesty. It is hoped that this work will serve as a reminder of the timeless guidance of Islam and a source of strength for those who seek to live by it with conviction.

May Allah make this effort a means of benefit, grant sincerity to all who contributed to it, and reward those who act upon its guidance with steadfastness and success in this life and the Hereafter.

Work Undertaken in This Translation

To ensure that this translation is both accessible and beneficial to the reader, we have undertaken the following measures:

- **Translation of the Text:** The entire work has been translated into English while maintaining the original meaning and depth of expression.
- **Qur'anic Verses:** All Qur'anic verses have been presented in their original Arabic form, followed by their English translation. To highlight their distinction, they are bolded, italicised, and centred in the text.
- **Prophetic Narrations:** The statements attributed to the Prophet Muhammad ﷺ have been translated into English, italicised and centred for clarity and emphasis.
- **Footnotes:** All Qur'anic verse references have been added by the publisher to enhance clarity and assist readers in locating the original sources.

We ask Allah to bless this effort in its compilation, translation, and study, and to make it a lasting source of guidance and reward for all who engage with it, in this life and the next.

An-Nakhlah Publications

23rd August, 2025 / 29th Safar, 1447 AH

Authors Introduction

All praise is due to Allah. We praise Him, seek His help, and ask for His forgiveness. We seek refuge in Allah from the evils within ourselves and the consequences of our misdeeds. Whoever Allah guides, none can lead astray, and whomever He leaves astray, none can guide. I bear witness that there is no deity worthy of worship except Allah alone, without any partners, and I bear witness that Muhammad is His servant and Messenger, His chosen one and close friend. May Allah's peace and blessings be upon him, his family, and his companions, who conveyed the message, fulfilled the trust, and sincerely advised the Ummah until the certainty (of death) came to him.

To proceed, this is a study on the issue of gender mixing (ikhtilat), aiming to detail its levels, clarify its boundaries, and establish its regulations. This is because "mixing" is one of those general terms that encompass a variety of different scenarios. This generality has led to confusion in applying its proofs appropriately and in aligning the rulings of scholars with their proper contexts. As a result, some people take a text addressing the lowest level of mixing and use it to justify the highest level, or they apply a text meant for situations of necessity to situations of ease.

By categorizing free-mixing into levels, each proof can be placed in its proper context, and each scholarly text can be applied to its correct position. This approach resolves many of the issues and clarifies numerous ambiguities. By detailing the general issue of mixing, it becomes easier for the reader to apply emerging issues to the appropriate principles established in the Quran and Sunnah, or to derive rulings based on the principles of scholars, ensuring that each issue is judged according to its corresponding level.

Additionally, by detailing these levels, the degrees of prohibition for each scenario become clear, allowing for the prioritization of lighter restrictions over stricter ones when necessary. These objectives, among others, have motivated the writing of this study.

May Allah make it beneficial for its author and its readers, and may He reward those who correct it or point out any errors within it. This is my hope, and Allah knows best. May Allah's peace and blessings be upon our Prophet Muhammad.

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Chapter One: The Levels of Mixing (Ikhtilat)

An examination of the Islamic texts and the books authored by different scholars on the issue of mixing between men and women reveals that such mixing occurs at five levels, each more severe than the previous one. These levels are as follows:

- 1. First Level: Mixing in public spaces (e.g., streets).**
- 2. Second Level: Brief or casual interactions.**
- 3. Third Level: Social gatherings.**
- 4. Fourth Level: Social gatherings combined with interactions.**
- 5. Fifth Level: Companionship (prolonged association).**

The purpose of studying these levels is to clarify the ruling (hukm) for each one, independently of the motives behind engaging in them or the necessity for doing so.

Since some forms of mixing are widespread and often necessary due to societal needs, a dedicated discussion is included for each level to explain how necessity (hajah) may mitigate its ruling.

The differentiation and categorization of these levels of mixing are not an innovation but rather a well-established concept among scholars. However, they do not typically delve into detailed classifications or compile evidence for each level separately, as the needs of each era vary.

The distinction of these levels by scholars can be observed in their discussions, where they mention some levels together in a single context. For example:

- Ibn Taymiyyah mentioned the first, third, and fourth levels in one context¹.
- Ibn Al-Qayyim mentioned the first, second, and fourth levels²
- Ibn Battal and Ibn Hajar mentioned the first and third levels³
- Abu Al-Fadl Al-Walidī mentioned the third and fourth levels⁴

¹ Ibn Taymiyyah, Al-Istiqamah (1/360), Jami' Al-Masa'il (5/220).

² Ibn Al-Qayyim, Al-Turuq Al-Hukmiyyah (2/721, 722, 724).

³ Ibn Battal and Ibn Hajar, Sharh Sahih Al-Bukhari (4/299).

⁴ Abu Al-Fadl Al-Walidī, Al-Mi'yar Al-Mu'rib (11/228, 229).

The First Level: Mixing in Public Spaces (Streets)

This level refers to women mixing with men in public spaces without a valid need, such as a woman going to the market and mingling with men in its pathways without any intention to buy or sell.

The discussion of this level is divided into three sections:

Section One: Evidence for Avoiding Mixing in Public Spaces.

The evidence for this level is divided into two categories:

- 1. Evidence for preventing encounters in public spaces from occurring in the first place.**
- 2. Evidence for requiring differentiation between men and women in public spaces.¹**

If it is possible to prevent encounters altogether, that is the desired outcome. Otherwise, the focus shifts to separation and differentiation.

Ibn Al-Imad Al-Aqfahsi referred to this gradual approach, stating: "*It is recommended for women to come and go without using the same paths as men. If they must use the same paths, they should either go ahead or stay behind and not mix with men.*"²

He first emphasised avoiding encounters and then highlighted the need for differentiation in public spaces.

This approach can also be understood from the statement of Ibn Al-Qayyim: "*The Commander of the Faithful, Umar ibn Al-Khattab (may Allah*

¹ The intention here is to clarify the requirements of the Islamic texts and to explain the consistent general principle of seeking isolation. As for the feasibility of implementing this in reality, that is a separate matter and does not undermine this purpose.

² Abn Al-Imad, Tashil Al-Maqasid Li-Zuwar Al-Masajid, p. 588.

*be pleased with him), prohibited women from walking in the same paths as men and mixing with them in public spaces."*¹

This gradual approach aligns with the principle of isolation and avoiding unnecessary exposure, which will be detailed in Chapter Two.

Below is an explanation of the evidence for these two categories:

Part One: Evidence for Preventing Encounters in Public Spaces from Occurring in the First Place.

1. Umm Salamah (may Allah be pleased with her) reported:

*"The Messenger of Allah ﷺ would conclude the prayer with the Salam, and the women would depart and enter their homes before the Messenger of Allah ﷺ would leave."*²

This was recorded by Al-Bukhari in a suspended (mu'allaq) narration, and the wording in Al-Shafi'i's Musnad states:

*"So that the women could distance themselves."*³

Al-Bukhari titled a chapter for this: *"Chapter on the Imam Remaining in His Prayer Place After the Salam."*⁴

It is well-established that the Sunnah for women is to leave immediately after the prayer, based on this hadith of Umm Salamah.⁵ As for men, they do not leave until the Imam turns around, because the

¹ Ibn Al-Qayyim, Al-Turuq Al-Hukmiyyah, 2/722.

² Sahih Al-Bukhari (850)

³ Musnad Al-Shafi'i (1/290), and see Al-Tamhid (23/395).

⁴ Sahih Al-Bukhari (1/169).

⁵ In another wording: *"When the Messenger of Allah ﷺ would conclude the prayer with the Salam, the women would stand up as soon as he finished his Salam, and he would remain for a short while before standing up."* Sahih Al-Bukhari (837).

Prophet ﷺ prohibited them from preceding him in leaving and exiting. This is based on the hadith of Anas (may Allah be pleased with him):

*"O people, I am your Imam, so do not precede me in bowing, prostrating, standing, or leaving."*¹

If the Imam delayed in leaving, the women would be able to depart before the men could catch up with them. Many scholars have mentioned this Sunnah in relation to this hadith, including Imam Al-Zuhri (the narrator of this hadith), Al-Shafi'i, Ibn Battal, Al-Nawawi, Ibn Qudamah, Ibn Hajar, and others. Ibn Hajar's statement is: *"This hadith of Umm Salamah indicates the dislike of men mixing with women in public spaces."*²

2. Abu Sa'id (may Allah be pleased with him) reported that the Prophet ﷺ said:

*"Avoid sitting in the streets. They said: O Messenger of Allah, we have no choice but to sit in these gatherings to talk. The Prophet ﷺ said: If you insist on sitting there, then give the street its rights. They asked: What are its rights? He said: Lowering your gaze, refraining from causing harm, returning greetings, enjoining good, and forbidding evil."*³

¹ Sahih Muslim (426).

² Sahih Al-Bukhari (849), Al-Umm by Al-Shafi'i (2/289), Mukhtasar Al-Muzani (8/108), Sharh Ibn Battal for Sahih Al-Bukhari (2/461), Al-Mughni by Ibn Qudamah (2/336), Fath Al-Bari by Ibn Rajab (5/270), Fath Al-Bari by Ibn Hajar (2/336), Tashil Al-Maqasid li-Zuwar Al-Masajid by Ibn Al-Imad (551). In Al-Iqna' and its explanation, it is stated: *"If there are men and women praying behind the Imam, it is recommended for the women to stand immediately after his Salam and depart, because they are awrah (to be covered), and thus they should not mix with men."* Kashaf Al-Qina' (1/364). The Hanafis held the view that it is recommended for women to delay going to the mosque for obligatory prayers until the men have finished, stating: *"Women should wait for the men to finish the congregational prayer, then pray afterward."* Al-Binayah Sharh Al-Hidayah (2/38), Al-Lubab fi Sharh Al-Kitab (p. 30), Hashiyat Ibn Abidin (1/504).

³ Recorded by Al-Bukhari (2465) and Muslim (2121)

3. Abu Talhah (may Allah be pleased with him) said: We were sitting in the courtyards talking when the Messenger of Allah ﷺ came and stood before us, saying:

*"What is the matter with you and sitting in the pathways? Avoid sitting in the pathways."*¹

The prohibition against sitting in the streets is a precaution to prevent encounters between men and women in public spaces by keeping away those who have no need to be there. Although the primary address is to women, if a woman needs to use the street while a man does not, it is more appropriate to keep the man away. This is reflected in the statement of Ibn Hajar: *"Women were not prohibited from passing through the streets for their needs... A person is commanded to avoid exposing themselves to temptation, so the Lawgiver encouraged them to avoid sitting in such places to eliminate the cause of temptation."*²

The Prophet ﷺ indicated the reason for this prohibition, which is to avoid temptation and sin that may arise from women or others passing by. One might glance at them or think about them, as Al-Nawawi mentioned.³

Al-Bukhari included this hadith of Abu Sa'id in a chapter where he mentioned evidence for the prohibition of looking at non-mahram women.⁴

¹ Sahih Muslim (2161). - "الأُفْنِيَّة" (courtyards) is the plural of "فناء" (courtyard), which refers to the open area connected to a house. See Jamharat Al-Lughah (2/1082), Al-Mu'jam Al-Wasit (2/704), and Al-Zahir fi Gharib Alfaz Al-Shafi'i (p. 162). - "الصُّعَدَات" (pathways) is the plural of "صُغْدَة," which refers to the area in front of a house's door where people pass. See Al-Nihayah (3/29) and Fath Al-Bari (5/113). Al-Bukhari titled a chapter: "Chapter on the Courtyards of Houses and Sitting in Them, and Sitting in the Pathways." (3/132).

² Fath Al-Bari (11/16).

³ Sharh Sahih Muslim (14/142), and similarly in Ikmal Al-Mu'lim (7/44).

⁴ Sahih Al-Bukhari (8/51, 6229), in the Book of Asking Permission, without a specific chapter title, only stating: "Chapter."

Abu Abdullah ibn Abi Safrah said: *"This is to block the means (sadd al-dhara'i); because sitting in the streets is a means that leads to indulging in looking."*¹

Scholars have clarified that this ruling is not limited to streets but includes anything similar where sitting might lead to looking. Al-Tabari said: *"The markets, which combine the elements that the Prophet ﷺ warned against for those sitting in the streets... are more deserving and more worthy of being avoided than courtyards and streets."*²

Ibn Hajar said: *"What is similar in meaning to courtyards and streets is also included, such as sitting in shops or at windows overlooking passersby."*³

Ibn Al-Hajj said: *"One who sits in a shop is like one sitting in the street, so he must lower his gaze as much as possible."*⁴

It is clear that if men are prohibited from sitting in the streets without a need, then it is even more emphasised for women to avoid doing so without a need.

This approach—avoiding encounters in the streets—has been acknowledged by scholars. For example, Al-Ghazali, in his discussion of women's etiquette, said: *"She should go out discreetly, seeking secluded places rather than streets and markets."*⁵

Ibn Al-Imad, as previously mentioned, said: *"It is recommended for women to come and go without using the same paths as men."*⁶

¹ Sharh Sahih Al-Bukhari by Ibn Battal (6/589).

² Sharh Sahih Al-Bukhari by Ibn Battal (6/590).

³ Fath Al-Bari (5/140).

⁴ Al-Madkhal (4/32).

⁵ Ihya Ulum Al-Din (2/59).

⁶ Tashil Al-Maqasid li-Zuwar Al-Masajid by Ibn Al-Imad (p. 588).

For this reason, scholars prohibited men from entering women's markets. Ibn Al-Arabi said: *"I heard the elders of knowledge say: 'Men should not enter except the markets of books and weapons.'"*

Al-Qurtubi commented on this, saying: *"What the elders of knowledge mentioned is excellent, for those markets are free from looking at women and mixing with them, as books and weapons are not related to women's needs. As for other markets, they are filled with women."*¹

This was similarly mentioned by Ibn Abd Al-Barr, Ibn Al-Qayyim, and Al-Qurtubi.² However, if there is a need, there is no dislike, as mentioned by Ibn Al-Arabi.³ This is clear, such as in markets that are necessary for both men and women.

Part Two: Evidence for Requiring Differentiation Between Women and Men in Public Spaces.

1. Abu Usayd (may Allah be pleased with him) reported that he heard the Messenger of Allah ﷺ say — while leaving the mosque, as men and women mixed in the street —:

*"Move to the back, for it is not for you to walk in the middle of the road. Stick to the sides of the road." As a result, women would walk so close to the wall that their clothes would cling to it due to how closely they walked.*⁴

¹ Ahkam Al-Quran by Ibn Al-Arabi (3/434), Tafsir Al-Qurtubi (13/17).

² Al-Tamhid by Ibn Abd Al-Barr (9/124), Al-Turuq Al-Hukmiyyah by Ibn Al-Qayyim (2/721), Adab Al-Hisbah wa Al-Muhtasib (p. 28).

³ Ahkam Al-Quran by Ibn Al-Arabi (3/434)

⁴ Recorded by Abu Dawud (5272). This hadith is not authentically connected, but Abu Dawud used it to support its meaning, as was his habit of citing weak narrations to illustrate a point. The hadith is also narrated by Abu Hurairah in Ibn Hibban (5601), but its chain includes Muslim ibn Khalid, who is weak. Shuraik ibn Abi Namr narrated it uniquely from Abu Salamah.

Abu Dawud titled a chapter for this: *"Chapter on Women Walking with Men in the Street,"* i.e., *what is its ruling? Scholars have consistently cited this hadith as evidence for its meaning.*¹

2. Ibn Jurayj reported that Ata said—when Ibn Hisham prevented women from performing Tawaf with men—: *"How can he prevent them when the wives of the Prophet ﷺ performed Tawaf with men?"* Ibn Jurayj asked: *"Was this after the Hijab (veiling) or before?"* Ata replied: *"Yes, by my life, I witnessed it after the Hijab."* I asked: *"How did they mix with men?"* He said: *"They did not mix. Aisha (may Allah be pleased with her) would perform Tawaf while separated from the men, not mixing with them."*³

3. Umm Salamah (may Allah be pleased with her) reported that the Prophet ﷺ said to her:

¹ Abu Ubayd said: *"They should walk on the sides."* Shu'ab Al-Iman (10/239).

Ibn Al-Hajj said regarding what is obligatory for a scholar: *"He should teach women the Sunnah of walking in the street, which is that the Sunnah dictates they walk close to the walls."* Al-Madkhal (1/244). However, I did not find the hadith he mentioned.

Al-Sarkhasi Al-Shafi'i said: *"It is recommended for women in the street not to mix with people and to walk on the sides, keeping a distance from them."* Al-Majmu' (7/361). Similar statements were made by Ibn Al-Imad Al-Aqfahsi and Al-Munawi. Tashil Al-Maqasid li-Zuwar Al-Masajid by Ibn Al-Imad (p. 581), Fayd Al-Qadir (6/347).

Ibn Kathir said: *"Women are prohibited from walking in the middle of the road because it involves displaying themselves."* Tafsir Al-Quran Al-Azim (6/50).

As previously mentioned, Ibn Al-Qayyim said: *"The Commander of the Faithful, Umar ibn Al-Khattab (may Allah be pleased with him), prohibited women from walking in the paths of men and mixing with them in the street."* Al-Turuq Al-Hukmiyyah (2/722).

Scholars even considered the sides of the road as the right of women and the middle as the right of men, applying the principle of liability accordingly. Ibn Abi Asim (d. 287) said in Kitab Al-Diyat: *"If someone places something in the middle of the road and a man or animal is injured by it, they are liable because the middle of the road belongs to men. Women are prohibited from the middle, so if a woman is injured in a place she was warned against, it is not clear that the person is liable based on the apparent ruling."* Al-Diyat by Ibn Abi Asim (pp. 58–59), Tahdhib Al-Lughah (2/163).

² That is, was their Tawaf with men after the revelation of the Hijab verse or before?

³ Meaning, secluded. Sharh Usul I'tiqad Ahl Al-Sunnah wa Al-Jama'ah (7/1422), Akhbar Makkah by Al-Fakihi (1/212), Fath Al-Bari (3/481).

*"Perform Tawaf behind the people while riding." She said: "So I performed Tawaf while the Messenger of Allah ﷺ was leading the people in prayer beside the Ka'bah."*¹

Al-Bukhari titled a chapter for these two narrations: *"Chapter on Women Performing Tawaf with Men."*

Ibn Hajar said: *"This refers to whether women should mix with men, perform Tawaf with them separately without mixing, or perform Tawaf alone."*²

Al-Bukhari chose the second option—that women should perform Tawaf with men but separately without mixing—because this is the implication of the narrations he included in this chapter.³

Al-Baghawi titled a chapter for these narrations: *"Chapter on Women Performing Tawaf Behind Men."*⁴

Al-Nasa'i titled a chapter for the second narration: *"Chapter on How Women Perform Tawaf with Men."*⁵

Al-Muhallab said: *"This hadith of Umm Salamah indicates that it is the Sunnah for women to perform Tawaf behind men and to conceal themselves from them."*⁶

Al-Sindi said: *"This indicates that avoiding women performing Tawaf with men, whenever possible, is better. This is why the Prophet ﷺ allowed her to perform Tawaf during the time of prayer, when the men were occupied with prayer, not during the time of Tawaf."*⁷

¹ Recorded by Al-Bukhari (1618).

² Recorded by Al-Bukhari (1552) and Muslim (1276).

³ Fath Al-Bari (3/480), and similarly in Umdat Al-Qari (9/260).

⁴ Sharh Al-Sunnah (7/119).

⁵ Sunan Al-Nasa'i Al-Kubra (4/132)

⁶ Sharh Sahih Al-Bukhari by Ibn Battal (4/298). Al-Ayni said: *"Because it is the Sunnah for women to keep a distance from men during Tawaf."* Umdat Al-Qari (9/262).

⁷ Hashiyat Al-Sindi on Sunan Al-Nasa'i (5/223).

In the chapter titles of Al-Bukhari, Al-Nasa'i, and Al-Baghawi, there is an indication that this ruling applies to all women and is not limited to the Mothers of the Believers. Further clarification on this will follow.

4. Ibrahim Al-Nakha'i said: "*Umar (may Allah be pleased with him) prohibited men from performing Tawaf with women¹ and when he saw a man with them, he struck him with a whip.*"²

The Malikis considered it disliked (makruh) for men to perform Tawaf while mixing with women.³ Out of respect for this dislike, and because Tawaf is rarely free of men, scholars have specified that the recommendation to stay close to the Ka'bah applies only to men.⁴

The practice of separating women from men during Tawaf continued until later times, as reported by Ibn Battuta in his travels. He passed away at the end of the 8th century (779 AH).⁵

Among the situations scholars have included in this ruling is the dislike of women walking with men during funeral processions.

Al-Tahawi said—regarding Ibrahim Al-Nakha'i's statement, "*They disliked walking in front of the funeral procession*"—: "*They disliked this, but*

¹ That is, in the area designated for women in the Tawaf area.

² Akhbar Makkah by Al-Fakihi (1/252). The narrations from Al-Nakha'i are authentic, as stated by Yahya ibn Ma'in. Ahmad ibn Hanbal said: "*There is no harm in them.*" (Tarikh Yahya ibn Ma'in, narration of Al-Duri, 3/206; Sharh Ilal Al-Tirmidhi, p. 195). However, this narration comes through Zaidah ibn Qudamah, from Mughirah ibn Miqsam, from Ibrahim. Its narrators are reliable, except that Mughirah was accused of tadlis (concealing defects in the chain) in narrations from Ibrahim.

³ Kifayat Al-Talib (1/668), Al-Fawakih Al-Dawani (1/417)

⁴ See: Al-Hawi Al-Kabir (4/214), Al-Majmu' (8/38), Al-Mughni (3/341), Hashiyat Al-Shirwani on Al-Tuhfah (4/101), Hashiyat Al-Adawi on Kifayat Al-Talib Al-Rabbani (1/533), Kashaf Al-Qina' (2/480).

⁵ Rihlat Ibn Battuta (1/375).

*they would do it out of necessity¹; because it is better than women mixing with men if they walk close to the funeral procession."*²

Similar statements were made by Ibn Abidin, Ibn Hajar, Al-Ayni, and Zakariyya Al-Ansari.³

Section Two: The Ruling on This Level and the Impact of Necessity on It.

The Shariah's caution against mixing in public spaces falls under the category of a prohibitory recommendation (nahy tanzih). This is because the prohibition against mixing, in principle, is due to the potential for temptation (fitnah). If the likelihood of temptation increases, the prohibition becomes stronger. However, the likelihood of temptation in mixing in public spaces is not strong, unless there are additional factors that intensify it, as will be discussed later.

Among those who pointed to the ruling of this level is Al-Munawi (may Allah have mercy on him) when commenting on the hadith, "*If you encounter two women, do not pass between them.*" He said: "*The prohibition is a recommendation (tanzih), unless it is highly likely to lead to temptation, in which case it becomes a prohibition (tahrim).*"⁴

If there is a valid need for this type of mixing, the dislike (karahah) is lifted, as established by the principles of Islamic jurisprudence.

¹ The necessity is the presence of women behind the funeral procession.

² Sharh Ma'ani Al-Athar (1/485).

³ Fath Al-Bari (2/392), Umdat Al-Qari (8/111), Sharh Al-Bahjah Al-Wardiyyah (6/27), Hashiyat Ibn Abidin (2/232). As for the Hanbalis, they prohibit women from following funeral processions altogether, based on the hadith.

⁴ Fayd Al-Qadir (1/276). Some scholars held that the original ruling is prohibition. Ibn Hajar said: "*The implication of Al-Nawawi's statement in his analysis and Al-Zarkashi's in Ahkam Al-Masajid is that if women's going out leads to mixing with men in the mosque or on the road, it is prohibited for them to go out.*" This was quoted by Al-Qari in Mirqat Al-Mafatih (3/836). However, it seems that the ruling of prohibition is unlikely, and Allah knows best.

Section Three: Contemporary Forms of Mixing in Public Spaces:

1. Mixing of men and women in walking areas. If there are many men in such areas, women must be strictly prohibited from entering them, as will be discussed in the chapter on guidelines.¹

2. A woman standing in a space designated for men without a valid need, such as standing near the gates of schools or colleges for male students. This is similar to or even more severe than the previous scenario.

Similarly, men standing in spaces designated for women falls under the third scenario (prohibition of men sitting in women's spaces).

3. Anything that allows for the separation of entrances and the designation of separate doors for men and women is included in the prohibition of this level. This applies to facilities and offices that are frequented by both men and women for their needs, as was done by Umar (may Allah be pleased with him) when he designated separate entrances for the mosque.

4. Mixing in crowded gatherings. The discussion of this scenario has two aspects:

- The first is regarding their establishment.

Establishing mixed gatherings that are crowded without a valid need—such as what occurs in so-called seasonal entertainment festivals—is prohibited according to the principles of the scholars, for several reasons:

¹ See the third guideline in Section Two.

a) The organiser is directly opposing the objectives of the Shariah. The Shariah commands women to remain in their homes and prohibits men from sitting in public spaces to prevent temptation. However, the organiser is calling women to leave their homes and gathering them with men in one place. This is a deliberate act of gathering what the Shariah has sought to separate. It is well-established that organising and legitimising prohibitions is more severe than merely committing them, as it implies a lack of concern for the prohibitions or a lack of belief in their rulings.

b) Scholars have explicitly emphasised strictness regarding women going out to places of worship during times when they are lax in covering themselves, concealing their adornments, and when men are lax in lowering their gazes. Therefore, gathering them with men in places of entertainment is even more deserving of strictness.

c) It is highly likely that such gatherings are not free from prohibited looking and other violations, especially since they are rarely free from the presence of immoral people and those weak in faith. Every sin that occurs in these gatherings is recorded in the record of the organiser and those who assist in organising them, because they are the cause of it.

The principle is: "One who assists in or facilitates a sin is a partner to the one who commits it."¹

Anyone who examines the statements of the scholars will find that they prohibited similar mixed gatherings, even if they were for acts of worship, such as women gathering with men at Mount Arafat², during

¹ See: Kashf Al-Asrar (1/188), Bada'i Al-Sana'i (3/188), Al-Mustadrak on the Collected Fatwas of Shaykh Al-Islam (5/129), Al-Furu' (13/185), Ighathat Al-Lahfan (2/289), Kashaf Al-Qina' (6/167).

² Ibn Jama'ah Al-Shafi'i said: *"It has become common among many ordinary people that one must stand on the Mountain of Mercy, and men and women mix while ascending and descending. This is a mistake, ignorance, and a reprehensible innovation that occurred after the passing of the righteous predecessors."* Mawahib Al-Jalil (3/93). Similar statements were

the prayer of Ragha'ib¹, and during the practice of Ta'rif²—according to those who consider it recommended.

This is unlike parks and recreational areas that are not designated for specific days of the year, as they are not crowded, and each family can have their own space.

- The second is regarding attendance at such gatherings.

The ruling on a woman attending these gatherings becomes clear when explaining the guidelines for strictness and leniency in mixing, as well as the criteria for accountability in such situations. All of this will be discussed in Chapter Two.

To summarise, it can be said: If a woman is properly covered in Islamic attire (jilbab), does not display her adornments, does not sit with men in a gathering or in close proximity—in a way that is considered mixing according to custom—and the place is not crowded with men, then her attendance falls under the ruling of mixing in public spaces. If any of these conditions are not met, her attendance is subject to stricter rulings.

made by Al-Nawawi and Zakariyya Al-Ansari, and their texts will be mentioned in Section Two of the Third Level.

¹ Ibn Al-Hajj said: *"Among what Muslims must avoid, and what makes one sinful if they do it, attend it, or approve of it, is the gathering of men and women together for the prayer of Ragha'ib."* Al-Madkhal (4/274–275).

² This refers to the gathering for supplication for non-pilgrims on the evening of Arafah. Imam Ahmad said about it: *"There is no harm in it if it is free from things like mixing between men and women."* Hashiyat Al-Jamal on Sharh Al-Minhaj (2/458) Al-Tahtawi also said regarding Ta'rif: *"It is no secret what occurs from the unruly behavior of the general public when they gather and mix with women and young people in these times. Preventing harm takes precedence."* Mara'iqi Al-Falah (p. 204). Al-Shirbini described Ta'rif (the gathering on the evening of Arafah) if it involves mixing between men and women as *"one of the most reprehensible innovations,"* and he distinguished it from gatherings where no mixing occurs. Mughni Al-Muhtaj (2/261).

The reason for caution is the likelihood of temptation (fitnah). Therefore, this ruling is not lifted simply because the woman is accompanied by a mahram (male guardian), as the temptation does not disappear with the presence of a mahram, even though the harm is less and the boldness to look is weaker.

Examples of such gatherings include seasonal entertainment festivals that are crowded with people and seasonal exhibitions. However, if the exhibitions are related to a valid need for women and she attends during times when men are not crowded, the ruling is more lenient.¹

¹ The issue of "mixing in gatherings" has been previously addressed in a separate study, where it was discussed in detail. Therefore, it suffices here without further elaboration.

The Second Level: Brief Interactions

Brief interactions refer to a man stopping briefly with a woman for a transaction, a casual conversation, such as buying or selling, requesting something, or seeking a fatwa. This may occur out of necessity or without necessity, and each has its ruling. This shows that this level is higher than "mixing in public spaces," as there is no stopping or talking in the latter.

This level is lower than the subsequent levels, which involve sitting together or prolonged conversation.¹

The discussion of this level is divided into three sections:

Section One: Evidence for Avoiding Brief Interactions.

The primary evidence for avoiding brief interactions is the verse of the Hijab, where Allah says:

وَإِذَا سَأَلْتُمُوهُنَّ مَتَاعًا فَاسْأَلُوهُنَّ مِنْ وَرَاءِ حِجَابٍ ذَلِكُمْ أَطْهَرُ لِقُلُوبِكُمْ وَقُلُوبِهِنَّ

*{And when you ask [his wives] for something, ask them from behind a screen. That is purer for your hearts and their hearts.}*²

The Hijab refers to anything that conceals a person, such as a wall, a curtain, or similar, as will be detailed later.³

¹ Just as this difference in levels of interaction affects the ruling on mixing between genders, it also affects the ruling on mixing with non-Muslims. Ibn Atiyyah said: "Whoever frequently mixes with these two groups—Jews and Christians—has a share of the disdain mentioned in Allah's statement: {فَإِنَّهُ مِنْهُمْ} ('For indeed, he is of them'). As for dealing with Jews and Christians—such as in buying and selling—without mixing or close interaction, this does not fall under the prohibition." Al-Muharrar Al-Wajiz (2/236).

² Surah Al-Ahzaab, verse 53

³ See in the chapter on guidelines: The first guideline in Section One: "The command for Hijab is a prohibition against mixing."

Al-Shawkani said: *"This teaches every believer proper etiquette and warns them against being overconfident in speaking without a barrier to those who are forbidden to them."*¹

Although this verse addresses the mothers of the Believers (the wives of the Prophet), all women are included in this ruling, as mentioned by Imam Al-Tabari, Al-Jassas, Ibn Abd Al-Barr, and Al-Qurtubi.² However, the mothers of the Believers were specifically emphasized and the generality of this command for all women is indicated by the reason mentioned afterward, which is His statement:

ذَٰلِكُمْ أَظْهَرُ لِقُلُوبِكُمْ وَقُلُوبِهِنَّ

*{That is purer for your hearts and their hearts.}*³

The need for purity of hearts is shared by all, and in fact, the need for it is even greater for those other than the Companions.⁴

Al-Hasan said regarding Allah's statement:

وَلَا يَعْصِيَنَّكَ فِي مَعْرُوفٍ

¹ Fath Al-Qadir (4/343).

² Al-Tabari said: *"And when you ask the wives of the Messenger of Allah ﷺ and the believing women who are not your wives for something, ask them from behind a screen."* Tafsir Al-Tabari (19/166). Al-Jassas said: *"Although this ruling was revealed specifically for the Prophet ﷺ and his wives, its meaning is general and applies to others as well, since we are commanded to follow his example and emulate him, except for what Allah has specifically granted him over his Ummah."* Ahkam Al-Quran (3/370). Ibn Abd Al-Barr said: *"Women were commanded to observe Hijab, and then they were commanded, when going out, to draw their outer garments over themselves."* Al-Tamhid (8/236). Al-Qurtubi said: *"This includes all women in meaning and based on the principles of the Shariah, which state that a woman's entire body and voice are awrah (to be covered)."* Al-Jami' li-Ahkam Al-Quran (14/227).

³ Surah Al-Ahzaab, verse 53

⁴ Al-Tamhid (19/156), Al-Jami' li-Ahkam Al-Quran (12/228).

***{And they do not disobey you in what is right.}*¹**

*"Among what the Prophet ﷺ took from women as a covenant was that they should not speak to men unless they have a mahram (male guardian), for a man will continue to speak to a woman until he experiences arousal between his thighs."*² A similar statement was narrated from Qatadah.³

Al-Jassas said regarding Allah's statement:

وَلَا يَضْرِبْنَ بِأَرْجُلِهِنَّ لِيُعْلَمَ مَا يُخْفِينَ مِنْ زِينَتِهِنَّ

***{And let them not stamp their feet to make known what they conceal of their adornment.}*⁴**

*"If women are prohibited from making the sound of their anklets heard, then a young woman's speech—when there is fear of temptation—is even more deserving of being prohibited."*⁵

When Allah mentioned this type of interaction occurring among people of honor and chastity, He did not neglect to describe the woman's modesty, indicating that this was not their usual behavior. In the story of Musa and the two women, He said:

فَجَاءَتْهُ إِحْدَاهُمَا تَمْشِي عَلَى اسْتِحْيَاءٍ

¹ Surah Al-Mumtahanah, verse 12

² Shaykh Muhammad Al-Amin Al-Shanqiti said: *"This is a clear indication of the intent to generalise the ruling, for no one among the Muslims has ever claimed that women other than the wives of the Prophet ﷺ do not need purity of their hearts and the hearts of men from suspicion regarding them. It is established in the principles of jurisprudence that the cause (illah) may generalise its effect (ma'lul)."* Adwa' Al-Bayan (6/242).

³ Tafsir Ibn Abi Hatim (10/3352).

⁴ Surah An-Nur, verse 31

⁵ Tafsir Al-Tabari (22/596), and see: Al-Durr Al-Manthur (8/44). This is an example of interpretation by analogy, as mentioned by Ibn Ashur. Al-Tahrir wa Al-Tanwir (28/167).

*{Then one of the two women came to him walking with shyness.}*¹

Al-Qushayri commented: *"She was shy because she was speaking to someone who was not her mahram."*²

It is mentioned in the hadith that when the woman approached Musa, he lowered his gaze to the ground.³ This was also not the custom of honorable women in the pre-Islamic era. Khadijah (may Allah be pleased with her), despite her wealth, did not personally engage in buying and selling.

Ibn Ishaq said: *"Khadijah was a merchant woman of high status and wealth. She would hire men to trade with her wealth and give them a share of the profit. When she heard about the Messenger of Allah ﷺ—his truthfulness and great trustworthiness—she sent for him and proposed that he travel to Syria with her wealth for trade."*⁴

When Islam came, it affirmed this. Men were commanded to provide for women, and those who neglected their dependents were warned. Thus, Allah made women self-sufficient without the need to go out to earn a living or mix with men in markets, except in cases of necessity when they lacked sufficient provision.

The limited participation of women in trade during the Prophet's era and afterward is indicated by the Prophet's ﷺ statement:

¹ Surah Al-Qasas, verse 25

² Tafsir Al-Qushayri (3/61).

³ Al-Sunan Al-Kubra by Al-Nasa'i (10/177).

⁴ Sirat Ibn Ishaq (p. 81). Hakim ibn Hizam said: *"I used to attend the market of Ukaz, and there I bought Zayd ibn Harithah for my aunt Khadijah bint Khuwaylid."* Al-Tabaqat Al-Kubra, Supplement on the Companions (p. 227). I was directed to these texts by Dr. Amirah Al-Sa'adi's article: *"O women affiliated with the Chamber of Commerce, what would you do if your pure counterpart were Khadijah bint Khuwaylid?"*

*"Before the Hour, there will be greetings reserved for specific people, and trade will become so widespread that a woman will assist her husband in business."*¹

When Hind bint Utbah (may Allah be pleased with her) came to the Prophet ﷺ to complain about her husband Abu Sufyan's stinginess and that he did not provide enough for her and her children, he said to her:

*"Take from his wealth what is reasonable and sufficient for you and your children."*²

He did not advise her to go out and earn a living, nor is it recorded that he advised any other woman to do so.

In Section Three, it will be clarified that the Shariah's leniency in allowing transactions between men and women in buying and selling is based on accommodating people's needs, not because it is the default ruling. Therefore, if the need ceases, this interaction reverts to the original prohibition.

Section Two: Evidence of Scholars' Caution Against Exceeding Necessary Brief Interactions.

This section aims to demonstrate the established prohibition among scholars against this type of mixing—without a valid need. Their statements on avoiding it can be classified into four categories:

Category One: Scholars' Caution Against Men Speaking to Women in Public Spaces.

¹ Recorded by Ahmad (1/419) from the hadith of Ibn Mas'ud (may Allah be pleased with him). When Al-Bukhari titled a chapter "Buying and Selling with Women," he did not find any authentic hadith except the one about Barirah, whom Aisha purchased from her family, so he included only that.

² Recorded by Al-Bukhari (5364) and Muslim (1714).

Ubaydullah ibn Umar reported: "*Umar (may Allah be pleased with him) saw a man speaking to a woman in the street, so he struck them both with a whip.*"¹

Ibn Rushd considered a man walking with a young woman and speaking to her in the street as one of the apparent evils, and he narrated that Imam Malik prohibited it.²

Ibn Al-Qayyim said: "*It is obligatory for the ruler to prevent women from speaking to men in the streets and to prevent men from doing so.*"³ This was also mentioned by Al-Qaffal and other Shafi'i scholars.⁴

This is further supported by their statements restricting such interactions to cases of necessity, which indicates that they are prohibited when there is no need.

For example, Imam Malik was asked about an elderly stranger woman who seeks help from a man, and he fulfills her needs and hands her

¹ Nisab Al-Ihtisab (p. 138). I did not find it with a complete chain, but it is attributed in Kanz Al-Ummal (13/6) to the Musnad of Umar.

² Al-Bayan wa Al-Tahsil (9/360–361). The text reads: "*Malik was asked: 'There are open sins among us, such as a Muslim openly carrying wine or walking with a young woman in the street and speaking to her. When confronted, he says, "She is my servant." Shouldn't such actions be addressed and prohibited?' Malik replied: 'I wish someone would take charge of such matters and prevent them.'*" Ibn Rushd said: "*Carrying wine openly, walking with a young woman and speaking to her, and similar apparent evils.*"

³ Al-Turuq Al-Hukmiyyah (2/722). Ibn Al-Qayyim also listed this among sins that have no prescribed punishment or expiation in Al-Jawab Al-Kafi (p. 113).

⁴ Al-Qaffal, in discussing the issue of a group of trustworthy women traveling for Hajj, said: "*It is a condition that one of them has a mahram (male guardian) to speak to men on their behalf and to assist them if they face an emergency. The second view is that it is not a condition, as when women are numerous, desires are cut off, and they can manage their affairs.*" (Sharh Al-Wajiz, 7/22). Both views agree that the default is for a man not to speak to a non-mahram woman when there is a mahram present, except in cases where the large number of women eliminates temptation. This text is based on their opinion that trustworthy women suffice in place of a mahram for Hajj travel.

what she requires. Is this permissible? He replied: *"There is no harm in it... If people were to abandon her, she would be lost."*¹

This means that if people were to strictly adhere to the principle of avoidance without considering necessity, the needs of vulnerable women would be neglected, and they would find no one to assist them.

Another Example: Ibn Hajar said regarding the hadith of Aisha, in which Umar said to Sawdah when she went out to relieve herself: *"Indeed, we have recognised you, O Sawdah."*² *"This indicates the permissibility of men speaking to women in the streets out of necessity."*³

Category Two: Scholars' Caution in Transactions Between Sellers, Craftsmen, and Women.

Yahya ibn Ma'in said: *"I saw Waki', and he saw a woman at a perfumer's shop while the perfumer was speaking to her. He said to someone: 'Go to that perfumer and separate them.'"*⁴

Ibn Sarraj Al-Andalusi, a Maliki scholar, said: *"Some scholars recommended that a person should not teach their child a craft that involves mixing with women, due to the fear of corruption."*⁵

Al-Mushtuli, a Shafi'i scholar, said: *"Among the people is he who has a craft, like a weaver or a tailor or similar, who practices his craft in his home, and his workers and apprentices work with him. His wife enters upon them in*

¹ Al-Bayan wa Al-Tahsil (4/427). Ibn Rushd added afterward: *"This is permissible if he lowers his gaze from what he is not allowed to look at."*

² Recorded by Al-Bukhari (146) and Muslim (2170).

³ Fath Al-Bari (1/250).

⁴ Tarikh Al-Duri (3/437).

⁵ Fatawa Ibn Sarraj Al-Andalusi (pp. 226–228). I was informed of this text by Shaykh Dr. Abdullah bin Ahmad Al-Rumaikh—may Allah preserve him.

*his presence, speaks to the workers, and converses with them, while they do not object to the prohibition of looking (at her), nor to the speech."*¹

Among the scholars' precautions in such interactions is their emphasis on testing the trustworthiness of those who deal with women, as will be discussed in Section Three.

Category Three: Scholars' Caution in Women Dealing with Men Who Come to Their Doors in Their Husbands' Absence.

Umar (may Allah be pleased with him) was approached by a man who said: *"My brother went out as a soldier and entrusted me with his family. Should I enter their home?" Umar struck him with a whip and said: "Come this close, no closer. Stand at the door and do not enter. Say: 'Do you need anything? Do you want something?'"*²

Although this was a brief interaction, Umar was cautious and did not allow him to enter. He did not differentiate between entering after seeking permission or before, whether the woman was covered or not, or whether the interaction was in private or not.

Ibn al-Hājj – one of the Mālikī jurists – said: *"It is not permissible for a non-maḥram woman to go out except to her husband or to one of her maḥrams. These customs have become entrenched, and because of them many violations occur — to the point that you find a man, when his wife asks him for linen or water or something similar, leaves the price with her so that the linen-seller or water-carrier can pass by her and she may buy it herself."*³

And al-Ghazālī – one of the foremost scholars of the Shāfi'ī School – said: *"If a friend of her husband seeks permission at the door, and the husband*

¹ Silwat Al-Ahzan li Al-Ijtinab 'an Mujalasat Al-Ahdaath wa Al-Niswan (p. 60, Shamela numbering).

² Musannaf Abd Al-Razzaq (7/137) in the chapter "A Man Entering the Home of a Woman Whose Husband Is Absent." Its chain is authentic.

³ al-Madkhal by Ibn al-Hājj, Volume 4, Page 103.

*is not present, she does not ask (who it is) nor does she respond again in speech — out of protective jealousy for herself and her husband."*¹

Category Four: Scholars' Caution Against Greeting, Saying "Yarhamuk Allah" (After Sneezing), Visiting the Sick, and Offering Condolences to Young Women.

Ata said: *"If they are young women, do not greet them."*²

Qatadah said: *"As for an elderly woman, there is no harm in greeting her, but as for a young woman, no."*³

A man asked Al-Hasan: *"Should I greet women?"* He replied: *"Go to your family."*

In another narration from Al-Hasan, reported by Al-Halimi, he said: *"Lower your head and move on."*⁴

Ibn Arabi, commenting on Al-Hasan's statement: *"Men did not used to greet women"*, said: *"This is correct, as it involves mixing and exposure, unless the woman is elderly, for there is no mixing between men and women. This is the intended meaning and conclusion."*⁵

This is the settled position of the four schools of thought. Their imams and leading jurists explicitly stated the dislike of a man and a young woman exchanging greetings⁶, saying "Yarhamuk Allah" (after

¹ Ihya' 'Ulūm al-Dīn by al-Ghazālī, Volume 2, Page 59.

² Shu'ab Al-Iman (6/460).

³ Musnad Ibn Al-Ja'd (p. 466).

⁴ Al-Amali fi Athar Al-Sahabah by Abd Al-Razzaq Al-San'ani (p. 106), Al-Minhaj fi Shu'ab Al-Iman (3/231).

⁵ Ahkam Al-Quran (3/428).

⁶ Greeting (Taslim):

1. Hanafis:

- Rad Al-Muhtar and its commentary state: *"A man should not speak to a non-mahram woman unless she is an elderly woman who sneezes or greets him, in which case he may say 'Yarhamuk Allah' or return her greeting. Otherwise, he should not."* (Hashiyat Ibn Abidin,

6/369). See also: Al-Istidhkar (8/466), Sharh Sahih Al-Bukhari by Ibn Battal (9/28), Al-Ikhtiyar (4/165), Sharh Al-Qastallani (9/144).

- Abu Al-Abbas Al-Husayni Al-Hamwi said: *"It is permissible for him to respond to her in a voice she cannot hear, out of respect for Islamic rights."* (Ghamz Uyun Al-Basair, 3/392).

2. Malikis:

- Yahya Al-Laythi said: *"Malik was asked, 'Should one greet a woman?' He replied: 'As for an elderly woman, I do not dislike it, but as for a young woman, I do not like it.'"* (Al-Muwatta, 2/549). Al-Qarafi explained this by saying: *"Because there is no temptation in speaking to an elderly woman."* (Al-Dhakhira, 13/291). See also: Sharh Al-Sunnah (12/266), Al-Kafi (2/1133), Al-Muqaddimat Al-Mumahhadat (3/440), Ahkam Al-Quran (3/483), Al-Qawanin Al-Fiqhiyyah (p. 292).

- Al-Muhallab said: *"There is a fear that speaking to them may lead to wandering eyes or whispers of Satan, and responding to them may lead to temptation, which is why it is avoided."* (Sharh Sahih Al-Bukhari by Ibn Battal, 9/28).

3. Shafi'is:

- They are the strictest in this matter. Al-Juwayni said: *"It is not permissible for a man to greet a non-mahram woman. If he greets her, she should not respond."* (Nihayat Al-Matlab, 17/421). See also: Rawdat Al-Talibin (10/229–230), Fath Al-Bari (11/34).

- Ibn Hajar Al-Haytami said: *"It is forbidden for a young woman to respond to the greeting of a non-mahram man, and similarly, it is disliked for him to initiate or respond to her greeting. The difference is that her initiating or responding increases his hope, unlike his initiating or responding."* (Tuhfat Al-Muhtaj, 9/223). Al-Ramli said something similar. (Nihayat Al-Muhtaj, 8/52).

4. Hanbalis:

- Imam Ahmad said: *"One may greet an elderly woman, but as for a young woman, she should not speak."* Ishaq ibn Rahawayh said the same. (Masail Al-Imam Ahmad wa Ishaq, 9/4896), Al-Insaf (8/31). See also: Al-Iqna' (1/238), Sharh Al-Iqna' (2/155), Ghida' Al-Albab (1/266).

As for the statement of al-Hasan — when a man asked him, saying: *"O Abā Sa'īd, should I give salām to women?"* — he said: *"Men would not greet women with salām; it was the women who would greet the men."*

This can be reconciled with his earlier statement by interpreting it as referring to women who are not young and toward whom there is no fear of temptation. The reason he distinguished between men initiating salām and women initiating it is perhaps because a man initiating salām is a form of interaction or approach — unlike when a woman initiates it. Ibn al-'Arabī pointed this out, as previously mentioned. Also, salām is the introduction to conversation in contexts like buying, selling, seeking a fatwā, and the like. And usually, it is women who approach men for such needs — not the reverse. However, if a man needed to deal with a woman and went to her and gave salām before speaking, that too would not be prohibited — and Allāh knows best — due to the relevance of the situation.

When al-Bukhārī titled a chapter: *“The Greeting (Salām) of Men to Women, and of Women to Men”* (8/55), he only included — from what meets his conditions — two hadīths:

- The hadīth of Sahl ibn Sa’d regarding their greeting of an old woman,
- And the hadīth of ‘Ā’ishah regarding the Prophet ﷺ conveying to her the salām of Jibrīl.

Ibn Hajar said: *“One may object here, for the angels are free of desires; so the fact that they greeted women does not necessitate that men may do so.”* (Hāshiyat al-Sindī, 4/1266, al-‘Aṣriyyah ed.)

It is as though al-Bukhārī intended to refute those who made the prohibition unrestricted or did not differentiate between young and elderly women.

[] Saying "Yarhamuk Allah" (Tashmit):

1. Hanafis:

- Al-Muhit Al-Burhani states: *"If a woman sneezes, there is no harm in saying 'Yarhamuk Allah' to her unless she is young. If a man sneezes and a woman says 'Yarhamuk Allah' to him, if she is elderly, he may respond, but if she is young, he should respond silently."* (5/330). See also: Hashiyat Ibn Abidin (6/369).

2. Malikis:

- Al-Azhari said: *"What the author mentioned applies to a Muslim man sneezing or a mahram or elderly woman sneezing. As for a young woman whose sneeze and praise of Allah are heard by a non-mahram man, he should not say 'Yarhamuk Allah' to her, just as he should not respond to her greeting."* (Al-Fawakih Al-Dawani, 2/348). See also: Hashiyat Al-Adawi on Kifayat Al-Talib (2/499).

3. Hanbalis:

- Al-Iqna' and its commentary state: *"A man may say 'Yarhamuk Allah' to an elderly woman, as there is no fear of temptation, but he should not say it to a young woman, nor should she say it to him, just as in the case of returning greetings."* (Kashaf Al-Qina', 2/158). See also: Matlab Uli Al-Nuha (1/946).

Offering Condolences (Ta'ziyah):

1. Hanafis:

- Al-Tahtawi said: *"It is recommended to offer condolences to all the relatives of the deceased, except for a young woman."* (Hashiyat Al-Tahtawi on Maraqi Al-Falah, p. 618).

2. Malikis:

- Al-Qarafi said: *"Condolences should be offered to those who understand the message and to elderly women, but not to young women."* (Al-Dhakhira, 2/481).

3. Shafi'is:

- Al-Shafi'i said: *"Condolences should be offered to young and old, and to women, except for young women. I do not like speaking to them except in the presence of a mahram."* (Al-Umm, 1/317). See also: Al-Majmu' (5/305).

sneezing), or offering condolences. This applies even to these few words, which are part of a Sunnah, so other interactions are even more deserving of caution.

A similar ruling applies to a woman visiting a sick man, and vice versa.

As for what is reported about Umm Al-Darda'—one of the knowledgeable female Tabi'in—that she visited a man from the Ansar in the mosque while riding her mount¹, this narration is questionable in its authenticity, as it is reported by Al-Harith ibn Ubaydullah Al-Ansari, who is unknown (majhul).

Even if the narration were authentic, it is apparent that Umm Al-Darda' only did this when she was elderly. This is because her actions were reported when she became known for her knowledge, and her juristic opinions were transmitted, which typically occurs later in life.

Ibn Battal said: *"Umm Al-Darda's visiting the Ansari man is understood to have occurred when she was elderly (mutajalla), so a woman should not visit a man unless she has a mahram or is elderly, ensuring there is no fear of temptation."*²

Her offering condolences while on her mount without dismounting indicates her intention to maintain distance and avoid mixing.

- Al-Ramli said: *"As for a young woman offering condolences to a non-mahram man, it is forbidden, by analogy to her greeting him."* (Nihayat Al-Muhtaj, 3/13). See also: Sharh Sahih Muslim by Al-Nawawi (14/149), Al-Ghurur Al-Bahiyyah (5/131).

4. Hanbalis:

- Al-Muwaffaq ibn Qudamah said: *"A non-mahram man should not offer condolences to young women, out of fear of temptation."* (Al-Mughni, 2/405). See also: Al-Furu' (3/404), Al-Mubdi' (2/286).

¹ Recorded by Al-Bukhari in Al-Adab Al-Mufrad (p. 187) and mentioned in Al-Sahih (7/116) as a suspended narration (mu'allaq).

² Sharh Sahih Al-Bukhari (9/378).

Section Three: The Ruling on This Level and the Impact of Necessity on It:

The verse of the Hijab indicates that a man's interaction with a woman has two conditions:

1. Necessity, as indicated by the phrase:

سَأَلْتُمُوهُنَّ مَتَاعًا

{You ask them for something.}^{1 2}

Everyone understands the difference between the implications of {When you ask them for something} and "When you speak to them" without referring to the reason for the interaction.

2. Speaking from behind a barrier, without the questioner coming out, as stated in:

مِنْ وَرَاءِ حِجَابٍ

"From behind a screen."³

As for the second condition, it is a Sunnah according to the majority of scholars, and it is obligatory only for the Mothers of the Believers, as previously mentioned.

As for the first condition, which is the necessity of the interaction, it must be fulfilled, as discussed earlier.

¹ Surah Al-Ahzaab, verse 53

² Al-Qurtubi said regarding the phrase {متاعا}: "The correct view is that it is general and includes all that can be requested, such as utensils and other necessities for religion and worldly life." (Al-Jami' li-Ahkam Al-Quran, 14/226).

³ Surah Al-Ahzaab, verse 53

Among the necessities is what is mentioned in the texts about women seeking fatwas from men.

The commentators mentioned four examples of necessary requests in their interpretation of "something" in the verse of the Hijab, one of which is seeking a fatwa.¹

Ibn Arabi said regarding this verse: *"This indicates that Allah permitted asking them from behind a screen for a need that arises or a question that requires a fatwa."*²

Ibn Hajar said regarding the hadith of the Khath'ami woman³: *"From this, it is understood that it is permissible for a woman to speak and for her voice to be heard by non-mahram men in cases of necessity, such as seeking a fatwa, presenting a case in court, or conducting a transaction."*⁴

Al-Nawawi mentioned something similar when discussing the hadith of the Khath'ami woman asking about Hajj, the hadith of the woman suffering from istihadah (irregular bleeding), and the hadith of the woman asking about nabidh (date wine).⁵

All instances where women came to the Prophet ﷺ and spoke to him — whether to ask a question, complain, or request something — fall under this ruling.

¹ It is also said: asking for a loan, a need, or copies of the Quran. (Tafsir Al-Mawardi, 4/418; Tafsir Al-Qurtubi, 14/227).

² Ahkam Al-Quran (3/616).

³ Recorded by Al-Bukhari (1855) and Muslim (1334) from Ibn Abbas (may Allah be pleased with him), who said: *"Al-Fadl was riding behind the Prophet ﷺ when a woman from Khath'am came. Al-Fadl began to look at her, and she looked at him. The Prophet ﷺ turned Al-Fadl's face to the other side. She said: 'The obligation of Hajj has come upon my father, but he is an old man and cannot sit firmly on his mount. Should I perform Hajj on his behalf?' He said: 'Yes.' This occurred during the Farewell Hajj."*

⁴ Fath Al-Bari (4/70), and similarly in (1/410) and (9/475).

⁵ Sharh Sahih Muslim (1/186, 4/21, 9/98, 13/10)

The same applies to rulers and judges after him, as they have no choice but to address people's needs. Allah has placed people's needs in their hands, and if they were to seclude themselves from them, they would fall under the warning issued to rulers who isolate themselves.

An example of this is the narration by Anas (may Allah be pleased with him) that a woman—who had some mental impairment—said:

*"O Messenger of Allah, I have a need to ask of you." He replied: "O Umm So-and-so, choose any path you wish, and I will fulfill your need."*¹

The Prophet ﷺ was the leader of the Muslims, and they would bring their needs to him.

This is especially true since he was uniquely entrusted with the message, so people's need for him was greater than their need for rulers after him. He was commanded to convey the message to both men and women equally. If the rulings of seclusion were applied to him, and he were prevented from sitting with women to teach and advise them, it would have undermined the delivery of the message.

This clarifies the validity of the opinion that the Prophet ﷺ was exempt from certain rulings related to women, such as the obligation of the hijab and lowering the gaze, as mentioned by Ibn Abd Al-Barr, Ibn Arabi, Al-Qurtubi, and Ibn Hajar.² However, he mostly adhered to these rulings so that his Ummah could follow his example, as stated by Al-Qadi Iyad.³

Another example of necessity is enjoining good and forbidding evil for women.

¹ Recorded by Muslim (2326).

² Al-Istidhkar (5/125), Al-Mufhim (3/753), Fath Al-Bari (9/203), and similarly in (11/87). Ibn Kathir said: *"Most of his unique rulings pertain to the laws of marriage."* (Al-Fusul fi Sirat Al-Rasul, p. 325). See also: Ishkal wa Jawab fi Hadith Umm Haram (p. 57) by Dr. Ali Al-Sayyah.

³ Ikmal Al-Mu'lim (7/37).

Al-Bukhari titled a chapter for the hadith of Anas (may Allah be pleased with him) that the Prophet ﷺ passed by a woman at a grave who was crying and said to her:

"Fear Allah and be patient."

He titled the chapter: *"Chapter on a Man Saying to a Woman at the Grave: 'Be Patient.'"*

Al-Zayn ibn Al-Munir said: *"The juristic significance of this chapter heading is that it is permissible for men to address women in such situations with words that enjoin good, forbid evil, offer advice, or provide consolation. This is not limited to elderly women, as it serves religious interests."*¹

Ibn Hajar said: *"This hadith indicates the permissibility of addressing a woman with words that warn her of sin, while the first hadith² indicates the permissibility of addressing her with words that encourage her to seek reward."*³

Another example of necessity is women interacting with men in buying and selling.

Al-Nawawi, commenting on the previously mentioned hadith of the Khath'ami woman, said: *"It indicates the permissibility of hearing the voice of a non-mahram woman when necessary, such as for seeking a fatwa or conducting a transaction."*⁴ Meaning in buying and selling. A similar statement was made by Ibn Hajar, as mentioned earlier.

¹ Fath Al-Bari (3/125).

² This is the hadith of Abu Hurairah (may Allah be pleased with him), in which the Prophet ﷺ said: "No Muslim who loses three children will enter the Fire, except to fulfill an oath." Recorded by Al-Bukhari (1251).

³ Fath Al-Bari (3/125), with some rephrasing.

⁴ Sharh Sahih Muslim (9/98).

Another example of necessity is what Allah has permitted in terms of hinting at marriage to a woman in her waiting period (iddah), as stated in His words:

وَلَا جُنَاحَ عَلَيْكُمْ فِيمَا عَرَّضْتُمْ بِهِ مِنْ خِطْبَةِ النِّسَاءِ

*{There is no blame on you for what you hint at in proposing to women.}*¹

Allah has prohibited proposing to a woman during her waiting period but permitted a man to hint at it, meaning he may speak to her in a way that conveys his desire to marry her.

The reason for this necessity is that a man may strongly desire a woman and fear losing her. If he were prevented from hinting at marriage, it would cause hardship and potentially lead him to sin, as it is difficult to restrain oneself in such matters.

Allah alluded to this in His words:

عَلِمَ اللَّهُ أَنَّكُمْ سَتَذْكُرُونَهُنَّ

*{Allah knows that you will mention them.}*²

This means that it is inevitable, and you cannot refrain from expressing your desire for them or restraining yourselves from it. This was stated by Al-Zamakhshari and others.³

¹ Surah Al-Baqarah, verse 235

² Surah Al-Baqarah, verse 235

³ Al-Kashshaf (1/311), and similarly in Tafsir Al-Baydawi (1/146) and Tafsir Al-Nasafi

Al-Raghib Al-Isfahani said: *"This means that when Allah knew of your desire for them and your fear that others might precede you in marrying them, He permitted you to achieve your goal through hinting."*¹

Al-Razi said: *"Because when the desire of the soul arises in the context of marriage, it is almost impossible for the one who desires to avoid determination and longing. Since restraining such thoughts is difficult, Allah removed this hardship and permitted it."*²

The point is that the permission to speak in this context is not evidence of absolute permissibility but is limited to cases of genuine necessity.

This involves speaking a few words and does not include lengthy or casual conversation.

Another example of necessity is women going out for jihad when there is a need for them.

The reason this falls under this level is that their role does not go beyond brief interactions with the fighters, such as treating the wounded, transporting them—without touching them—handing arrows, and carrying water.

In Sahih Muslim, Umm Atiyyah (may Allah be pleased with her) said: *"I went on seven military campaigns with the Messenger of Allah ﷺ. I would stay behind in the camp, prepare food for them, treat the wounded, and care for the sick."*³

Al-Rabi' bint Mu'awwidh (may Allah be pleased with her) said: *"We used to go on military campaigns with the Prophet ﷺ. We would give water to the men, serve them, and bring the wounded and the dead back to Madinah."*⁴

¹ Tafsir Al-Raghib Al-Isfahani (1/488)

² Mafatih Al-Ghayb (6/471).

³ Sahih Muslim (1812).

⁴ Recorded by Al-Bukhari (2883).

Anas ibn Malik (may Allah be pleased with him) said: *"The Messenger of Allah ﷺ would go on military campaigns with Umm Sulaym and other women from the Ansar. They would give water to the fighters and treat the wounded."*¹

Al-Qurtubi said: *("They would give water") means they would carry it on their backs and place it near the men, who would then take it with their hands and drink. ("They would treat") means they would prepare medicine for the wounds and tend to them."*²

Many scholars have affirmed that one of the reasons women are exempt from the obligation of jihad is that it contradicts what is required of them in terms of modesty and avoiding mixing with men. This was mentioned by Ibn Battal, Ibn Rushd, Ibn Al-Munasif, Ibn Al-Mulaqqin, Al-San'ani, and others.³

Since women's participation in military campaigns contradicts the general principle, some scholars—such as Al-Qurtubi—interpreted the

¹ Recorded by Muslim (1810).

² Al-Mufhim (3/684).

³ Ibn Al-Munasif said regarding the Prophet's ﷺ statement, *"The best jihad for you is a Hajj Mabroor (accepted Hajj)"*: *"This is because women are not capable of fighting, and they are commanded to observe hijab and avoid places where men gather."* (Al-Injad fi Abwab Al-Jihad, p. 120).

Ibn Rushd said: *"Jihad is not feasible for women because it contradicts what they are commanded to do, such as observing modesty and staying in their homes."* (Al-Muqaddimat Al-Mumahadat, 1/352–353).

Ibn Battal said: *"Jihad is not obligatory for women because it contradicts what is required of them, such as modesty and avoiding mixing with men."* (Fath Al-Bari, 6/76).

Ibn Al-Mulaqqin said: *"The best thing for women is to observe modesty and avoid interacting with men without fighting, let alone in the context of fighting, which is more difficult. Hajj allows them to avoid men and observe modesty, which is why it is better for them than jihad."* (Al-Tawdih li Sharh Al-Jami' Al-Sahih, 17/563).

Al-San'ani said: *"What has been mentioned indicates that jihad is not obligatory for women because women are commanded to observe modesty and remain at home, and jihad contradicts that, as it involves mixing with peers, direct confrontation, and raising one's voice."* (Subul Al-Salam, 2/460).

participation of the female Companions with the Prophet ﷺ as being *"due to the necessity of that work at that time."*¹

If the fighters need women to go out, elderly women may go out, but not young women, according to the majority of scholars², because mixing is less problematic in their case, as will be discussed later.

At the conclusion of this level, it is important to note that the default assumption regarding a Muslim's actions is that they are sound. If a man is seen speaking to a woman in the street, the default assumption is that she is his mahram (a woman he cannot marry) or that there is a necessity permitting it, unless there are indications to the contrary, such as their appearance, the time, or the place of their meeting.

Al-Mawardi said: *"If a man is seen standing with a woman in a public street³, and there are no signs of suspicion, they should not be confronted with reprimand or disapproval, as people cannot avoid such situations."*⁴

However, a man must avoid situations that raise suspicion and protect his honor from assumptions. This is why, when two men passed by the Prophet ﷺ while he was with Safiyyah leaving the mosque during his i'tikaf (spiritual retreat), he said:

*"Wait! This is Safiyyah."*⁵

Ibn Al-Jawzi said: *"This hadith instructs us to avoid anything that could lead to negative assumptions and warns against being in situations that raise suspicion."*⁶

¹ Al-Mufhim (3/685).

² Sharh Al-Sir Al-Kabir (1/185), Al-Hidayah fi Sharh Bidayat Al-Muhtadi (2/380), Sharh Al-Sunnah (11/13–14), Al-Muharrar li Al-Majd (2/171), Sharh Al-Zarkashi on Mukhtasar Al-Khiraqi (6/452), Al-Mughni (10/384), Al-Kafi (4/123–124), Kashaf Al-Qina' (3/63).

³ Meaning, a public street. (Asas Al-Balaghah, 1/435)

⁴ Al-Ahkam Al-Sultaniyyah (p. 363).

⁵ Recorded by Al-Bukhari (3281) and Muslim (2175).

⁶ Kashf Al-Mushkil min Hadith Al-Sahihayn (4/440).

Similar statements were made by Al-Khattabi¹ and Ibn Battal.² When a woman came to the Prophet ﷺ and said, "*I have a need to ask of you,*" he replied:

*"Choose any path you wish, and I will fulfill your need."*³

The word "السكك" refers to public paths⁴. He chose to speak to her in such a place to teach his Ummah to avoid situations that raise suspicion.

Abu Dawud included this hadith in the chapter "*Sitting in the Streets,*" beginning with hadiths that prohibit sitting in such places and concluding with this hadith. This indicates that this scenario is an exception to the prohibition because protecting one's honor is a valid necessity.

¹ Ma'alim Al-Sunan (4/134).

² Sharh Sahih Al-Bukhari (4/175)

³ Recorded by Muslim (2326).

⁴ Fath Al-Bari (9/333).

The Third Level: Social Gatherings

This level refers to men and women staying together in one place.

It also includes gatherings in two nearby places, and the criterion for this is custom. If the women's gathering is close enough to the men's gathering that it is considered part of it according to people's custom, then it falls under the prohibited type of gathering.¹

This excludes gatherings without staying together, as they fall under the second level (brief interactions).

The discussion of this level is divided into four sections:

Section One: Evidence Prohibiting Social Gatherings.

Several pieces of evidence indicate the prohibition of men and women gathering together. When classified, these evidences fall into three categories:

1. Evidence prohibiting gatherings in homes.
2. Evidence prohibiting gatherings in mosques.
3. Evidence prohibiting gatherings in educational and preaching settings.

The reason these are limited to these three categories is the reality of people's lives at that time, as gatherings typically did not occur elsewhere.

Category One: Evidence Prohibiting Gatherings in Homes.

¹ The Shafi'is mentioned something similar regarding the criterion for considering someone accompanying a funeral procession as a participant. (Tuhfat Al-Muhtaj, 3/130; Al-Ghurar Al-Bahiyyah with Hashiyat Al-Abbadi, 2/98–99).

Gatherings in homes refer to men and women staying together in one place within a house, such as a room, not merely living together in the same house. Living together does not necessarily involve gathering, which is why the Prophet ﷺ allowed Fatimah bint Qays to stay in the house of Ibn Umm Maktum. Al-Shawkani said regarding this hadith: "*There is no necessary connection between living in the same house and looking (at non-mahram individuals).*"¹

Although living together can be a means for mixing, this means is outweighed by the necessity of having a place to live, so it is disregarded, as established by the principles of Islamic jurisprudence.²

Among the evidences prohibiting gatherings in homes are:

1. Allah's statement:

وَإِذَا سَأَلْتُمُوهُنَّ مَتَاعًا فَاسْأَلُوهُنَّ مِنْ وَرَاءِ حِجَابٍ ۖ ذَلِكُمْ أَطْهَرُ لِقُلُوبِكُمْ وَقُلُوبِهِنَّ

*{And when you ask [his wives] for something, ask them from behind a screen. That is purer for your hearts and their hearts.}*³

It has been previously explained that the "hijab" in this verse refers to a curtain, wall, or similar barrier that conceals a person.

The evidence from this verse for prohibiting gatherings is that it prohibits entering, and prohibiting entering is a precaution against meeting in various forms, the most significant of which is gathering.

¹ Nayl Al-Awtar (6/140).

I say: Fatimah bint Qays's staying with Ibn Umm Maktum was due to necessity, not choice, as she had no guardian or home. The choice was between staying with Umm Sharik, an elderly woman whom the Companions visited frequently, or staying in the house of her blind cousin. The latter was the lesser of two evils. Al-Baji alluded to this (Al-Muntaqa, 4/105). This is all assuming that this incident occurred after the revelation of the hijab verse.

² Sharh Al-Tanqih by Al-Qarafi (p. 394), and Al-Furuq by him (3/45–52)

³ Surah Al-Ahzaab, verse 53

In other words, it prohibits gatherings by prohibiting what may lead to them, which is entering.

Al-Tabari said: "*His statement ('from behind a screen') means from behind a barrier between you and them, and do not enter their homes.*"¹

Al-Ayni said: "*It is not permissible for a woman to allow a non-mahram man to enter her home, and she must conceal herself from him. This is unanimously agreed upon after the revelation of the hijab verse.*"²

Al-Hafiz Ibn Hajar said regarding the hadith of Anas about the brotherhood between the Muhajirin and the Ansar and their living together in their homes: "*That was before the revelation of the hijab verse, so they used to gather.*"³ This indicates that after its revelation, gatherings were prohibited.

It has been previously clarified that the ruling of this verse applies to all women.⁴ Al-Shanqiti said: "*The generality is indicated by the Prophet's ﷺ statement: 'Beware of entering upon women,' for if the ruling⁵ were specific to his wives, he would not have warned men so emphatically and generally against entering upon women.*"⁶

Aisha (may Allah be pleased with her) said:

¹ Tafsir Al-Tabari (20/313).

² Umdat Al-Qari (13/204). The discussion is not about seclusion, as it may appear, because he mentioned the obligation of concealing oneself and used the hijab verse as evidence for the prohibition. The reason for its revelation did not involve seclusion, as previously discussed.

³ Fath Al-Bari (9/236–237).

⁴ See Section One of the Second Level.

⁵ Meaning, the prohibition of men entering upon women

⁶ Adwa' Al-Bayan (6/249).

"An effeminate man used to enter upon the wives of the Prophet ﷺ and they considered him to be among those who have no desire for women¹. One day, the Prophet ﷺ entered while this man was with one of his wives, describing a woman. He said: 'When she comes forward, she comes forward with four (folds of flesh), and when she turns away, she turns away with eight.' The Prophet ﷺ said: 'Do I not see that this one knows what is here? Do not let this one enter upon you.' So, they prevented him from entering."²

This hadith prohibits men from entering upon non-mahram women. The Prophet ﷺ explained the reason for the prohibition by saying: *"I see that this one knows what is here."*

This means that it became clear from his speech that he was among those who have an interest in women. Thus, the reason for the prohibition is not seclusion, as some have mistakenly thought.

Al-Nawawi said: *"When the Prophet ﷺ heard this man's words, he realised that he was among those who have an interest in women, so he prohibited him from entering. This hadith prohibits effeminate men from entering upon women and prohibits women from appearing before them. It also clarifies that such men have the same ruling as men who are attracted to women in this regard."³*

3. Uqbah ibn Amir (may Allah be pleased with him) reported that the Messenger of Allah ﷺ said:

"Beware of entering upon women."⁴

¹ These are men who are not attentive to women's matters, as previously mentioned. Al-Hasan said: *"They are men who are naturally effeminate, so one of them would follow a man to serve him, seeking food and provision. They are unable to approach women and have no desire for them."*

Mujahid said: *"He is the simpleton who does not understand women's matters."* (Al-Tamhid, 22/273).

² Recorded by Al-Bukhari (5887) and Muslim (2180).

³ Sharh Sahih Muslim (14/163).

⁴ Recorded by Al-Bukhari (5232) and Muslim (2172).

The prohibition of entering is a prohibition of gathering, as previously mentioned. It is not correct to limit the meaning of entering to seclusion, although prohibiting entering inherently includes prohibiting seclusion as a stronger prohibition.

Ibn Hajar, Al-Ayni, and Al-Munawi said: *"Prohibiting mere entering inherently includes prohibiting seclusion with women, as a stronger prohibition."*¹

Al-Shanqiti said: *"The apparent meaning of the hadith is a warning against entering upon women even if seclusion does not occur. This is indeed the case, as entering upon them and secluding with them are both severely prohibited individually. As we mentioned earlier, Muslim included this hadith in the chapter on the prohibition of seclusion with non-mahram women and entering upon them, indicating that both are prohibited."*²

4. Anas (may Allah be pleased with him) said:

*"The Prophet ﷺ would not enter upon any woman except his wives, except for Umm Sulaym, whom he would visit."*³

Umm Sulaym and her sister Umm Haram were the Prophet's ﷺ maternal aunts, either through breastfeeding or lineage.⁴

This hadith indicates that the Prophet ﷺ refrained from entering upon non-mahram women. Al-Nawawi said: *"The scholars said: This indicates that the Ummah should refrain from entering upon non-mahram women. It also hints at the prohibition of a man entering upon a non-mahram woman, even if he is righteous."*⁵

¹ Fath Al-Bari (9/331), Umdat Al-Qari (20/213), Fayd Al-Qadir (3/160).

² Adwa' Al-Bayan (6/249).

³ Recorded by Muslim (2455). This hadith indicates that the Prophet's ﷺ entering upon some women occurred before the hijab verse. This will be detailed in Section One of Chapter Two.

⁴ See Al-Tamhid (1/226–227), Kashf Al-Mushkil min Hadith Al-Sahihayn (3/205), Sharh Sahih Muslim by Al-Nawawi (16/10), Umdat Al-Qari (11/140).

⁵ Ikmal Al-Mu'lim (7/37).

Al-Qadi Iyad said: *"The Prophet ﷺ commanded maintaining distance between the breaths of men and women. His usual practice was to avoid such situations so that his Ummah could follow his example."*¹

This is regarding the marfu' (elevated) hadiths. There are also prohibitions from Umar (may Allah be pleased with him) and other early scholars.²

From this, it becomes clear that what occurs in some households—where a man gathers with his female cousins or his brother's wife, even if they are covered or their husbands are present—is contrary to the Shariah. If it involves conversation, it falls under the next level.

As for a woman bringing men into the house's gathering, this is prohibited because it is a form of brief interaction without necessity—which falls under the second level—and is not considered a gathering.

If there is a necessity, it is permissible without dislike. This is indicated by the Prophet's ﷺ statement:

133 Sharh Sahih Muslim (16/10)

² It was previously mentioned that Abd Al-Razzaq (7/137) narrated with an authentic chain that Umar (may Allah be pleased with him) said: *"No man should enter upon a woman whose husband is absent."* A man stood up and said: *"My brother, or my cousin, went out as a soldier and entrusted me with his family. Should I enter upon them?"* Umar struck him with a whip and said: *"Come this close, no closer. Stand at the door and do not enter. Say: 'Do you need anything? Do you want something?'"*

The term "مُغَيِّبَة" refers to a woman whose husband is absent. (Kashf Al-Mushkil min Hadith Al-Sahihayn, 3/23).

Al-Athram narrated from Ahmad that he strongly disapproved of some people allowing eunuchs to enter upon their wives. (Ahkam Al-Nisa', pp. 11–12).

Abu Al-Fadl Al-Walidī, a Maliki scholar, said: *"Women must be prohibited from gathering with men in the same house."* (Al-Mi'yar Al-Mu'rib, 11/228, summarised). Ibn Hajar mentioned something similar. (Fath Al-Bari, 2/336).

"After today, no man should enter upon a woman whose husband is absent unless he is accompanied by one or two men."¹

This is conditional upon the men being righteous and virtuous, and their number being sufficient to remove suspicion, as mentioned by Al-Qadi Iyad, Al-Qurtubi, and Al-Nawawi.²

Category Two: Evidence Prohibiting Gatherings in Mosques.

1. Allah says, narrating the words of the wife of Imran when she gave birth to Maryam, after vowing that what was in her womb would be devoted to serving the church:

إِنِّي وَضَعْتُهَا أُنْثَىٰ وَاللَّهُ أَعْلَمُ بِمَا وَضَعْتَ وَلَيْسَ الذَّكَرُ كَالْأُنْثَىٰ

{Indeed, I have given birth to a female, and Allah knew best what she delivered. The male is not like the female.}

This means that when she gave birth to a female, she could not fulfill her vow.³

The scholars mentioned that the reason she could not fulfill her vow was that it would require her daughter to stay with men.

Ikrimah said: *"There are only men in the church, and it is not appropriate for a woman to be with men. Her mother said this, which is why she was prevented from placing her in the church and fulfilling her vow there."*⁴

¹ Recorded by Muslim (2173).

² Ikmal Al-Mu'lim (7/62), Al-Mufhim (5/502), Sharh Sahih Muslim by Al-Nawawi (14/155)

³ Tafsir Ibn Al-Mundhir (1/176), Tafsir Al-Tabari (5/338).

⁴ Tafsir Ibn Al-Mundhir (1/176), Tafsir Al-Tabari (5/338)

Al-Jassas said: *"This is disliked¹ for women in the mosque because it would require them to stay with men in the mosque, which is disliked for them², whether they are in i'tikaf (spiritual retreat) or not."*³

2. Abu Hurairah (may Allah be pleased with him) reported that the Prophet ﷺ said:

*"The best rows for women are the last ones, and the worst are the first ones."*⁴

Abu Dawud titled a chapter for this: *"Chapter on Women Staying Separate from Men in Mosques."*⁵

Ibn Khuzaymah said: *"This indicates that the farther the women's rows are from the men's rows, the better."*⁶

The hadith of Qaylah (may Allah be pleased with her) also indicates this. It states: *"I lined up with the men, as I was a woman who had recently left the era of ignorance. The man next to me said: 'Pray with the women,' and a row of women had formed near the rooms."*⁷

This shows the distance between the women's rows and the men's rows.

Ibn Taymiyyah said: *"It was from the Sunnah of the Prophet ﷺ and his successors to distinguish between men and women. The recommended practice in prayer was for men to be at the front of the mosque and women at the back."*⁸

¹ Meaning, to observe Itikaf

² Meaning, staying

³ Ahkamul Quran (1/304)

⁴ Recorded by Muslim (440)

⁵ Sunan Abu Dawud (1/126).

⁶ Sahih Ibn Khuzaymah (3/96).

⁷ Al-Mu'jam Al-Kabir by Al-Tabarani (25/9).

⁸ Al-Istiqamah (1/359).

A similar statement was made by Al-Mawardi.¹

Ibn Hajar said: "*The women—during the eclipse prayer—were at the back of the mosque, as was their custom in all prayers.*"²

For this reason, scholars stipulated that for women to go out to prayer, the mosque must be spacious enough to allow for separation.³

Even though when women pray behind men, it is not considered a gathering except in appearance, its reality is closer to concealment. This is because a woman in prayer is concealed from the sight of the praying men, as she is behind them and they are occupied with prayer. Describing this as a gathering is an approximation.

This is why the end of the prayer is akin to lifting the barrier, so women are encouraged to leave quickly, the imam is encouraged to delay turning around, and the congregation is encouraged to delay exiting.

3. Jabir (may Allah be pleased with him) reported:

¹ Asna Al-Matalib (1/486).

² Fath Al-Bari (2/543).

³ Al-Marghinani, a Hanafi scholar, said: "*There is no harm in an elderly woman going out for Fajr, Maghrib, and Isha prayers to attend the congregation, provided the prayer area—the open space for prayer—is spacious enough for her to separate from the men.*" (Al-Hidayah, 1/58).

Al-Kharashi, a Maliki scholar, said—while discussing the difference between the prayer area and the mosque for Eid prayers: "*They were kept away from the men. When the Prophet ﷺ finished his sermon and prayer, he went to them, admonished them, and reminded them. If they had been close, they would have heard the sermon. As for the mosque, even if it is large, crowding occurs at its entrances between men and women entering and exiting, leading to potential temptation in places of worship.*" (Sharh Mukhtasar Khalil, 2/103).

*"The Prophet ﷺ admonished the people and reminded them during Eid. Then he went to the women, accompanied by Bilal, admonished them, reminded them, and commanded them to give charity."*¹

His statement: *"Then he proceeded until he came to the women"* indicates that they were secluded from the men, and kept at a distance from them, as stated by Al-Qadi Iyad, An-Nawawi, Ibn Hajar, and As-Safarini². Ash-Shawkani said: *"This indicates the distinction of the women's gathering when they attend the gatherings of men."*³

The texts of the jurists prohibiting the mixing of men and women in one place in the mosque are numerous, especially during Friday prayers and Eid prayers⁴. In fact, they considered the reason for exempting women from the obligation to attend Friday prayers to be the presence of men in such gatherings.⁵

Among the evidences of the Companions' caution against the mixing of men and women in the mosque:

¹ Recorded by Al-Bukhari (1462) and Muslim (885).

² Ikmal Al-Mu'allim 3/291, Sharh Muslim 6/172.

And it was translated as: *"Chapter on the permissibility of women going out to the Eid prayer ground, attending the sermon, and staying separate from men."* 6/418, Dar Al-Ma'rifah edition, Fath Al-Bari 2/466, Kashf Al-Litham 3/204.

³ Nayl Al-Awtar 3/362.

⁴ Ibn Qudamah said regarding women going out for Eid prayers: *"They should not mix with men but should stay in a separate area."* Al-Mughni 2/279, and similarly in Kashaf Al-Qina' 2/52. He also said in Matlab Uli An-Nuha: *"(They should stay away from men), so they do not mix with them, out of fear of temptation."* 1/798.

⁵ Ash-Shirazi said in explaining the exemption of women from the obligation of Friday prayers: *"Because they would mix with men, and that is not permissible."* Similarly, Ash-Shirbini stated in Al-Muhadhab 1/205 and in his commentary on Al-Ghurr Al-Bahiyyah 2/32. Ibn Qudamah said: *"Being male is a condition for the obligation and validity of Friday prayers, as Friday prayers involve the gathering of men, and women are not among those who should attend such gatherings."* Al-Mughni 2/243. Similarly, Ibn Al-Qayyim said in I'lam Al-Muwaqqi'in 2/114.

Ibn Abidin said: *"Friday prayers are not obligatory for women because it is a gathering for men."* Hashiyat Ibn Abidin 2/154.

Ibn Al-Hajj Al-Maliki prohibited women from attending Friday prayers even if they had a designated area, if it did not shield them from the sight of men. Al-Madkhal 2/234.

1. Umar ibn Al-Khattab (may Allah be pleased with him) appointed two reciters during Ramadan. Urwah reported: "*Ubayy would lead the men in prayer, while Ibn Abi Hathmah would lead the women.*"¹

It is also reported that Umar (may Allah be pleased with him) forbade men from praying with women, and when he saw a man praying with them, he struck him with a whip.²

2. Urfajah ibn Abdullah Ath-Thaqafi reported that Ali ibn Abi Talib (may Allah be pleased with him) would command people to stand during Ramadan, appointing an imam for the men and another for the women. Urfajah said: "*He commanded me, and I led the women in prayer.*"³

3. Abu Amr Ash-Shaibani reported that he saw Abdullah ibn Mas'ud (may Allah be pleased with him) expelling women from the mosque on Fridays, saying: "*Go back to your homes, for that is better for you.*"⁴

4. Abdurrahman ibn Abis said: "*Ibn Abbas was asked: 'Did you attend Eid with the Prophet ﷺ?' He replied: 'Yes, and were it not for my young age, I would not have attended.'*"⁵

Ibn Hajar commented: "*He meant witnessing the Prophet's admonition to the women, as his young age excused his presence among them, unlike an adult.*"⁶

¹ Musannaf Abdurrazzaq 3/151, Musannaf Ibn Abi Shaybah 3/112, and its chain is authentic.

² I did not find it with a complete chain, but it was mentioned by Ash-Shirazi in Al-Muhadhab 3/448 and Al-Qarafi in Adh-Dhakhirah 10/51 from the narration of An-Nakha'i from Umar, as previously discussed

³ Musannaf Abdurrazzaq 4/258, Musannaf Ibn Abi Shaybah 3/113, and it includes Umar ibn Abdullah Ath-Thaqafi, who is weak.

⁴ Musannaf Abdurrazzaq 3/172, Ibn Al-Ja'd 78, and Ibn Al-Mundhir in Al-Awsat 5/319, and it is authentic from Ibn Mas'ud

⁵ Narrated by Al-Bukhari (977).

⁶ Fath Al-Bari 2/466.

5. Ata' said: *"The Mothers of the Believers would perform Tawaf with the men, but when they wished to enter the House (Kaaba), they would wait until the men had left, and then they would enter."*¹

Ibn Battal said: *"This indicates that the Sunnah is for men to leave the area if women wish to enter the House, unlike Tawaf around the House,"*² meaning that the Tawaf area is not emptied for them.

Section Three: Evidence Prohibiting Mixed Gatherings in Sessions of Knowledge and Preaching.

Abu Sa'id Al-Khudri (may Allah be pleased with him) reported: The women said to the Prophet ﷺ: *"The men have overtaken us in gaining your attention, so dedicate a day for us."* He promised them a day on which he would meet them.³

He did not permit them to sit with the men, even though it would have been easier for him than dedicating a separate session for them, and it would have been more beneficial for them due to the abundance of revelation they would hear. The fact that they did not request this initially is evidence that it was well-established among them that mixing with men is not befitting for women.

The prohibition of mixed gatherings in sessions of knowledge and preaching has been reported by a large number of early and later scholars.⁴

For example, it was said to Al-Hasan: *"Our imam delivers sermons, and men and women gather together, raising their voices in supplication."* Al-

¹ Narrated by Al-Bukhari in a similar meaning (1618).

² Sharh Sahih Al-Bukhari 4/299.

³ Narrated by Al-Bukhari (101).

⁴ See: Mara'iqi Al-Falah 204, Al-Hawadith wal-Bida' p. 76, Al-Madkhal by Ibn Al-Hajj 4/274-275, Mughni Al-Muhtaj 2/261, Hashiyat Al-Jamal on Sharh Al-Minhaj 2/458, which includes a text from Imam Ahmad.

Hasan replied: "*Raising voices in supplication is an innovation, stretching out hands in supplication is an innovation, and the mixing of men and women is an innovation.*"¹

Al-Ghazali said: "*It is obligatory upon the imam to place a barrier between men and women in the gathering of admonition, one that prevents looking (between the two), for that is a means leading to corruption — and customs bear witness to these evils.*"²

Similar statements were made by Al-Baqillani, Ibn Al-Jawzi, Ibn Hajar Al-Haytami, and Alwan Al-Hamwi in their rulings on looking.³

This concludes the discussion on the forms of gatherings indicated by the Islamic texts, and it is clear that these forms are regulated by three categories (gatherings in homes - gatherings in mosques - gatherings in sessions of knowledge and preaching). These categories serve as the foundation and principle for prohibiting all forms of mixed gatherings. Scholars have linked every mixed gathering to these explicitly mentioned forms, which is the topic of the following discussion.

Section Two: Forms of Prohibition of Mixed Gatherings in the Statements of Scholars:

In the first section, we discussed the forms of gatherings that are explicitly prohibited by Islamic texts. In this section, we will discuss the forms that scholars, including the Companions and those who came after them, have added to these prohibitions.

¹ Al-Qussas wal-Mudhakkirin 301.

² Ihya Ulum Ad-Din 3/43.

³ Al-Qussas wal-Mudhakkirin 295 and 367, Ahkam An-Nazar by Ibn Al-Qattan 494, Al-Fatawa Al-Fiqhiyyah Al-Kubra 1/203, Ahkam An-Nazar by Al-Hamwi p. 152.

First Form: Mixed Gatherings at Water Sources and Facilities.

Umar (may Allah be pleased with him) saw men and women performing ablution together from the same water container. He struck them with a whip and said to the owner of the container: *"Provide separate containers for men and women."*¹

Al-Hafiz Ibn Hajar, in response to the hadith of Ibn Umar (may Allah be pleased with him) that states, *"He saw the Prophet ﷺ and his Companions performing ablution with women from the same vessel,"* said: *"The best response² is to say that there was no issue with mixing before the revelation of the hijab (modesty rulings), but after it, this was restricted to wives and mahram (unmarriageable) relatives."*³

Ibn Hajar Al-Haytami reported: *"Among the innovations that occur during Ramadan is women sleeping in the mosque and entering facilities with men. This is forbidden and unacceptable for Muslim women, except for those with little sense of honour. How can anyone accept this for their own wife, and how can it not be obligatory to prevent it?"*⁴

Shihabuddin Ibn Al-Imad said: *"Women are only permitted to enter public baths under certain conditions... The second condition is that women should not mix with non-mahram men."*⁵

¹ Musannaf Abdurrazzaq 1/75.

² That is, regarding the issue in the hadith, which is mixing at places of ablution.

³ Fath Al-Bari 1/300. The hadith was narrated by Ibn Khuzaymah 1/63. Ar-Rafi'i and As-Suyuti preferred the view that this ablution was among mahram relatives, and Dr. As-Sabt supported this because it involves uncovering, which is prohibited even before the hijab. Al-Ikhtilat p. 238. The point here is the text of Al-Hafiz Ibn Hajar prohibiting mixing at water sources.

⁴ Al-Fatawa Al-Fiqhiyyah Al-Kubra 1/202.

⁵ Silwat Al-Ahzan li Al-Ijtinab 'an Mujalasat Al-Ahdaath wal-Niswan p. 17 (Shamela numbering).

Second Form: Mixed Gatherings in Cemeteries.

Ibn Al-Hajj said: "*The greatest fitnah (trial) in women visiting cemeteries is the mixing of women, young men, and men. Their gathering is a fitnah wherever it occurs, but in cemeteries, it is even more severe.*"¹

Ash-Shabramallisi and Ash-Shirwani, both Shafi'i scholars, said: "*Women are also permitted to participate in burials, but it is understood that this is only allowed if their proximity to the grave does not lead to mixing with men.*"²

Third Form: Mixed Gatherings at Weddings.

Shihabuddin Al-Azhari said: "*It is obligatory to accept an invitation unless there is a clear and apparent evil, such as the mixing of men and women or sitting on silk furnishings.*"³ Al-Haytami also mentioned something similar.⁴

Maliki scholars, such as Ibn Farhun, Ahmad Al-Qarafi, and Ibn Zaid Al-Barnasi, reported that there is no disagreement in their school regarding the rejection of testimony from those who attend weddings where men and women mix. They said: "*Their integrity is compromised by attending such gatherings.*"⁵ Al-Qurtubi also explicitly prohibited this in his work on the etiquette of public morality.⁶

¹ Al-Madkhal 2/17, and similarly in 1/268.

² Hashiyat Ash-Shirwani on Tuhfat Al-Muhtaj 3/172, and similarly in Hashiyat Ash-Shabramallisi on Nihayat Al-Muhtaj 3/9.

³ Al-Fawakih Ad-Dawani 2/322, and similarly in Ath-Thamar Ad-Dani 695

⁴ He mentioned that one of the reasons for declining an invitation is the presence of women looking at men or mixing with them. Al-Fatawa 4/119.

⁵ Al-Ikhtilat by Dr. Khalid As-Sabt p. 183.

⁶ Adab Al-Hisbah wal-Muhtasib p. 28. His statement: "*The public morality officer must prevent the mixing of women with men in gatherings and festivals.*"

Fourth Form: Mixed Gatherings in Court Sessions.

Scholars have mentioned five approaches to isolating women from men in court sessions (i.e., judicial settings):

First approach: Exempting women from attending court sessions whenever possible.¹

The basis for this is the hadith of Abu Hurairah (may Allah be pleased with him) regarding the story of the hired worker (who committed adultery with the wife of his employer). In the hadith, the Prophet ﷺ said:

*"Go, O Unais, to the wife of this man, and if she confesses, then stone her."*²

The woman was not brought to his court. An-Nasa'i titled a chapter on this: *"Chapter on Protecting Women from Court Sessions."*³

For this reason, Imam Malik prohibited bringing women to court for minor claims, such as a quarter of a dinar.⁴

Qadi Abu Ya'la said: *"It is disliked for women to attend court sessions when there are two male witnesses or one male witness and the claimant's oath."*⁵

¹ The purpose of this approach is to demonstrate the scholars' caution in avoiding or minimizing mixed gatherings, even in situations where there is a need for them.

² Narrated by Al-Bukhari (6827).

³ Sunan An-Nasa'i 8/240.

⁴ At-Tawdih li Sharh Al-Jami' As-Sahih 16/646. It is mentioned in Tahdhib Al-Mudawwanah 3/615: *"A woman may go out for her rights... and take an oath for minor claims in her home if she is not someone who typically goes out."*

⁵ Al-Furu' 11/370. That is, if there are two male witnesses or one male witness and the claimant's oath, it is disliked to bring women to the court session, as their presence is unnecessary when men are present

Al-Juwayni, on the same issue, said: *"It is preferable not to require women to appear in public¹, except in cases of urgent necessity."*²

This becomes even more emphasised if the woman is young and has a soft voice, as will be discussed in the statements of Al-Qarafi and Al-Hattab.³

Second Approach: Allowing Women to Enter the Judge's Presence First to Minimise Their Stay.

The Hanafis⁴, Shafi'is⁵, and Hanbalis⁶ have explicitly stated that women should be given priority in entering the judge's presence. As for the Malikis, they considered achieving segregation through another method, which is prioritising the smaller group. If the group of men is smaller, they are allowed to enter first so they can leave quickly, and if the group of women is smaller, they are given priority⁷.

¹ "Appearing in public" here refers to entering gatherings of men. This term will be explained in the fifth principle of the second section in the second chapter

² Nihayat Al-Matlab 18/599.

³ See the third form in the fourth section of the fourth level.

⁴ Burhanuddin Al-Hanafi said: *"If the judge sees fit to prioritize women, he may do so, because their situation is based on modesty."* He also said: *"This detailed ruling is reported from Muhammad ibn Al-Hasan."* Al-Muhit Al-Burhani 8/31.

⁵ An-Nawawi said: *"If the litigants crowd together, the one who arrived first is given priority. If they arrive together, women are given priority, and if they delay, they are given priority."* Ash-Shirbini said: *"To ensure their modesty."* Minhaj At-Talibin p. 340, and similarly in Mughni Al-Muhtaj 6/302.

⁶ Al-Bahuti said: *"If two or more people arrive at the same time, the traveller, the one preparing to travel, and the woman are given priority."* Kashaf Al-Qina' 6/313.

⁷ Ashhab said: *"If the judge decides to start with women every day or with men, this is based on ijtihaad (judgment). If there are more women than men, he starts with men, and if there are more men, he starts with women."* An-Nawadir wa Az-Ziyadat 8/35.

Third Approach: Allocating Separate Times for Women and Men.¹

This has been explicitly mentioned by Hanafi², Maliki³, and Shafi'i⁴ jurists. Burhanuddin Al-Hanafi explained the reasoning by saying: *"Because mixing women with men leads to fitnah (temptation), they should be given a separate time to eliminate this fitnah."*⁵

Fourth Approach: Separating Men and Women When Presenting Cases.

This means that if the dispute is between women, no men should be brought into the session unnecessarily, and if the dispute is between men, no women should be brought in, to maintain the principle of segregation.

This approach has been mentioned by Hanafi⁶, Maliki⁷, and Shafi'i⁸ jurists.

¹ That is, women are given one time slot, and men are given another.

² Khalil said in his Mukhtasar: *"The judge should allocate a specific time or day for women."* Al-Hattab said: *"To ensure their modesty and to prevent them from mixing with men in his court."* This has been mentioned by several Maliki scholars, including Sahnun, Ibn Abd Al-Hakam, and Al-Lakhmi. An-Nawadir wa Az-Ziyadat 8/35, Adh-Dhakheerah by Al-Qarafi 10/66, Minah Al-Jalil 8/306, and similarly by the mufti and teacher as mentioned by Khalil in his Mukhtasar p. 219.

³ Al-Mawardi said: *"It is preferable for the judge not to mix men and women in the same session and to allocate separate times for women and men."* Al-Hawi Al-Kabir 16/277.

⁴ Al-Muhit Al-Burhani 8/31.

⁵ Al-Kasani said: *"Men should be presented separately, and women should be presented separately, because mixing leads to the risk of fitnah."* Bada'i' As-Sana'i' 7/13, and similarly in Al-Mabsut 16/80.

⁶ Sahnun said: *"The judge should present women separately and men separately."* Al-Mazari also said something similar. An-Nawadir wa Az-Ziyadat 8/35, Minah Al-Jalil 8/307.

⁷ Al-Mawardi said: *"No men should be present during disputes between women unless their presence is necessary. If the dispute is between a man and a woman, it is preferable not to hold the session during the men's time for the sake of the woman, and not during the women's time for the sake of the man."* Al-Hawi Al-Kabir 16/277.

⁸ Narrated by Al-Bukhari (978) and Muslim (885). The wording is: *"The Prophet ﷺ stood on Eid Al-Fitr and prayed. He started with the prayer, then delivered the sermon. When he*

Ibn Hajar derived this from the hadith of Jabir (may Allah be pleased with him) regarding the Prophet's ﷺ sermon to women on Eid day, where he took Bilal with him¹. Ibn Hajar said: *"This indicates that the proper etiquette when addressing women in sermons or rulings is to not allow the presence of men except for those whose presence is necessary, such as a witness, because Bilal was the Prophet's servant and the one responsible for collecting charity."*

Fifth Approach: Maintaining Distance Between Men and Women in and Outside the Courtroom.

This approach has been mentioned by Maliki² and Shafi'i³ jurists.

These are the five approaches that scholars have mentioned to segregate women from men in court sessions.

Fifth Form: Women Riding on Ships Where They Mix with Men

Al-Ayni, while enumerating the types of innovations and evils that occurred in Egypt, said: *"Women riding on boats in the Nile of Egypt and its bays, mixing with men."*⁴

finished, he came down and went to the women, reminding them while leaning on Bilal's hand, and Bilal was spreading his garment to collect charity from the women."

¹ Fath Al-Bari 2/466.

² Al-Lakhmi said: *"If it is not possible to allocate a separate time for women, their seating should be kept as far as possible from the men."* Similar statements were made by Ibn Abd Al-Hakam, Sahnun, and Ibn Arafa. An-Nawadir wa Az-Ziyadat 8/36, Adh-Dhakheerah by Al-Qarafi 10/66, Minah Al-Jalil 8/306. It is also mentioned in Minah Al-Jalil: *"The woman and her opponent should be kept as far apart as possible while still being able to hear each other's arguments or the judge's questions, and each should be informed of the other's statements."* Minah Al-Jalil 8/307.

³ Al-Mawardi said: *"When the litigants sit, they should sit close to each other, unless one is a man and the other is a woman who is not a mahram, in which case they should sit far apart."* Al-Hawi Al-Kabir 16/277, and similarly in Mughni Al-Muhtaj 6/299

⁴ Umdat Al-Qari 6/158.

Al-Lakhmi, regarding women riding ships for Hajj, said: *"It is permissible for a woman to travel by sea if she is in a cabin or something similar where she can conceal herself and avoid mixing with men, and if there is a genuine need. Otherwise, it is not permissible, and she should be prevented."*¹ Ibn Rushd expressed a similar opinion.²

Al-Qarafi, Al-Mawardi, and Qadi Abu Ya'la—using the latter's wording—said: *"The public morality officer should instruct shipowners, when they carry men and women, to place a barrier between them."*³ Similar statements were made by An-Nawawi and Ar-Rafi'i⁴.

Ibn Qudamah said: *"If the owner of the ship dies, and his wife is on the ship, and if she has a cabin on the ship where she can reside without mixing with men, and she has a mahram (unmarriageable male relative) with her, she must observe her waiting period there. However, if she does not have a cabin, and the ship is cramped, making it impossible for her to stay without mixing with men, she must move to another place."*⁵

¹ Mawahib Al-Jalil 2/520. Khalil said: *"Al-Lakhmi indicated that this is only suitable for young women and those who are likely to attract attention. As for elderly women and those who do not attract attention, they are like men."* Mawahib Al-Jalil 3/487 (Alam Al-Fawa'id edition). This was previously discussed in the section on mitigating factors.

² Al-Bayan wa At-Tahsil 3/434. The wording is: Malik said: *"I do not like for them to perform Hajj by sea."* Ibn Rushd said: *"He criticized it severely... This—i.e., limiting it to dislike—applies if they are secluded from men and do not mix with them when there is a genuine need, and if there is enough space for them to pray properly. However, if they are not secluded from men or if the space is too cramped for them to pray properly, it is not permissible for them to perform Hajj by sea."*

³ Al-Ahkam As-Sultaniyyah 306, and similarly in Al-Ahkam by Al-Mawardi 2/21, Adh-Dhakheerah 10/52

⁴ They said—in explaining why Hajj is not obligatory for women if there is a sea between her and Makkah—: *"Because she is awrah (a part of the body that must be covered) and is at risk of exposure to men and other issues due to the cramped space. If we do not make it obligatory for her [to avoid riding], it is not recommended for her."* Rawdat At-Talibin 3/9, Sharh Al-Wajiz by Ar-Rafi'i 7/22.

⁵ Al-Mughni 9/178, Kashaf Al-Qina' 5/432. The text in brackets has been added for clarification.

Sixth Form: Women Sitting with Vendors.

Malik said: *"I believe that craftsmen should be reprimanded for allowing women to sit with them."*¹ That is, they should be reprimanded for allowing women to sit with craftsmen, where a woman comes to one of them and stays waiting for her needs to be met.

Earlier, in the second level, we discussed the scholars' caution regarding women passing by craftsmen². If this involves staying for a prolonged period, the prohibition is even stronger.

Seventh Form: Mixed Gatherings on Mount Arafat.

An-Nawawi, while listing the "evil innovations" practiced by common people on Mount Arafat, said: *"The mixing of women with men, with candles between them, and their faces uncovered."*³

Ibn Jam'ah Ash-Shafi'i said: *"It has become widespread among many common people that one must stand on the Mountain of Mercy, and men and women mix while ascending and descending. This is wrong, ignorant, and an evil innovation that emerged after the era of the righteous predecessors."*⁴

In Asna Al-Matalib, regarding the issue of standing at Arafat, it is said: *"The best place for men is the standing place of the Prophet ﷺ near the large, flat rocks at the base of the Mountain of Mercy, which is the mountain in the middle of Arafat. As for women, it is recommended for them to sit at the edge of the standing area, just as they stand at the back of the mosque. This was reported in Al-Majmu' and other works from Al-Mawardi, and it was affirmed."*⁵ This indicates that women should be kept away from the

¹ Adh-Dhakheerah 13/317.

² See Section Two of the Second Chapter

³ Al-Majmu' 8/118.

⁴ Mawahib Al-Jalil 3/93

⁵ Asna Al-Matalib 1/486.

Mountain of Mercy—despite the virtue of standing there—to prevent them from coming close to men.

Section Three: The Ruling on This Level and the Impact of Necessity:

From the preceding discussion, it is clear that this level of mixing is among the most severe, and its prohibition is firmly established among Islamic scholars due to its clear contradiction with the command of hijab (covering) and segregation. As previously mentioned, Ash-Shanqiti said: *"Entering their presence and being alone with them are both severely prohibited, even individually."*

For this reason, caution was exercised to prevent such mixing even in some situations of necessity, especially if the duration is prolonged. The Prophet ﷺ did not permit women to sit with men in gatherings of knowledge and remembrance, but instead allocated a separate gathering for them, even though gathering them with men would have been easier for him and more beneficial for them, as previously discussed.

Similarly, the Prophet ﷺ did not instruct women to sit close to men during the Eid sermon so they could hear the admonition, even though they had come specifically for that purpose. Instead, when he realised they could not hear, he approached them himself.

This is especially true if the duration is prolonged. For this reason, Maliki and Shafi'i jurists considered the absence of a ship where women would not mix with men as an excuse for women to be exempted from the obligation of Hajj.

Hanbali jurists considered such mixing as an excuse for a woman to leave the place where she is required to observe her waiting period. It is a well-established principle in Islamic jurisprudence that an obligation is only waived for another obligation.

However, if there is a genuine necessity, no scholar prohibits it, as preventing mixing falls under the principle of blocking the means (sadd adh-dhara'i), and necessity permits it, especially if the reason for the prohibition is weakened in the situation where the necessity arises. An example of this is modern means of transportation, where the need to travel is urgent, and the seating arrangements are not directly facing each other, which reduces the likelihood of improper looking. Moreover, the duration is usually not excessively long.

The statements of scholars indicate some leniency in cases of travel where the duration is not prolonged. For example, An-Nawawi and Ar-Rafi'i were strict about women traveling by sea with men but said: *"Large rivers, such as the Jayhun (Amu Darya), are not considered the same as the sea because the stay there is not prolonged."*¹

All of this is contingent on fulfilling other Islamic conditions, such as ensuring the woman's safety, avoiding seclusion, and other similar requirements.

Section Four: Contemporary Forms of Mixing:

1. Mixing in waiting areas of airports and hospitals.
2. Families gathering in restaurants at the same table or at tables close to each other without barriers. It has been previously mentioned that the standard for closeness is determined by custom, meaning the seating should be far enough apart that one group is not considered part of the other in the eyes of the people.
3. Men and women gathering in the same hall for lectures, theaters, or similar events. This scenario has three subcategories:

¹ Rawdat At-Talibin 3/9, Sharh Al-Wajiz by Ar-Rafi'i 7/22.

- **First:** The hall is large, such as theater halls, and the women's seating is isolated—either by a barrier that prevents men from looking at them or by placing them far enough from the lecturer and male attendees to serve as a barrier. Ibn Al-Jawzi, Al-Ghazali, and others said: *"The imam must place a barrier between men and women during preaching sessions to prevent looking, as this is a cause of corruption, and customs testify to these evils."*¹ This form is permissible and does not constitute true mixing.

- **Second:** The hall is small, and women sit behind men. This is the type of mixing intended in this level. Even though women are behind men, they are still in the same space, and the objectives of prohibiting mixing—such as preventing improper looking—are still present. There is no necessity here, as women can attend while being segregated from men. For necessity to affect the rulings of prohibitions, it must be specific (*mut'ayyanah*), meaning there are no other permissible ways to achieve the desired outcome and address the need.²

This refers to non-recurring mixing. As for recurring mixing, such as in schools and universities, the ruling is stricter and more severe, as will be discussed later.

- **Third:** Men and women mix in seating, with women sitting in front of men, to their right, and to their left. This scenario is of a higher level and carries a stricter ruling than the previous ones because the causes of *fitnah* (temptation) are more likely and apparent. Improper looking and conversation are easier and more accessible in this situation.

If this mixing is of a recurring nature, it is even more severe, because repeated encounters are a direct path to conversation and even companionship, as is evident and as is the reality in many Muslim

¹ Al-Qussas wal-Mudhakkirin by Ibn Al-Jawzi 295 and 367, Ihya Ulum Ad-Din 3/43.

² Al-Hajah wa Atharuha fi Al-Ahkam 1/188.

countries. Ibn Abidin alluded to this, saying: "*The fear of fitnah (temptation) from a woman's servant is like the fear of fitnah from a non-mahram man, or even greater, due to the frequency of interaction.*"¹

The third scenario—although originally part of this level—has the ruling of the next level (companionship). This is because the ruling on a situation is not considered in isolation but rather takes into account what it leads to. This scenario is close to leading to companionship, so it carries the ruling that will be discussed in the next level.

All of this applies to the mixing of male and female students. As for the ruling on a man teaching women, it will be discussed in the following level.

¹ Ibn Abidin, Hashiyat Ibn Abidin, 6/370.

The Fourth Level: Mixing and Interaction

This level refers to a man staying with a woman and conversing with her¹. It goes beyond the second level (brief interaction) by involving prolonged interaction and extends beyond the third level (mixing) by including conversation and interaction.

This does not refer to permanent or recurring gatherings, as those will be discussed in the next level.

The discussion on this level is divided into four sections:

Section One: Evidence Prohibiting Mixing and Interaction.

It has been previously established that brief interaction between a man and a non-mahram woman is something the Shariah cautions against, and it is recommended that such interaction occur from behind a barrier. If this interaction is prolonged, the prohibition becomes even stronger, and the need for caution increases. Therefore, the evidence for the second level (brief interaction) also applies to this level, even more so.

Similarly, the evidence for the third level (mixing) applies here as well. If mere mixing is prohibited, then mixing that includes conversation and interaction is even more clearly prohibited.

For this reason, scholars have used the verse of hijab as evidence to prohibit this level—since it is also evidence for the prohibition of the second and third levels, as previously discussed. Ibn Al-Faras reported: "*This verse abrogates the previous practice of men seeing women and sitting with them.*"²

¹ The term "interaction" is used instead of "conversation" because it is more comprehensive.

² Ahkam Al-Quran by Ibn Al-Faras 3/438.

As-Suyuti said: *"It was the custom of the Arabs for men and women to converse with each other, and they did not see this as shameful or suspicious until the verse of hijab was revealed."*¹

Section Two: Forms of Prohibition Against Mixing and Interaction in the Statements of Scholars.

First Form: Women Not Being Granted Prophethood and Prohibition of Women Holding High Leadership or Judicial Positions.

Al-Baghawi reported consensus on the prohibition of women holding the position of caliph or judge, saying: *"They agreed that a woman is not fit to be a caliph or a judge because the caliph needs to go out to lead jihad and manage the affairs of Muslims, and the judge needs to appear publicly to resolve disputes. Women are awrah (a part of the body that must be covered) and are not fit for public appearance."*²

This has been affirmed by many scholars from different schools of thought:

- Ibn Abidin of the **Hanafi school** said: *"A messenger needs to interact with men for teaching, presenting arguments to them, and other tasks that can only be performed by men."*³

¹ Sharh Sunan Ibn Majah p. 133.

A similar statement was made by Ibn Al-Jawzi, who said: *"The Prophet's ﷺ statement, 'Do not allow anyone you dislike to sit on your furniture,' abolishes the Arab custom of women allowing non-mahram men to sit and converse with them. Whoever thinks this refers to adultery is mistaken."* Kashf Al-Mushkil min Hadith As-Sahihayn 3/66.

² Sharh As-Sunnah 10/77.

³ Ad-Durr Al-Mukhtar with Hashiyat Ibn Abidin 5/441. See also Al-Ashbah wa An-Naza'ir by Ibn Nujaym p. 280, Hashiyat Ibn Abidin 1/548. Al-Hamawi said: *"Because the role of a messenger is based on publicity, announcement, and frequenting gatherings for preaching, while the situation of women is based on modesty and staying at home."* Ghumz Uyun Al-Basa'ir 3/393.

- Al-Mawsili, in explaining the prohibition of women serving as judges, said: *"Because it involves conversing with men, and the foundation of their situation is modesty."*¹

- Al-Haskafi and Ibn Al-Humam, among others, stated that appointing a woman to such a position is sinful². This clarifies that the Hanafi school's allowance for women to issue judgments does not mean they permit women to hold judicial positions, as these are separate matters for them.

- Ibn Al-Arabi of the **Maliki school**, in explaining the prohibition of women serving as judges, said: *"A woman cannot appear in public gatherings, mix with men, or negotiate with them as equals. If she is young, it is forbidden to look at her or speak to her. If she is elderly and outspoken, it is still not appropriate for her to sit in crowded gatherings with men and be seen by them. No one who imagines or believes this will succeed."*³

- Ash-Shirazi of the **Shafi'i school** said: *"It is not permissible for a woman to be a judge because a judge must sit with men, such as scholars, witnesses, and litigants, and women are prohibited from sitting with men due to the fear of temptation."*⁴

- Al-Qalqashandi, commenting on the Prophet's ﷺ statement, *"A people who entrust their affairs to a woman will never prosper,"* said: *"The meaning is that a leader cannot avoid mixing with men and consulting them on matters, and women are prohibited from this."*⁵

¹ Al-Ikhtiyar li Ta'lil Al-Mukhtar 2/84.

² Ad-Durr Al-Mukhtar with Hashiyat Ibn Abidin 5/440, Sharh Fath Al-Qadir 7/298. See also Wilayat Al-Mar'ah fi Al-Fiqh Al-Islami p. 227.

³ Ahkam Al-Quran 3/483.

⁴ Al-Muhadhdhab 3/378. See also Kifayat Al-Akhyar p. 721 (Ar-Risalah edition), Sharh Al-Mahalli on Al-Minhaj 4/174, Asna Al-Matalib 4/108, Tuhfat Al-Muhtaj 9/75, Nihayat Al-Muhtaj 7/409 and 8/238.

⁵ Ma'athir Al-Inafah fi Ma'alim Al-Khilafah 1/32. The hadith was narrated by Al-Bukhari (4425) from Abu Bakrah (may Allah be pleased with him).

- Qadi Abu Ya'la of the **Hanbali school**, regarding the conditions for holding the position of minister, said: *"It is not permissible for a woman to hold this position... because it involves appearing in public to manage affairs, which is prohibited for them."*¹

- Ibn Qudamah said: *"Ten conditions are required for judges: The fifth is being male, because women... are not fit to attend gatherings of men and in gatherings of disputants."*²

Second Form: Prohibition of a Man Teaching a Woman Except from Behind a Barrier.

Abu Al-Fadl Al-Walid Al-Maliki, after mentioning a number of rulings related to women, said: *"As for you directly interacting with them to teach them³ and awaken them to repentance—even if their husbands permit it—this is something you have no right to do in any way. It is your duty to teach your wife about Islamic beliefs and rulings. It is also the husband's duty to learn what is obligatory for his wife regarding her duties to Allah and to him, so she can learn from him what is required of her... Even if the husband permits you to do this or delegates it to you, it is not permissible for him or for you, because this is something that cannot be delegated under any circumstances. If she asks you about something, the question must be asked from behind a barrier, as Allah has commanded."*⁴

¹ Al-Ahkam As-Sultaniyyah 31-32, and similarly in Al-Ahkam As-Sultaniyyah by Al-Mawardi p. 58.

² Al-Mughni 10/36, Al-Kafi 4/222, Al-Mubdi' 8/153.

³ Al-Wansharisi, the author of Al-Mi'yar, did not specify the reference for these points or the text of the question. He only said: *"He was asked—meaning Sheikh Abu Al-Fadl Al-Qurtubi—about some issues that are apparent from his answer."* It seems from the answer that the question was about a non-mahram man teaching a woman some Islamic sciences.

⁴ Al-Mi'yar Al-Mu'rib 11/229.

An-Nawawi said: *"If her dowry was teaching her the Quran, and he divorced her before teaching her, the most correct opinion is that it becomes impermissible for him to teach her."*¹

Al-Juwayni said: *"If she becomes forbidden to him, and teaching her would inevitably lead to temptation, then this dowry cannot be fulfilled. However, if teaching her from behind a barrier without temptation is possible, then it can be fulfilled."*²

Al-Mawardi said: *"There are two opinions on this matter: The first is that it is permissible from behind a barrier, just as it is permissible to hear the Prophet's ﷺ hadith from behind a barrier, as the wives of the Prophet ﷺ used to narrate hadith from behind a barrier. The second opinion, which is the more correct, is that it is not permissible for two reasons: First, the prolonged conversation with her may lead to temptation. Second, they may end up alone, and she is forbidden to him."*³

This shows that the Shafi'i scholars differed even on the permissibility of teaching from behind a barrier, because teaching involves prolonged conversation.

From the above, it is also clear that it is not valid to use the practice of early scholars taking hadith from women as evidence for the permissibility of mixing, for two reasons:

First, this was done from behind a barrier, as Al-Mawardi indicated earlier.

¹ Minhaj At-Talibin 1/222. The meaning is that if the woman's dowry was that her husband would teach her some Quran, and he consummated the marriage but divorced her before teaching her, he is not allowed to teach her at that point, even though the obligation to teach remains due to the consummation, as is clear from Al-Mawardi's text below.

² Nihayat Al-Matlab 13/27.

³ Al-Hawi Al-Kabir 9/413. See also Al-Muhadhdhab by Ash-Shirazi 2/466.

Second, hadith transmission is a communal necessity, not an individual one. If this were prohibited, the narrations held by women would be lost, as An-Nawawi stated.¹

Ibn Qudamah said: *"If her dowry was teaching her the Quran, and he did not teach her before the divorce, there are two opinions: The first is that he must pay half the cost of teaching her, because she has now become a non-mahram, and there is a risk of temptation in teaching her. The second is that it is permissible for him to teach her from behind a barrier without being alone with her, as this is a situation of necessity, provided there is no risk of temptation."*²

Third Form: Prohibition of a Man Testing the Maturity of an Orphaned Woman.

Ash-Shafi'i said regarding testing the maturity of an orphaned woman: *"She should be tested by women and her mahram relatives."*³

Al-Mawardi said: *"The ones who should test her are her mahram relatives and the women of her household, unlike a young boy, whose guardian may test him even if he is a non-mahram."*⁴

This indicates that a non-mahram man, even if he is her guardian, should not test her.

Fourth Form: Caution Against a Man Interacting with a Woman Who is His Business Partner.

Malik said: *"Partnerships between women, or between women and men, are permissible."* Al-Lakhmi explained: *"This refers to cases where the woman*

¹ Al-Majmu' 16/351.

² Al-Mughni 8/11, Al-Insaf 8/233, Al-Mubdi' 6/195. The text in brackets has been added for clarification.

³ Al-Hawi Al-Kabir 6/352.

⁴ Ibid.

*is elderly¹ or young but does not directly interact in the business², because frequent conversation between a young woman and a man may lead to temptation. If there is an intermediary between them, there is no harm."*³

Ibn Al-Hindi said: *"This is permissible if both are righteous, known for their goodness, religion, and virtue. Otherwise, it is not allowed."*⁴

Section Three: The Ruling on This Level and the Impact of Necessity.

From the preceding texts of the scholars, it is clear that the prohibition of this level is severe, and mere necessity does not permit it.

For example, it was mentioned in their texts that if a woman's dowry includes her husband teaching her, her right to be taught is forfeited if he divorces her, and she is entitled to the equivalent of the teaching fee or her dowry.

An exception to the prohibition of this level is when fulfilling an obligation requires such interaction, such as when a woman is obligated to learn a specific field of knowledge, and it is impossible to do so from behind a barrier, and there is no other woman or mahram man available to teach her. This is provided that other conditions are met, such as avoiding seclusion, the woman covering herself properly, and both the man and woman being known for their righteousness and integrity. The conversation should also be limited to what is necessary.

¹ "Elderly woman" refers to an old woman who no longer attracts men's attention. Al-Fawakih Ad-Dawani 2/313, Al-Mawsu'ah Al-Fiqhiyyah 29/294.

² This refers to directly interacting with the partner, not directly managing buying and selling, as indicated by the context.

³ Al-Mudawwanah 3/617, Mawahib Al-Jalil 5/119. See also Adh-Dhakheerah 8/20.

⁴ The same sources.

Section Four: Contemporary Forms of Mixing and Interaction.

1. Men interviewing women in oral exams, job interviews, etc. The statement of Imam Ash-Shafi'i regarding testing the maturity of an orphaned woman is relevant here.
2. A man directly interacting with a female housemaid and managing her affairs. The obligation in such cases is to delegate this responsibility to his family members.

The man should also avoid sitting opposite the maid's workspace to prevent looking at her, lower his gaze when she passes by, and not remain alone with her in the house without his family present. Imam Ahmad emphasised this in the issue of hiring a maid, saying:¹ *"He should turn his face away from looking at her and not be alone with her in the house. He also said regarding leading prayers: "It is preferable for the imam to move slightly away from the prayer direction after finishing the prayer so that the women can leave."*²

Al-Kasani reported that Abu Hanifa said: *"I dislike a man hiring a free woman or a slave woman to work for him."* He added: *"This is the opinion of Abu Yusuf and Muhammad, because it may lead to looking at her³ and falling into sin."*⁴

Some scholars prohibited this absolutely, but it is clear that their prohibition applies when the man directly interacts with the maid. If the responsibility is delegated to his family, the ruling is more lenient, as the risk of temptation is reduced.

Abu Al-Fadl Rashid ibn Abi Rashid Al-Walid Al-Maliki (d. 675 AH) said: *"Malik did not permit a man to hire a free woman or a slave woman if*

¹ Mataleeb Uli An-Nuha 10/371, Hashiyat Ar-Rawd Al-Murabba' 5/296.

² Fath Al-Bari by Ibn Rajab 5/273.

³ That is, looking at what is forbidden to see of her while she is working and staying with him.

⁴ Bada'i' As-Sana'i' 4/189

*there is no mahram relationship between them."*¹ However, the Malikis explicitly permitted lending a female servant if the man is trustworthy and has a family.²

An-Nawawi of the Shafi'i school said regarding lending a servant: *"It is permissible to lend a female servant for work if she is lent to a mahram or a woman. Otherwise, it is not permissible due to the fear of temptation."*³

Al-Bujayrimi said: *"It is not permissible to lend a desirable female servant, and the same applies to a handsome beardless boy, even if the borrower is not known for immorality or has a wife."*⁴

Ar-Ramli Al-Kabir said: *"It is forbidden to lend a female servant to a non-mahram man, even if he is elderly or a teenager."*⁵ This is understood in light of the above.

Similarly, if a man hires a male servant for his family, and his wife interacts with him, as mentioned by Ash-Shirazi and Al-Isnawi.⁶

3. A woman working as a lawyer. The foundation of her work involves appearing before judges, conversing with them, and arguing with opponents. It has been previously mentioned that women are prohibited from serving as judges, ministers, or caliphs for this reason, especially if she is young and has a soft voice. Some scholars prohibited her from directly engaging in litigation to claim her rights or defend herself, instructing her to appoint a representative to argue on her

¹ Al-Mi'yar Al-Mu'rib 11/227.

² Hashiyat Ad-Dusuqi on Ash-Sharh Al-Kabir 14/359, Sharh Az-Zarqani on Mukhtasar Khalil 6/231.

³ Rawdat At-Talibin 4/427, Minhaj At-Talibin p. 144.

⁴ Hashiyat Al-Bujayrimi on Al-Minhaj 9/355.

⁵ Hashiyat Ar-Ramli Al-Kabir on Asna Al-Matalib 2/326.

⁶ Al-Majmu' 18/260, Al-Iqna' fi Hall Alfaz Abi Shuja' 2/329.

behalf, as mentioned by Al-Qarafi and others¹. It is even more impermissible for her to represent others in litigation.

This also applies to:

4. A woman working in a position where she is connected to men—even if her workplace is originally segregated—such that she interacts with them occasionally. Repeated brief interactions are akin to prolonged mixing, as the risk of temptation is present. As for working with men in the same place, this falls under the fifth level (companionship). This is similar to what was mentioned earlier regarding the Malikis' explanation for prohibiting a young woman from partnering with a man in business if she directly interacts with him, as they said: *"Because frequent conversation between a young woman and a man may lead to temptation."*²

5. A man teaching women in courses or non-recurring lectures without a barrier.

As for a man teaching women in modern educational institutions, there are four scenarios:

- **First Scenario:** The teaching and communication occur from behind a barrier (e.g., through television networks), or the women are seated far enough away to serve as a barrier (e.g., women sitting at the back of a large auditorium), and the teaching does not require direct discussion or review between the teacher and the students. This is permissible, as is clear.

¹ Al-Qarafi said: *"A beautiful woman with a soft voice is prohibited from directly engaging in litigation, and Malik disliked litigation for men of high status due to the harm to their dignity, so women are even more deserving of this consideration."* Adh-Dhakheerah 10/67. He also said in Minah Al-Jalil: *"As for those whose voices may cause temptation, they should appoint a representative to argue on their behalf or send a trustworthy person to their homes."* Minah Al-Jalil 8/306.

² See Asna Al-Matalib 1/447, Mughni Al-Muhtaj 2/217.

- **Second Scenario:** The communication occurs from behind a barrier (e.g., television networks), but the teaching requires discussion and review. Some scholars hesitated in this case, as mentioned earlier, due to the fear of temptation from prolonged conversation. The more correct opinion—and Allah knows best—is to distinguish between teaching one woman and teaching a group of women. Teaching one woman is stricter, as is apparent from the statements of those who cautioned against it, while teaching a group is more lenient, as gatherings typically reduce personal desires.¹

This is conditional on the absence of a woman who can teach the female students. If such a woman is available, the man should not be tasked with this, because listening to women's voices—especially young women—and engaging in conversation with them is only permissible out of necessity², as it contradicts the general principle.

This is also conditional on the man being known for his righteousness and trustworthiness. If he is not, he must be prohibited to protect both him and the women.

- **Third Scenario:** The man is directly in front of the female students, but the teaching does not require discussion or review. This scenario—if it were to exist—is more severely prohibited than the previous ones because it involves mixing, especially since it is rare for the lecturer to remain in this state without eventually engaging in conversation and discussion with the students.

¹ This will be explained in the third principle of the section on mitigating factors in the chapter on principles.

² This was discussed earlier in the second level. Among their texts on this is An-Nawawi's commentary on the hadith of Abu Hurairah, in which the Prophet ﷺ and his companions went out hungry and came to the house of a man from the Ansar. The woman said, 'Welcome,' and the Prophet ﷺ said to her, 'Where is so-and-so?'..." An-Nawawi said: "*This indicates the permissibility of listening to a non-mahram woman's speech and conversing with her out of necessity.*" Sharh Muslim 12/212. He mentioned similar points in several places. See 1/186, 4/21, 9/98, 13/10

It is not valid to use the Prophet's ﷺ sermon to women on Eid and his proximity to their prayer area as evidence for its permissibility, because prayer and sermons are religious rituals, indeed among the most emphasised rituals. The Prophet ﷺ brought out young women and those who usually stay at home, as well as menstruating women who are prohibited from praying, so they could hear the sermon and reminders. The women's area was far from the Prophet ﷺ, so if they attended but could not hear, the primary purpose of bringing them out would be lost.

Ibn Abbas (may Allah be pleased with him) explained the reason for this proximity, saying: *"When he saw that the women could not hear, he approached them."*¹ This indicates that such proximity is not legislated if it is possible to make them hear without it.

Therefore, it is not legislated for preachers today to approach women, as it is possible to make them hear using microphones. It has been previously mentioned that necessities only affect the rulings of prohibitions if the need cannot be met through permissible means.

Despite this, scholars such as An-Nawawi, Ibn Muflih, Al-Ayni, and others explicitly stated that this proximity during the Eid sermon is conditional on the absence of fear of temptation², and sermons are among the religious positions typically held by righteous and trustworthy individuals.

- **Fourth Scenario:** The man is directly in front of the female students, and the teaching requires discussion and review, as in classrooms and lecture halls. This type of mixing is originally part of this level, but due

¹ Ibn Abbas said: *"Then he delivered the sermon and saw that the women could not hear, so he went to them, reminded them, admonished them, and commanded them to give charity."* Narrated by Al-Bukhari (1449) and Muslim (884)

² Sharh Muslim by An-Nawawi 6/172, Al-Furu' 3/205, Al-Mubdi' 2/191, Sharh Sunan Abi Dawud by Al-Ayni 4/488.

to its recurring nature, it is linked to the fifth level. The statement of Ibn Abidin regarding the increased risk of temptation in frequent interactions has been previously mentioned.

The Fifth Level: Companionship

Companionship refers to the interaction between a man and a non-mahram woman reaching a level similar to his interaction with his mahram relatives, characterised by informality, lack of restraint, and the absence of caution¹. This arises from the repetition of the previous level (mixing and interaction).

The discussion on this level is divided into two sections:

Section One: Scholars' Denunciation of Women's Companionship, even in the Context of Worship.

Despite the clear contradiction of this level with the Quran and Sunnah, some Sufi sheikhs engaged in it, claiming that they were so absorbed in worship that they were immune to temptation or that they had reached a level of piety and sainthood that made them fearless of temptation.

Several scholars refuted them and clarified their misguidance. Ibn Al-Khabbaz Abu Bakr Al-Amiri (d. 530 AH), in refuting the claim of some ignorant Sufis that looking at women and mixing with them did not harm them, said: *"How can anyone in our time claim to be safe from temptation, even if they appear outwardly religious by their own estimation or claim infallibility? Even if we imagine an elderly sheikh, it is not appropriate to mix a group of young men with him, as this is pure misguidance. Moreover, mixing women with their ignorant sheikh² is an even greater calamity and a crime against them and against the Shariah, due to the looking, informality, and non-mahram interactions, brotherhood, and other such behaviors."*³

¹ See: At-Tawdih fi Sharh Mukhtasar Ibn Al-Hajib by Khalil 5/168.

² That is, due to the ignorance of those who issue fatwas for them.

³ Ahkam An-Nazar p. 265, published with the book Ara'is Al-Ghurr fi Ahkam An-Nazar by Ali ibn Atiyyah Al-Haytami Al-Hamawi.

He also said: *"After this clarification from the Quran, Sunnah, and consensus, it is not permissible for the ruler to allow such claimants to gather with women in a session, mixing with them in companionship and listening."*¹

Ibn Taymiyyah, describing their situation, said: *"One of them befriends a non-mahram woman and secludes himself with her. Some of these groups have admitted to the immoral acts that occur among them. Such friendships and similar behaviors that involve cooperation in what Allah has forbidden, in any form, are unanimously prohibited by Muslims."*²

He also said, condemning their actions: *"Similarly, a non-mahram man associating with and mixing with women is among the greatest evils that even some animals would reject, let alone humans."*³

Ibn Al-Jawzi mentioned similar points in Talbis Iblis⁴.

Even the Prophet ﷺ, the most pious and cautious of people, did not accompany a non-mahram woman. Ash-Shafi'i, commenting on the Prophet's ﷺ statement, *"Jibril came to me and commanded me to instruct my companions to raise their voices in the talbiyah,"* said: *"Jibril commanded the Prophet ﷺ to instruct the men in ihram, indicating that his companions were the men, not the women."*⁵ This refers to denying linguistic or customary companionship, not legal companionship, as the texts praising the companions include both men and women, as is evident.

In modern times, this level is practiced under the guise of work or study, with the claim that those focused on their work or studies are too busy to be tempted. Thus, a man refers to the woman he sits with and interacts with informally as a "work colleague" or "study partner," whereas Sufis practiced it under the guise of worship.

¹ Ahkam An-Nazar p. 286.

² Al-Fatawa Al-Kubra 3/471.

³ Jami' Al-Masa'il 5/219.

⁴ P. 324.

⁵ Al-Umm 2/170.

It is not valid to downplay the prohibition of this level by claiming that the Shariah did not provide a specific text emphasising its severity or that it did not prescribe a specific punishment for it. This is because the Shariah relies on what it has instilled in human nature and the noble customs it has ingrained in people as a deterrent against committing vile acts and engaging in disgraceful behavior. It is established among scholars that natural deterrents are stronger than legal ones. This meaning was beautifully articulated by Imam Ash-Shatibi, and I will quote it in full due to its importance. He said — may Allah have mercy on him —: *"Legal requirements are of two types:*

1. Those that align with natural instincts, where human nature encourages compliance with the requirement, such as eating, drinking, sexual intercourse, and avoiding filth like consuming or smearing oneself with it. Similarly, the customary practices of rational people regarding noble traits and good morals align with these requirements, such as covering one's awrah, protecting women and female relatives, and similar matters.

2. Those that do not align with natural instincts, such as acts of worship like purification, prayer, and fasting.

As for the first type, the Lawgiver may rely on natural instincts and customary practices to fulfil the requirement, so the demand is not emphasised as strongly as others, entrusting it to the natural deterrent that encourages compliance rather than violation. However, in reality, the requirement is still emphasised. Do you not see that no specific legal penalties were prescribed for violating these matters beyond the consequences in the Hereafter?

This is why many scholars categorise such matters as recommended (sunnah), encouraged (mandub), or generally permissible (mubah). However, if the command or prohibition is openly violated, the ruling does not align with that requirement.

*Similarly, there is no definitive text commanding eating, drinking, wearing clothes to protect from heat or cold, or marriage for the continuation of progeny. Rather, these matters are mentioned in the context of permissibility or recommendation. However, if a person is at risk of violating natural instincts, they are commanded to eat or wear clothes to protect from cold, as neglecting these would be fatal."*¹

All of the above applies to someone who commits these acts while acknowledging their prohibition. As for someone who does so believing it is permissible, it is even more severe and dangerous, as it constitutes a rejection of revelation, a defiance of Shariah texts, and a contradiction of definitive Islamic principles.

Abu Bakr Al-Amiri said: *"The scholars of the Ummah agree that whoever believes these prohibitions are permissible, including the mixing of men with non-mahram women, has committed disbelief and is liable to be killed for apostasy. If someone believes it is prohibited but does it, approves of it, or is content with it, they have committed a major sin (fisq), and their testimony and statements are not accepted."*²

As-Suyuti said: *"Befriending non-mahram women and secluding oneself with them is prohibited by the consensus of Muslims. Whoever considers this permissible is a disbeliever, and whoever does it carelessly is a sinner, misguided, leading others astray, and has deviated from the religion, separating from the Muslim community. May Allah distance the one who does this, for looking at non-mahram women, secluding oneself with them, and listening to their speech is prohibited for every mature person, except with mahram relatives, as established by the Quran, Sunnah, and the consensus of the Ummah."*³

¹ Al-Muwafaqat 3/387, summarized, and the commentary in the edition of Al-Muwafaqat.

² Ahkam An-Nazar by Al-Amiri p. 287.

³ Al-Amr bil-Ittiba' wa An-Nahi 'an Al-Ibtida' p. 95.

Section Two: Contemporary Scenarios Leading to Companionship:

As mentioned earlier, companionship results from repeated mixing and interaction. In modern times, there are several forms of recurring gatherings, including:

1. Male and female students studying in the same classrooms or halls.
2. Men and women working in the same store. As for assigning a woman to work with men in a store selling women's clothing, with the intention of protecting Muslim women from buying from men, this involves avoiding a permissible interaction (consensus) by engaging in a prohibited one (consensus). The former falls under the second level—which is permitted out of necessity—while the latter falls under the fifth level.
3. Men and women working in the same office.
4. Women and men working in restaurants, hotels, and similar establishments.

The worst of these jobs are those where the woman is under the authority of a man, as the man's boldness in such cases is stronger, compounding the woman's vulnerability.

5. Recurring mixed work meetings. If the gathering is not recurring, it falls under the fourth level.

Chapter Two: Guidelines of Mixing

Section One: Guidelines for Deriving the Ruling on Mixing

Guideline One: The Command for Hijab Implies Prohibition of Mixing

This principle is discussed in three parts:

1. The meaning of hijab.
2. The legislation of hijab.
3. The implication of hijab in prohibiting mixing (the main focus here).

Part One: The Meaning of Hijab

In linguistic terms, hijab refers to a barrier that prevents entry, as stated by Abu Hilal Al-Askari and others¹. Ar-Raghib said: "*Al-Hajb and al-hijab mean preventing access.*"²

Ibn Al-Qatta' said: "*Hajaba ash-shay' means to conceal it, and 'anka means to prevent you from it, and from this comes the term hijab.*"³

Al-Azhari said: "*Ihtajaba fulan means he concealed himself behind a hijab.*"⁴ The term iktinan (concealment) refers to covering oneself with something that protects and preserves, as in Allah's saying: "*As if they*

¹ Al-Furuq fi Al-Lughah p. 523. See also Al-Muhkam wa Al-Muhit Al-A'tham 3/92, Kitab Al-Af'al 1/225, Mashariq Al-Anwar 1/181, At-Ta'arif by Al-Manawi p. 268.

² Al-Mufradat fi Gharib Al-Quran p. 108.

³ Kitab Al-Af'al 1/225.

⁴ Tahdhib Al-Lughah 4/97.

*were hidden eggs" (37:49), and the saying: "He concealed himself from the rain."*¹

From this, it is clear that hijab in linguistic terms refers to a physical barrier, separate from what is being concealed. It is "*what stands between two things*," as expressed by Ibn Sidah², or "*a physical barrier between two bodies*," as stated by the author of Al-Misbah³. It is not merely a cover or veil placed over something to conceal it.

For this reason, Abu Hilal Al-Askari dedicated a section to distinguishing between hijab, sitr (cover), and ghita' (veil), saying: "*A sitr does not prevent access to what is concealed, while a hijab does.*"⁴

Preventing access can be achieved either by the hijab itself, such as a wall, or the curtain of a ruler, or by its indication, such as a curtain. The curtain itself does not physically prevent access, but it indicates that the one who placed it intends to prevent access to what lies beyond it. An example is the hadith of Anas, where the Prophet ﷺ prevented him from entering upon Zaynab when the hijab was revealed. Anas said:

*"He lowered the curtain and entered, and I was sitting in the room."*⁵

This lowered curtain indicates prevention, even though it is not a physical barrier. Similarly, in the hadith of Ibn Az-Zubayr regarding Aisha's boycott of him, her maternal uncles, the Zuhiris, said to him: "*When we seek permission to enter, rush through the hijab*," meaning to push through the curtain that was between Aisha and those seeking permission to enter.⁶

¹ Tafsir At-Tabari 19/541, Ma'ani Al-Quran by Az-Zajjaj 4/304, Al-Muhkam wa Al-Muhit Al-A'tham 6/662.

² Al-Muhkam 3/92.

³ Al-Misbah Al-Munir 1/121. The exact wording is: "The origin of hijab is a physical barrier between two bodies."

⁴ Al-Furuq fi Al-Lughah p. 523.

⁵ Narrated by Al-Bukhari (5163) and Muslim (1428).

⁶ Umdat Al-Qari 16/77.

This is the linguistic meaning of hijab.

The meaning of hijab in Shariah texts does not deviate from this linguistic meaning in most instances. Several scholars have clarified that the command for women to observe hijab and the command for them to wear the jilbab (outer garment) are two separate commands. Abu Umar Ibn Abd Al-Barr said: "*Women were commanded to observe hijab, and then they were commanded, when going out, to draw their jilbabs over themselves.*"¹

Abu Al-Abbas Ibn Taymiyyah, distinguishing between the command to wear the jilbab and the command for hijab, said: "*The verse about jilbabs (33:59) refers to outer garments when leaving the home, while the verse about hijab (33:53) refers to concealing oneself when speaking within the home.*"² This was also mentioned earlier by Abu Ja'far Ad-Dawudi^{3,4}

It appears that scholars used the term hijab to refer to wearing the jilbab for two reasons:

1. Both share the essence of covering, as both conceal what lies beneath them. Thus, the term was used loosely, relying on this shared meaning.
2. The command for hijab includes the command to wear the jilbab when going out, because the purpose of hijab in the home is concealment, and the jilbab fulfills some of the meaning of hijab in the home. Therefore, it was called by the same name as a form of linguistic flexibility.

¹ At-Tamhid 8/236.

² This is Allah's saying: "To draw their outer garments over themselves" (33:59).

³ This is Allah's saying: "And when you ask them for something, ask them from behind a screen" (33:53).

⁴ . Majmu' Al-Fatawa 15/448. See also 22/110. This clarifies the difference between covering with clothing and covering with a hijab. Clothing prevents seeing the body of the concealed person, while a hijab prevents seeing the person altogether.

After clarifying the meaning of hijab in both linguistic and Shariah terms, its Shariah meaning can be further detailed by saying: The command for women to observe hijab in Shariah texts essentially revolves around three matters:

1. Women staying in their homes: This is evidenced by the hadith of Aisha (may Allah be pleased with her):

*"Sawdah went out after the hijab was prescribed to fulfill a need... Umar (may Allah be pleased with him) saw her and said, 'O Sawdah, by Allah, you cannot hide from us...' The Prophet ﷺ said, 'You have been permitted to go out for your needs.'"*¹

This indicates that hijab entails staying at home and not going out. Ibn Hajar said: *"Women have been legislated to observe hijab in their homes."*² Ibn Abidin said: *"Women have been commanded to stay in their homes, so their situation is based on concealment."*³ Thus, staying at home is referred to as hijab and sitr (covering).

2. Preventing men from entering upon them: This is evidenced by Umar's (may Allah be pleased with him) statement:

"O Messenger of Allah, both the righteous and the wicked enter upon you. If only you would command the Mothers of the Believers to observe hijab."
*Then Allah revealed the verse of hijab (33:53)."*⁴

This indicates that hijab prevents men from entering.

¹ Narrated by Al-Bukhari (4795) and Muslim (2170).

² Fath Al-Bari 4/277.

Ibn Hajar reported from some scholars: "Lowering the jilbabs means concealing themselves from the gaze of others, and this is part of hijab." Fath Al-Bari 11/24.

³ Hashiyat Ibn Abidin 1/548.

⁴ Narrated by Al-Bukhari (4483). In another narration: "Allah revealed the verse: 'And when you ask them for something, ask them from behind a screen.'" Narrated by Al-Ajuri in Ash-Shari'ah 4/1896.

3. Covering oneself with a barrier when going out: This is evidenced by the hadith of Anas (may Allah be pleased with him) regarding the Prophet's ﷺ marriage to Safiyyah during their return from the Battle of Khaybar. Anas said:

"The Muslims said, 'If he conceals her, she is one of the Mothers of the Believers. If he does not conceal her, she is among his captives.' When they set out, he prepared a place for her behind him¹ and placed a hijab between her and the people."²

In another narration:

"When he mounted, he concealed her, and she sat on the back of the camel."³

Scholars express these meanings of hijab with five other terms:

1. Concealment (istitar)⁴,
2. Hiding (ikhtifa')⁵,
3. Avoiding appearance (tark adh-dhuhur)⁶,

¹ Narrated by Al-Bukhari (5159).

² That is, when he mounted his camel, he prepared a place for Safiyyah to sit behind him. Fath Al-Bari by Ibn Rajab 2/661, Umdat Al-Qari 20/81.

³ Narrated by Muslim (1365).

⁴ For example, Al-Ayni said: *"Her prayer in her private room is better than her prayer in her house or her chamber because it is more concealed and prevents people from seeing her, as women's situation is based on concealment as much as possible."* Sharh Sunan Abi Dawud 3/56. Ibn Rajab said: *"They leave the mosque in the darkness of dawn to be more concealed."* Fath Al-Bari 5/316. See also Sahih Ibn Hibban 5/595, Bada'i' As-Sana'i' 7/13, Majmu' Al-Fatawa 3/454, Minah Al-Jalil 8/306.

⁵ For example, the Shafi'i is said: *"What is required of a woman is to conceal herself as much as possible."* Nihayat Al-Muhtaj 3/293, I'anat At-Talibin 2/328, Hashiyat Al-Abadi on Tuhfat Al-Muhtaj 4/101. Al-Ghazali said: *"She should not leave her home without her husband's permission. If she goes out with his permission, she should be concealed, in modest clothing, seeking secluded places, not streets or markets."* Ihya Ulum Ad-Din 2/59. See also Sharh Al-Bukhari by Ibn Battal 2/473, Al-Unwan fi Suluk An-Niswan by At-Taqi Al-Hindi p. 31

⁶ For example, Qadi Abu Ya'la said regarding the conditions for holding the position of minister: *"It is not permissible for a woman to hold this position... because it involves*

4. Avoiding exposure (tark al-buruz)¹,
5. Avoiding unveiling (tark al-inkishaf)².

Part Two: The Legislation of Hijab

The first part clarified the meaning of hijab for women, which essentially revolves around three matters: commanding them to stay at home, preventing men from entering upon them, and covering themselves with a barrier when going out. This part discusses the evidence from the Quran and Sunnah for the recommendation of this hijab and its applicability to all women. Examples include:

1. Allah's saying:

وَقَرْنَ فِي بُيُوتِكُنَّ

{*And stay in your homes*}³

Al-Qurtubi said: "*The meaning of this verse is a command to remain in the home. Although the address is to the wives of the Prophet ﷺ, other women are included by analogy. This is supposing there isn't specific evidence for all women. So what about the fact that the Shariah is filled with commands for*

appearing in public to manage affairs, which is prohibited for them." Al-Ahkam As-Sultaniyyah 31-32. Similarly, Al-Mawardi in Al-Ahkam As-Sultaniyyah p. 58. An-Nawawi said regarding the Prophet's ﷺ preventing Hit from entering upon the Mothers of the Believers after it became clear that he was not impotent: "*This prohibits effeminate men from entering upon women and prohibits women from appearing before them.*" Sharh Muslim 14/163. See also At-Taysir Sharh Al-Jami' As-Saghir 2/455

¹. For example, Al-Baghawi said: "*A judge needs to appear publicly to resolve disputes, and a woman is awrah (a part of the body that must be covered) and is not fit for public appearance.*" Sharh As-Sunnah 10/77. See also Tabyin Al-Haqa'iq 1/136, Asna Al-Matalib 4/108, Tuhfat Al-Muhtaj 9/75, Nihayat Al-Muhtaj 7/409.

². For example, Al-Marghinani said: "*Her leading women in prayer increases exposure, which is disliked... The best is moderation, as it emphasizes concealment.*" Al-Hidayah 1/352, Al-Inayah Sharh Al-Hidayah 1/306. See also Al-Mabsut 9/73, An-Nukat fi Al-Masa'il Al-Mukhtalaf fiha bayn Ash-Shafi'i wa Abi Hanifah 1/227, Tabyin Al-Haqa'iq 1/245.

³ Surah Al-Ahzaab, verse 33

women to remain in their homes and refrain from going out except out of necessity."¹

2. Allah's saying—the primary evidence for hijab—:

وَإِذَا سَأَلْتُمُوهُنَّ مَتَاعًا فَسَلُّوهُنَّ مِنْ وَرَاءِ حِجَابٍ

*{And when you ask them [the wives of the Prophet] for something,
ask them from behind a screen.}*²

This verse commands hijab from men when there is a need—such as asking for something—so hijab is even more necessary in other situations.³

This verse was revealed when the Prophet ﷺ married Zaynab bint Jahsh (may Allah be pleased with her), as mentioned in the hadith of Anas in the Sahihayn. In it, Anas (may Allah be pleased with him) said:

*"The Prophet ﷺ came and entered [upon Zaynab]. I went to enter, but he placed a hijab between me and him."*⁴

In another narration:

*"Allah revealed the verse of hijab, so he placed a curtain between me and him."*⁵

And in another:

¹ Al-Jami' li Ahkam Al-Quran 14/178.

² Surah Al-Ahzaab, verse 53

³ See Kawthar Al-Ma'ani fi Kashf Khaba'ya Sahih Al-Bukhari 4/275.

⁴ Narrated by Al-Bukhari (4791, 6239) and Muslim (1428).

⁵ Narrated by Al-Bukhari (6238) and Muslim (1428).

*"He lowered the curtain, entered, and I was sitting in the room."*¹

At-Tabari said: **{From behind a screen}** means from behind a barrier between you and them, and do not enter their homes."² Thus, he interpreted hijab as something that prevents entry.

Earlier, in the introduction to the second level, it was explained that the command for hijab in this verse applies to all women.

The verse explicitly indicates that men are prohibited from entering upon women, and it implicitly indicates that the Shariah principle regarding women is that they should be concealed from men. Otherwise, it would not be appropriate to prohibit men from entering upon them or asking them for something without a hijab. Ar-Razi said: *"Allah commanded men to ask from behind a hijab, and it is understood that women should be concealed from men, even more so."*³ He also said: *"Allah's*

¹ Narrated by Al-Bukhari (5163) and Muslim (1428). **The Room (Al-Hujrah):** It refers to any area enclosed by the walls of a house that is not roofed. For this reason, the enclosure for camels is called *hujrah*. As for the house (*bayt*), it must be roofed. The term *dar* (compound) refers to what includes houses, rooms, and a courtyard. *Al-Kulliyat* by Abu Al-Baq'a Al-Hanafi, p. 239. This is clear in the texts. Allah Almighty referred to the Kaaba as: **{And [mention] when Abraham was raising the foundations of the House}** (2:127). He said about mosques: **{In houses [of worship] which Allah has ordered to be raised and in which His name is mentioned}** (24:36). In the previously mentioned hadith of Anas (may Allah be pleased with him): *"He lowered the curtain, entered the house, and I stayed for a while in the room (hujrah)."* In the hadith of Ibn Abbas (may Allah be pleased with him): *"The caller to prayer came to him, so he went out to pray. When he was in the room (hujrah), leaving the house..."* *Sunan Al-Bayhaqi* 1/238. In the hadith of the wife of Abu Hamid (may Allah be pleased with him): *"Your prayer in your house is better than your prayer in your room (hujrah), and your prayer in your room is better than your prayer in your compound (dar)."* *Sahih Ibn Khuzaymah* 3/95. The term *bayt* (house) may also refer to the entire *dar* (compound), considering that the entire compound is a place for staying and shelter. See *Maqayis Al-Lughah* 1/324

² Tafsir At-Tabari 20/313. Ibn Al-Arabi and Al-Qurtubi said regarding Allah's saying, **{That is purer for your hearts and their hearts}** (33:53): *"This removes suspicion, distances accusations, and strengthens protection."* *Ahkam Al-Quran* 1/616, Al-Jami' li Ahkam Al-Quran 14/227.

³ Tafsir Ar-Razi 25/180.

*saying, 'Ask them from behind a screen,' is a command to lower the curtain over them, and this can only be achieved if they are concealed and screened."*¹

For this reason, scholars considered this verse evidence for the recommendation of women avoiding exposure and appearance before men, and they did not limit its meaning to preventing entry. Al-Wahidi said: *"Before the revelation of the verse of hijab, women used to appear before men. When it was revealed, the hijab was imposed on them."*²

3. From Ibn Umar (may Allah be pleased with him), the Prophet ﷺ said:

*"Do not prevent women from going to the mosques, but their homes are better for them."*³

Abu Dawud titled a chapter on this: *"Chapter on the Severity of This"* — meaning women going out to mosques.

4. From Jabir (may Allah be pleased with him), the Prophet ﷺ said:

*"A woman approaches in the form of a devil and departs in the form of a devil."*⁴

An-Nawawi said: *"It is inferred from this that she should not go out among men except out of necessity."*⁵

5. From Aisha (may Allah be pleased with her):

¹ Ibid.

² Al-Wajiz p. 871.

³ Narrated by Abu Dawud (567) and Ahmad 2/76. It is narrated by Habib ibn Abi Thabit from Ibn Umar (may Allah be pleased with him). Habib is a mudallis (one who practices tadlis), and he narrated with an 'an'an chain, but the meaning of the hadith is firmly established in the Shariah, which is why Abu Dawud included it and titled a chapter on it. See also At-Tamhid 23/395-400.

⁴ Narrated by Muslim (1403).

⁵ Sharh Muslim 9/178.

*"She sought permission from the Prophet ﷺ to perform i'tikaf (seclusion in the mosque), and he permitted her. She set up a tent, and when Hafsa heard about it, she set up a tent, and when Zaynab heard about it, she set up another tent."*¹

Ibn Qudamah said: *"It is recommended for a woman performing i'tikaf in the mosque to conceal herself with something, because when the wives of the Prophet ﷺ wanted to perform i'tikaf, they were instructed to set up their tents in the mosque. This is because the mosque is frequented by men, and it is better for both men and women not to see each other."*²

6. From Aisha (may Allah be pleased with her):

*"I went out with the Prophet ﷺ on a journey after the hijab was revealed. I was carried in a howdah and would descend in it."*³

Ibn Hajar said: *"This indicates that the howdah serves as a substitute for the home in concealing women."*⁴

These last two hadiths discuss concealing oneself outside the home when possible—such as during i'tikaf or while traveling—and they align with the reason for the command of hijab, which is the risk of temptation. This risk exists for women leaving their homes just as it does for those staying in them.

This hijab (barrier) is obligatory for the Mothers of the Believers and recommended for other women, as previously mentioned⁵.

¹ Narrated by Al-Bukhari (2041) and Muslim (1172).

² Al-Mughni 3/191.

³ Narrated by Al-Bukhari (2661) and Muslim (2770). Her statement, "after the hijab was revealed," implies that her concealment in the howdah was in compliance with the command for hijab.

⁴ Fath Al-Bari 8/479.

⁵ See Section One of Level Two in Chapter One

These are some of the evidences for the legislation of hijab, and there are many more in the Quran and Sunnah.

The command for hijab is firmly established among jurists, as previously discussed, and its impact is evident in their rulings and elaborations. For example, when a woman needs to go out, they recommend that she achieve as much concealment as possible to fulfill the objectives of hijab. This is based on the principle that "what is possible is not negated by what is difficult."¹

If the command for hijab were not firmly established, they would not have considered its foundation or based their rulings on it.

Among these rulings is their recommendation that if a woman wishes to attend congregational prayers, she should go out for night prayers rather than daytime prayers. This was mentioned by Hanafi², Maliki³, and several Hanbali⁴ jurists, as the night provides some concealment⁵. Abu Hanifah explained this by saying: "*Because the darkness of the night*

¹ See Al-Ibhaj by As-Subki 1/118, Al-Ashbah wa An-Naza'ir by As-Suyuti p. 159.

² Mukhtasar Ikhtilaf Al-Ulama 1/232, Al-Inayah Sharh Al-Hidayah 2/83.

³ At-Tamhid 23/395, Sharh Al-Bukhari by Ibn Battal 2/470.

⁴ Fath Al-Bari by Ibn Rajab 5/316, Kashf Al-Litham by As-Safarini 2/120. The full text will come later.

⁵ Night is called hijab because it conceals what is within it. Fath Al-Qadir 4/431.

Jurists considered darkness a form of concealment in several rulings, such as: the permissibility of a woman uncovering her face before non-mahram men in darkness. (See Al-Muntaqa by Al-Baji 1/9). Another example is the permissibility of a naked man leading others in congregational prayer in darkness. (Ash-Sharh Al-Kabir by Ad-Dardir 1/221, Al-Majmu' 3/185 and 4/293, Al-Ghurr Al-Bahiyyah 1/447, Mataleb Uli An-Nuha 1/340).

Another example is the reduction of the dislike of a man praying opposite his wife at night when he cannot see her figure. They derived this from Aisha's (may Allah be pleased with her) statement after mentioning the Prophet's ﷺ praying toward her: "*The homes at that time had no lamps.*" See Ikmal Al-Mu'allim 2/238. Another example is the establishment of rulings related to seclusion with one's wife if he secludes with her in darkness. (See Hashiyat Ibn Abidin 3/116, Al-Muhit Al-Burhani 3/110).

Another example is the permissibility of relieving oneself in darkness. Ibn Hajar said: "*The wives of the Prophet ﷺ had different ways of concealing themselves when relieving themselves, the first of which was in darkness. In the hadith of Aisha: 'We would only go out at night.'*" (Fath Al-Bari 1/327).

prevents men from looking at her."¹ Similar explanations were given by Qadi Iyad², Al-Ayni³, Al-Qari⁴, and As-Safarini⁵.

They derived this meaning from the hadith of Ibn Umar (may Allah be pleased with him), where the Prophet ﷺ said:

*"If your women seek your permission to go to the mosque at night, permit them."*⁶

They considered the night a condition for the obligation to grant permission.

Al-Bukhari titled a chapter on this: *"Chapter on Women Going Out to Mosques at Night and in the Darkness of Dawn."*⁷

This is also understood from Ibn Khuzaymah's statement: *"Chapter on the Preference for a Woman Praying in the Darkest Part of Her Home."*⁸

Others derived this from the hadith of Aisha (may Allah be pleased with her), who said:

*"The believing women used to attend Fajr prayer with the Messenger of Allah ﷺ wrapped in their garments. They would return to their homes after finishing the prayer, and no one would recognise them due to the darkness."*⁹

¹ Al-Mabsut 2/41, Al-Muhit Al-Burhani 2/102. See also Bada'i' As-Sana'i' 1/275.

² Mawahib Al-Jalil 2/117.

³ Umdat Al-Qari 6/159.

⁴ Sharh Musnad Abi Hanifah p. 137.

⁵ Kashf Al-Litham 2/120.

⁶ Narrated by Al-Bukhari (865) from Salim and Mujahid, from Ibn Umar (may Allah be pleased with him).

⁷ Sahih Al-Bukhari 1/172.

⁸ Sahih Ibn Khuzaymah 3/95. He titled this based on the hadith of Ibn Mas'ud (may Allah be pleased with him), marfu': *"The most beloved prayer a woman performs to Allah is in the darkest part of her home."* It includes Ibrahim ibn Muslim Al-Abdi, who is weak.

⁹ Narrated by Al-Bukhari (578) and Muslim (645).

Al-Bukhari titled a chapter on this: "*Chapter on Women Leaving Quickly After Fajr.*" Ibn Hajar said: "*This is specified for Fajr because delaying it leads to daylight, so it is appropriate to leave quickly. This is unlike Isha, as delaying it leads to increased darkness, so staying longer is not harmful.*"¹ Ibn Rajab said something similar²

Ibn Battal said: "*This is the established Sunnah: women should leave in the darkness of dawn before men to conceal themselves and avoid being recognised by men they encounter.*"³

Al-Baji said: "*To take advantage of the concealment provided by the darkness.*"⁴

Regarding a woman's Tawaf and Sa'i, Shafi'i⁵ and Hanbali⁶ jurists recommended that she delay performing them until nighttime, as it is more concealed. They derived this from the practice of the Mothers of the Believers. In Sahih Al-Bukhari, it is reported from Ata': "*They—the Mothers of the Believers—would go out at night in disguise to perform Tawaf with the men.*"⁷

From Muhammad ibn As-Sa'ib, from his mother Barakah, from Aisha (may Allah be pleased with her): She sent a message to those carrying lanterns to extinguish them, so they did, and then she performed Tawaf in concealment and hijab.⁸

¹ Fath Al-Bari 2/351.

² Fath Al-Bari 5/316

³ Sharh Al-Bukhari 2/473.

⁴ Al-Muntaqa 1/9.

⁵ Al-Umm 2/185, Al-Hawi Al-Kabir 4/94, Al-Majmu' 7/361 and 8/75, At-Tawdih by Ibn Al-Mulaqqin 11/395.

⁶ Al-Mughni 3/306.

⁷ Sahih Al-Bukhari (1618). In Al-Fakihi 1/222, it is reported from the mursal narration of Ibn Jurayj: "Aisha used to perform Tawaf after Isha."

⁸ Akhbar Makkah by Al-Azraqi 1/350, Akhbar Makkah by Al-Fakihi 1/163. It includes Barakah, the mother of As-Sa'ib, who is not well-known, and I could not verify her hearing from Aisha.

Another ruling is that they explained the command for women to stand behind men in prayer and other situations as being to avoid violating hijab and to achieve as much concealment as possible.

Al-Ayni, in his commentary on Al-Bukhari's chapter "*Chapter on Women Praying Behind Men*," said: "*Because their situation is based on concealment, and standing behind men provides more concealment for them.*"¹ This reasoning was mentioned by Al-Muhallab² and Ibn Battal³ of the Malikis.

They also recommended that women pray in the last rows of women, as this is closer to achieving hijab than praying in the front rows. Qadi Iyad, commenting on the hadith "*The best rows for women are the last, and the worst are the first*,"⁴ he also said: "*The last rows are the best because they are concealed by those in front of them.*"⁵

At-Tibi, commenting on the same hadith, said: "*Men are commanded to stand in front, while women are commanded to observe hijab.*"⁶

Another ruling is that they recommended women walk behind men when following a funeral procession—according to those who hold this opinion.

Imam Malik was asked about the recommendation to walk in front of the funeral procession and whether men and women are equal in this regard. He said: "*I do not think women should be in the same position as men. Should women be with men in front of them?!*" He was told: "*Women are not in front of men but behind them, in front of the funeral procession.*" He replied: "*Do men not carry the funeral procession while women are in*

¹ Umdat Al-Qari 6/159.

² Sharh Sahih Al-Bukhari by Ibn Battal 4/298.

³ Sharh Al-Bukhari 2/348 and 472.

⁴ Narrated by Muslim (440) from Abu Hurairah (may Allah be pleased with him).

⁵ Ikmal Al-Mu'allim 2/196.

⁶ Sharh Sunan Ibn Majah by As-Suyuti p. 70.

⁷ That is, in front of them.

*front of it? I do not think this is appropriate. I think women should walk behind it, and this is the practice."*¹

They explained this as achieving concealment. Al-Baji said: *"The rider following the funeral procession should be in front of the women so they are concealed from him."*²

Sanad said in Sharh al-Mudawwana: *"It is not recommended for a woman to walk in front of a funeral procession because it is their custom to stay behind men in prayer and other matters."*³

Al-Haskafi, a Hanafi scholar, said: *"It is recommended to walk behind the funeral procession, except if there are women behind it, in which case walking in front of it is better."*⁴ The Shafi'i school also mentioned a similar ruling.⁵

Among the recommendations is that a woman is advised to avoid riding on an animal in Arafat if she is among men who are not riding, and to avoid standing if she is among men who are sitting. This is because refraining from riding and standing in such situations ensures greater modesty. Al-Hattab from the Maliki school said: *"Riding and standing during the standing at Arafat is preferable for men, while sitting is preferable for women."*⁶

Al-Mawardi from the Shafi'i school said: *"It is recommended for her to stand at Arafat dismounted rather than riding, as it is more modest and protective for her. Men, on the other hand, are recommended to ride according to the most correct opinion. It is also recommended for women to sit while men stand."*⁷

¹ Al-Bayan wa At-Tahsil 2/230.

² Al-Muntaqa by Al-Baji 2/9.

³ Mawahib al-Jalil, 2/227. The name of the commentary is Al-Tiraz.

⁴ Al-Durr al-Mukhtar, 2/232.

⁵ See: Tuhfat al-Habib, 2/558; Hashiyat al-Abbadi on Al-Ghurar al-Bahiyya, 2/99.

⁶ Mawahib al-Jalil, 3/140

⁷ Al-Hawi al-Kabir, 4/214; Asna al-Matalib, 486.

Al-Ramli al-Kabir mentioned this and then said: "*Al-Nawawi firmly stated this. If the woman is covered in a howdah or tent, the preferred opinion is that she should stand.*"¹

Another example is the statement of Ibn Taymiyyah: "*Women are exempted from ascending at Muzdalifah, Safa, and Marwah due to the exposure it entails.*"²

The Shafi'i school said: "*It is Sunnah for men to ascend Safa and Marwah, but it is not Sunnah for women... to ensure modesty.*" They explained this by saying: "*What is required of women is to conceal themselves as much as possible.*"³

There are many other similar examples.⁴

This demonstrates that the legitimacy of the hijab is firmly established among the scholars of Sharia, and its practice is well-known among all Muslims, even if some are unaware of its foundations and evidences. Thus, you will find that they do not disagree that a woman's nature is based on concealment, and that it is not appropriate for a father, for example, to task his daughter with going out to run household errands when it is possible to task his son instead. Similarly, a man sitting in the street without a need is not equivalent to a woman doing so.

The purpose of this discussion (clarifying the legitimacy of the hijab) and the previous one (explaining the meaning of the hijab) is to lay the groundwork for the main objective, which is to explain how scholars derived the prohibition of mixing between genders from the command to observe the hijab. This will be addressed in the following section.

¹ Hashiyat al-Ramli al-Kabir on Asna al-Matalib, 1/486.

² Sharh Umdat al-Fiqh, 4/708.

³ Manhaj al-Tullab, 1/46; Tuhfat al-Muhtaj, 4/101; Nihayat al-Muhtaj, 3/293.

⁴ Al-Hawi al-Kabir, 17/114.

Third Section: Demonstrating How the Command for Hijab Implies the Prohibition of Gender Mixing

Once the meaning of the hijab is established, the validity of using the command for hijab as evidence for the prohibition of gender mixing becomes clear. The recommendation for women to avoid going out and being exposed to men necessarily implies, even more so, that they should avoid mixing with men. This is why scholars have used it as evidence to prohibit gender mixing at various levels:

Examples from the First Level (Mixing in Public Spaces):

Ibn Jurayj said to his teacher, Ata ibn Abi Rabah, when Ata mentioned that the wives of the Prophet ﷺ used to perform Tawaf with men: "*How could they mix with men after the command of hijab?*"¹ Ibn Jurayj used the command of hijab as evidence to prohibit mixing during Tawaf, which is a form of mixing in public spaces. Ata affirmed this reasoning and clarified that they used to perform Tawaf while keeping a distance.

Examples from the Second Level (Brief Interactions):

Allah Almighty mentioned in the verse of hijab that He mandated modesty by commanding a specific form of it, which is modesty during brief interactions. He said:

وَإِذَا سَأَلْتُمُوهُنَّ مَتَاعًا فَاسْأَلُوهُنَّ مِنْ وَرَاءِ حِجَابٍ

*{And when you ask [his wives] for something, ask them from behind a screen.}*²

¹ Narrated by Al-Bukhari (1618).

² Surah Al-Ahzaab, verse 53

Among the evidences for this as well is the fact that scholars excused incidents involving interactions between men and women — without necessity — by saying they occurred before the command of ḥijāb, which indicates that they understood the command of ḥijāb to signal the end of permissibility (of such interaction).

Among them is ‘Ā’ishah (may Allāh be pleased with her), for when she recounted her visit to Bilāl and ‘Āmir ibn Fuhayrah in the mosque, after they had been afflicted with fever following the Hijrah, she said (may Allāh be pleased with her): *“I entered upon them and said: ‘O my father, how are you feeling?’ Then I approached ‘Āmir ibn Fuhayrah — and that was before the ḥijāb was mandated — and said: ‘How are you feeling, O ‘Āmir?’”*¹

Among those who referenced this understanding are: Ibn Baṭṭāl, Ibn Rushd, Ibn al-Mulaqqin, and al-Ṣan‘ānī — in their commentary on ḥadīths about women interacting with men during jihād²; and also al-‘Aynī in his commentary on the ḥadīth of Abū Usayd’s wife and her role in preparing for their wedding.³

Examples from the Third Level (Social Gatherings):

Al-Ayni said: *"It is not permissible for a woman to allow a non-mahram man to enter her home, and she must observe hijab from him. This is unanimously agreed upon after the revelation of the verse of hijab."*⁴ Which was previously mentioned.

¹ Narrated by Ibn Ishāq (Fath al-Bārī 7/263), and the original ḥadīth is found in al-Bukhārī (5654).

² It was previously mentioned that this is from the second level of interaction (ikhtilāṭ), and the jurists’ statements on this were cited at the end of the third section.

³ Umdat al-Qārī 20/159. The ḥadīth of Abū Usayd will be mentioned shortly.

⁴ ‘Umdat al-Qārī 13/204.

Al-Kirmānī excused the ḥadīth of al-Rubayyi‘ bint Mu‘awwidh, in which the Prophet ﷺ sat with her on the day of her wedding, by saying that it occurred before the command of ḥijāb.¹

Similar is the excuse made by al-Qurṭubī for the ḥadīth of the woman who used to clean the mosque², as well as Ibn Rajab's excuse regarding the ḥadīth of the two young girls who were beating the duff in the house of the Prophet ﷺ.³

Ibn Ḥajar's excuse concerning the gathering of men and women at the places of wuḍū' (ablution)⁴, and also his excuse for the ḥadīth of Anas about the emigrants residing in the homes of the Anṣār that contained their women — he said: *“That was before the revelation of the verse of ḥijāb, so they used to gather together.”*⁵

Ashhab, one of the Mālikī imams, stated the recommendation of assigning separate days for women and for men when appearing before the judge — and this is a type of ḥijāb — then said: *“It is not appropriate for the judge to admit men and women mixed together. Do you not see how women stand behind men in ṭawāf and in prayer, and ahead of them in funeral processions?”*⁶

1 Faḥ al-Bārī, 9/203. The ḥadīth is in Ṣaḥīḥ al-Bukhārī (4001).

2 Al-Jāmi‘ li-Aḥkām al-Qur’ān (by al-Qurṭubī), 4/67. The ḥadīth is in Ṣaḥīḥ al-Bukhārī (460) and Ṣaḥīḥ Muslim (956), narrated from Abū Hurayrah (رضي الله عنه).

3 Faḥ al-Bārī, 6/73.

4 Faḥ al-Bārī, 1/300. The ḥadīth is also reported by Ibn Khuzaymah, 1/63. Al-Rāfi‘ and al-Suyūṭī favored the view that the wuḍū' in that incident took place among maḥārim, and this was supported by Dr. al-Sabt (al-Ikhtilāf, p. 238).

5 A reference to the story of Sa‘d ibn al-Rabī, when he offered to ‘Abd al-Raḥmān ibn ‘Awf that he would divorce one of his two wives so that he could marry her. This indicates that Sa‘d’s two wives were aware of the offer, and it was not hidden from them, for the men of the Anṣār and their women used to gather with the men of the Muhājirīn in the homes during the period of brotherhood (mu‘ākhāh) between the Muhājirīn and Anṣār after the Hijrah.

6 al-Nawādir wa al-Ziyādāt, 8/35

He thus used the delaying of women behind men in prayer rows as a proof for the prohibition of intermixing — which is one of the methods of ḥijāb, as previously mentioned.

Examples from the Fourth Level (Social Interaction and Communication):

Al-Suyuti said: *"It was the custom of the Arabs for men and women to interact and converse, and they did not see this as shameful or suspicious until the verse of hijab was revealed."*¹

Among the evidences for this also is their reasoning for why a woman is not tasked with prophethood, nor with the supreme leadership (imāmah ‘uẓmā), nor similar forms of authority — because these roles are based on public presence among men, interacting with them, conversing with them, and frequenting their assemblies, while the condition of a woman is based on concealment and remaining within the home.

So, Ibn ‘Ābidīn, in explaining the prohibition of a woman assuming the supreme imamate, said: *"Because women were commanded to remain settled in their homes, their condition is based on concealment."*²

And al-Taḳī al-Hindī, in discussing a woman’s assumption of kingship, said: *"Women have no share in these positions of leadership, because such positions are based on appearance, exposure, and publicity — whereas the*

1 Sharḥ Sunan Ibn Mājah, p. 133.

And something similar was said by Ibn al-Jawzī, where he said:

The statement of the Prophet ﷺ: *"Do not allow anyone whom you dislike to tread upon your bedding,"* is a correction of the Arab custom in which a woman would permit non-maḥram men to sit with her and converse with her. So whoever thinks that this is referring to zinā (fornication) has made a mistake.

(Kashf al-Mushkil min Ḥadīth al-Ṣaḥīḥayn, 3/66)

² Ḥāshiyat Ibn ‘Ābidīn, 1/548.

condition of women is based on concealment and being hidden in both their persons and their voices.”¹

Similar statements were made by others, including: al-Mawṣilī², al-Ḥamawī³, al-Baghawī⁴, al-Ramlī⁵, and Zakariyyā al-Anṣārī⁶. Their texts have already been cited earlier⁷.

Examples from the Fifth Level (Companionship):

This is included in the discussions of the fourth level, as companionship results from repeated social interaction and communication, as previously mentioned.

¹ al-‘Unwān fī Sulūk al-Niswān, p. 31.

² al-Ikhtiyār li-Ta‘līl al-Mukhtār, 2/84.

³ Ghamz ‘Uyūn al-Baṣā’ir fī Sharḥ al-Ashbāh wa al-Naẓā’ir, 3/393.

⁴ Sharḥ al-Sunnah, 10/77.

⁵ Nihāyat al-Muḥtāj, 8/238.

⁶ Asnā al-Maṭālib, 4/108. And similar in Tuḥfat al-Muḥtāj, 9/75, and Nihāyat al-Muḥtāj, 7/409.

⁷ See: Fourth Level, Second Section, First Scenario.

Guideline 2: The evidences forbidding a lower level of interaction also serve as evidence for forbidding what is above it.

This is clearly evident: Whoever avoids merely crossing paths (between men and women) on the street will, with greater reason, avoid stopping and conversing or standing at a distance to carry out a casual transaction. And whoever avoids casual conversation will, even more so, avoid men and women remaining in one place together. And whoever avoids that will, with greater reason, avoid prolonged gatherings that involve conversation — and even more so, repeated and habitual gatherings that lead to familiarity and companionship.

Among the scholars who applied this principle is al-Ḥāfiẓ Ibn Ḥajar, who said — regarding the ḥadīth of Umm Salamah:

“The Messenger of Allāh ﷺ would give salām¹, and the women would depart and enter their homes before the Messenger of Allāh ﷺ would leave”

He said: *“In it is the dislike of men and women mixing in the streets — let alone in homes.”²*

So, he derived a ruling forbidding a higher level of interaction (being in the same homes) from the prohibition of a lower level (meeting in the street).

It is worth noting here that when it comes to the last level (companionship) — i.e., habitual gathering and conversation — the texts of prohibition apply to all the levels that precede it. That is why scholars have considered this final level to be from the definitive matters of the Shari‘ah, and have declared that denying its prohibition is tantamount to denying a fundamental of the religion — as

¹ Meaning: from the prayer.

² Fath al-Bārī, 2/336.

previously mentioned. This is among the major benefits of this principle.

Guideline 3: One may not use evidences of concession in a lower level to justify permissibility in a higher level.

This is because the concession is based on either a mild need weakening a weak prohibition, or a strong need mitigating a strong prohibition.

So, the influence of need in one level does not imply its influence in a higher level, just as the influence of a strong need at a lower level does not imply the influence of a lesser need at that same level.

An example of mistaken reasoning:

Some cite the mixing that occurs during ṭawāf (circumambulation) or in marketplaces to permit mixing in workplaces and educational settings — but the former is from the first level, and the latter is from the fifth.

Or they cite women's participation in jihād or their interaction with vendors to justify such mixing — but that is from the second level, and the other is from the fifth.

Guideline Four: It is invalid to use pre-ḥijāb incidents of gatherings as evidence for the permissibility of gender mixing.

This is because the command for ḥijāb was only revealed in the fifth year (after the Hijrah)¹, so all instances of interaction before that were during a time of permissibility. Among them is:

1. The ḥadīth of Sahl ibn Sa‘d: That Abū Usayd al-Sā‘idī, when he got married, invited the Prophet ﷺ and his companions. His wife, Umm Usayd, prepared no food for them and did not bring it to them except by her own hand. She soaked some dates in a stone basin during the night, and when the Prophet ﷺ had finished eating, she mixed it and offered it to him as a gift.²

Al-‘Aynī said: *“That was before the revelation of ḥijāb.”*³

This is further supported by the fact that Usayd — the son of Umm Usayd — is counted among the Companions, so it is definitive that he was born before the ḥijāb was mandated.⁴

In any case, the action of Umm Usayd (may Allah be pleased with her) falls under the second level of interaction — that is, incidental transaction — and the ḥadīth does not mention that she sat with them.⁵

¹ Talqīh Fuhūm Ahl al-Athar, p. 40; ‘Umdat al-Qārī, 11/99; Mukhtaṣar Tafsīr Ibn Kathīr by Aḥmad Shākir, 2/108.

² Reported by al-Bukhārī (5182) and Muslim (2006).

³ ‘Umdat al-Qārī, 20/159.

⁴ al-Ikhtilāf by Dr. Khālīd al-Sabt, p. 230.

⁵ It is not valid to attribute to al-Bukhārī the view that it is permissible for a woman to enter upon men, based on his chapter heading for the ḥadīth of Abū Usayd, which reads: *“Chapter: The Woman Serving the Men at the Wedding, Herself.”* (Ṣaḥīḥ al-Bukhārī, 7/26)

Explanation: This ḥadīth includes two elements: That the woman entered upon the men, and that the bride herself served the guests at her wedding and did not delegate it to someone else. What al-Bukhārī intended by the chapter title is the second matter — to clarify that a bride’s serving (her husband and his guests) during her wedding is not blameworthy, nor a deficiency in her status, nor a fault in her husband or his guests. If it were blameworthy, the Prophet ﷺ would have objected. Ibn Baṭṭāl said, in the benefits derived from this ḥadīth: *“In*

2. Hadith of Abdullah ibn Amr ibn al-As (may Allah be pleased with him): A group from Banu Hashim entered upon Asma bint Umayy, and Abu Bakr al-Siddiq (may Allah be pleased with him) entered while she was his wife at that time. He saw them and disliked it. He mentioned this to the Messenger of Allah ﷺ and said, "I did not see anything but good." The Messenger of Allah ﷺ said, "Allah has absolved her of that." Then the Messenger of Allah ﷺ stood on the pulpit and said, "No man should enter upon a woman in seclusion after this day of mine unless he is accompanied by one or two men."¹

Al-Qurtubi said: "Perhaps this incident occurred before the revelation of the hijab and before any command or prohibition was established regarding this

it is the permissibility of the bride serving her husband and his companions at her wedding." (Sharḥ al-Bukhārī, 7/294) In al-Bukhārī's chapter heading, there is no mention of the bride entering upon the men, and his phrase "The woman serving the men" does not necessarily mean she entered upon them. The phrase "qiyām al-mar'ah 'ala al-rijāl" (the woman attending to the men) means: taking charge of, overseeing, tending to, and persistently caring for something — just as in the Qur'anic verse: {أَفَمَنْ هُوَ قَائِمٌ عَلَىٰ كُلِّ نَفْسٍ بِمَا كَسَبَتْ} **{Is He who stands watch over every soul (responsible) for what it earns...}** (al-Ra'd: 33). Al-Wāḥidī said: It means: He oversees it, as is said: "So-and-so took charge of such-and-such" — meaning: he handled and was responsible for it. See: *al-Wajīz* by al-Wāḥidī, p. 573; *Tafsīr al-Tha'labī*, 2/230.

Similarly, in the verse: {وَمِنْهُمْ مَنْ إِنْ تَأْمَنَهُ بِدِينَارٍ لَا يُؤَدِّهِ إِلَيْكَ إِلَّا مَا دَمْتَ عَلَيْهِ قَائِمًا} **{And among them is he who, if you entrust him with a dinar, will not return it to you unless you keep standing over him (supervising him constantly)...}** (Āl 'Imrān: 75)

That is: constantly monitoring and supervising. See: *Tafsīr al-Ṭabarī*, 6/520; *al-Tafsīr al-Wasīṭ*, 3/17; *al-Tamhīd*, 19/24; *Tafsīr al-Baghawī*, 1/458; *Sharḥ Muslim* by al-Nawawī, 6/140; *Umdat al-Qārī*, 20/164.

Likewise, al-Bukhārī's phrase "and she served them herself" does not imply entering upon the men. What is meant is that the bride did not delegate the task of serving the guests to a servant, but did it herself. Furthermore, what proves that al-Bukhārī's position on ḥijāb agrees with that of the other scholars is that he included a chapter in his *Ṣaḥīḥ* titled: "Chapter: Guarding the Gaze, and the Prohibition of Looking at Non-Maḥram Women" (*Ṣaḥīḥ al-Bukhārī*, 8/50–51). In it, he cited the ḥadīth prohibiting sitting in the pathways — which is itself among the evidences for the prohibition of ikhtilāṭ (mixing) in public spaces, as has been discussed earlier. And avoiding this implies avoiding higher levels of interaction — such as transactional dealings and social gatherings — as is plainly evident.

¹ Narrated by Muslim (2173).

*matter. However, Abu Bakr (may Allah be pleased with him) disapproved of it based on natural and religious jealousy."*¹

I say: This hadith does not indicate social mixing, as entering does not necessarily imply social interaction. Ibn Hajar said: "*Entering does not necessitate the lifting of the hijab. A person may enter through the door, and she may speak to him from behind a hijab.*"²

However, what Abu Bakr (may Allah be pleased with him) disliked was their entering his home where his wife was present, and there was no one else in the house to receive them. A jealous person's heart is only at ease if he personally oversees the entry of non-mahram men into his home, as their entering in his absence deprives him of the precautions and safeguards that jealous individuals typically take when non-mahram men enter their homes where their wives are present.

3. Hadith of Ibn Umar (may Allah be pleased with him): He said, "*Men and women used to perform ablution together during the time of the Messenger of Allah ﷺ*."³

Ibn Hajar suggested that this occurred before the hijab was mandated.⁴

However, it is more accurate to say that this could not have happened even before the hijab, as ablution involves exposure.⁵ The correct understanding is that the narrator intended to explain the ruling of a man performing ablution with the leftover water of a woman. This is how most scholars who narrated it understood it. When scholars use a

¹ Al-Mufhim, 5/502

² Fath al-Bari, 9/286. Mentioned in the hadith of Umar (may Allah be pleased with him): "*I entered upon Aisha and said, 'O daughter of Abu Bakr, has it reached the point where you harm the Messenger of Allah ﷺ...'*" Narrated by Muslim (1479).

³ Narrated by Al-Bukhari (193).

⁴ Fath al-Bari, 1/300.

⁵ Al-Ikhtilat by Dr. Al-Sabt, 238.

hadith as evidence, they consider the narrator's intent, as the narrator would only be cautious about the ruling they intended to convey.¹

Al-Tibi said: "*It is the habit of eloquent speakers that when speech is directed towards a specific purpose, they structure it accordingly and disregard other aspects.*"²

4. Hadith of Abu Huraira (may Allah be pleased with him): "*A black woman used to clean the mosque...*"³

Al-Qurtubi mentioned that this occurred before the hijab and that the incident took place in the early days of Islam.⁴

In fact, the narrator expressed doubt about whether it was a woman or a man. In Al-Bukhari's wording: "*A woman — or a man — used to clean the mosque, but I think it was a woman.*" In Muslim's wording: "*A black woman used to clean the mosque, or a young man.*"

This hadith, in its original context, does not indicate that the woman worked in the mosque while men were present. Even if we assume that it was during their presence, it would fall under the first level of mixing, which does not justify "social gatherings."

5. Hadith of Abu Huraira (may Allah be pleased with him): Regarding the story of the Ansari man who hosted a guest of the Prophet ﷺ and served him his children's dinner while he and his wife pretended to eat.⁵ This incident occurred after the Battle of Banu al-Nadir, which took place at the beginning of the fourth year, meaning it was a year before the hijab was mandated.⁶

¹ Al-Ikhtilat by Al-Turaifi, 58

² Fath al-Bari, 1/132.

³ Narrated by Al-Bukhari (460) and Muslim (956).

⁴ Al-Jami li Ahkam al-Quran, 4/67.

⁵ Narrated by Al-Bukhari (3798) and Muslim (2054).

⁶ Al-Ikhtilat by Dr. Al-Sabt, 231.

6. Hadith of Aisha (may Allah be pleased with her): Regarding the two young girls who were singing in her house. The Prophet ﷺ entered, lay down on the bed, and turned his face away.¹ This incident occurred early on, close to the time when the Prophet ﷺ married Aisha, as mentioned by Al-Qadi Iyad and supported by Ibn Rajab.² Aisha clarified that they were young girls, and a young girl (jariyah) is one who has not reached puberty and is not obligated to observe the hijab.
7. Hadith of Al-Rabee bint Muawwidh: Regarding the Prophet ﷺ sitting on her bed on the morning of her wedding.³ This also occurred before the hijab, as clarified by several scholars.⁴
8. Hadith of Asma bint Abi Bakr: When the Prophet ﷺ met her with a group of his companions and offered her a ride behind him.⁵ This incident occurred at the beginning of the fourth year, as suggested by Ibn Hajar and others.⁶

In any case, this falls under situations of urgent necessity, as she was carrying date seeds on her head for a distance of three kilometers, and the area she traversed—Al-Harra—was rough and difficult to

¹ Narrated by Al-Bukhari (949) and Muslim (892).

² Ikmal al-Mu'lim, 3/306; Fath al-Bari, 6/73; Al-Ikhtilat by Dr. Al-Sabt, 235; Al-Ikhtilat by Al-Turaifi, 48.

³ Narrated by Al-Bukhari (4001).

⁴ The summary of their research is that her marriage to Iyas ibn Bukayr occurred after the Battle of Badr, and Badr took place in the second year. She bore him Muhammad, who lived during the time of the Prophet ﷺ, indicating the early occurrence of this incident. Al-Ikhtilat by Dr. Al-Sabt, 235; Al-Ikhtilat by Al-Turaifi, 49.

⁵ Narrated by Al-Bukhari (5224) and Muslim (2182).

⁶ This incident occurred after the Battle of Banu al-Nadir, which was at the beginning of the fourth year. Ibn Hajar said: *"The land of Al-Zubayr was part of what Allah bestowed upon His Messenger from the wealth of Banu al-Nadir, and this occurred shortly after his arrival in Medina."* He then said: *"It appears that the incident occurred before the revelation of the hijab and its legislation."* Fath al-Bari, 9/323-324; Al-Ikhtilat by Dr. Al-Sabt, 244.

navigate. This was an extreme hardship.¹ Therefore, Al-Nawawi said: *"This indicates the permissibility of giving a ride to a woman who is not a mahram if she is found on a road and is exhausted, especially in the presence of a group of righteous men. There is no doubt about the permissibility of such a situation."*²

Al-Qadi Iyad considered this a unique privilege of the Prophet ﷺ,³ while Ibn Hajar denied its validity as evidence altogether, saying: *"Her statement, 'to let me ride behind him,' suggests that she understood this from the context. Otherwise, it is possible that the Prophet ﷺ intended to let her ride with her belongings while he rode something else. Her statement, 'I felt too shy to walk with the men,' is based on her understanding of riding together. Otherwise, based on the other possibility, accompanying them would not be necessary."*⁴

9. Hadith of Anas (may Allah be pleased with him): Regarding the Prophet ﷺ stipulating that Aisha accompany him to accept the invitation of a Persian man.⁵ This hadith does not indicate that Aisha sat with them for the meal. Even if we overlook that, this incident undoubtedly occurred before the hijab, as the Prophet ﷺ explained the hijab in the context of preventing Anas from entering upon his wife Zainab. If mere entry was prohibited, how much more so sitting for a meal? It has already been established that the command for hijab was stricter for the Mothers of the Believers than for others.

¹ Al-Ikhtilat by Dr. Al-Sabt, 245.

² Sharh Sahih Muslim, 14/166.

³ He said: *"This is specific to the Prophet ﷺ, unlike others. We have been commanded to maintain distance between the breaths of men and women. It was his habit ﷺ to keep them at a distance so that his ummah would follow his example. This was a unique privilege for him because she was the daughter of Abu Bakr, the sister of Aisha, and the wife of Al-Zubayr, making her like one of his family and wives, in addition to the unique control he ﷺ had over his desires."* Sharh al-Nawawi li Muslim, 14/166.

⁴ Fath al-Bari, 9/323.

⁵ Narrated by Muslim (2037).

Hadith of the Prophet ﷺ entering upon Umm Sulaim¹ and her sister Umm Haram² There is no basis for using this as evidence, as they were among the Prophet's mahram relatives. Al-Nawawi reported consensus on this.³ Umm Haram used to comb the Prophet's hair ﷺ,⁴ which is something a free woman would not do for non-mahram men, even in the pre-Islamic era.

¹ Narrated by Al-Bukhari (6281).

² Narrated by Al-Bukhari (2788) and Muslim (1912).

³ Sharh al-Nawawi, 13/57; see also: Al-Tamhid, 1/226-227; Umdat al-Qari, 11/140.

⁴ Narrated by Al-Bukhari (2788) and Muslim (1912).

Second Section: Guidelines for Strictness in the Ruling on Gender Mixing

Guideline One: Mixing with women who uncover their faces or adorn themselves is more severe.

It has been established that the recommendation for women to avoid exposure and going out to men is a matter of encouragement (nadb), but this ruling shifts to obligation (wujub) if there is a strong likelihood of fitnah (temptation). Al-Nawawi, Ibn Hajar, Al-Haytami, and Al-Munawi have explicitly stated this.¹

It is well-known that the likelihood of fitnah in mixing with women who uncover their faces is stronger, and the presumption of its occurrence is greater.

The strictness of scholars regarding mixing with women who uncover their faces or adorn themselves can be understood from their general prohibition of women going out with uncovered faces or adorned. If going out is prohibited, mixing is even more clearly prohibited.

Among their statements on the strictness of women going out with uncovered faces is what Al-Juwayni mentioned about the consensus of Muslims prohibiting women from going out with uncovered faces.²

Zakariyya al-Ansari said: *"The most correct opinion is that it is haram for them to go out with uncovered faces because it leads to the haram, which is looking at them, and this is a cause of fitnah."*³

¹ Al-Fatawa al-Fiqhiyya al-Kubra, 1/203; Fayd al-Qadir, 1/276; Mirqat al-Mafatih, 3/836

² Nihayat al-Matlab, 12/31; Kifayat al-Khiyar, 350; Asna al-Matalib, 3/109.

³ Sharh al-Bahjah al-Wardiyyah, 14/188.

Ibn Jama'ah said: "*Among the greatest evils is what ignorant common people do during Tawaf, where they mix with men while their wives are with them, uncovering their faces.*"¹

Al-Qurtubi said: "*The condition under which a woman is allowed to go out is that she should be in a state where no eye is drawn to her, and no heart is inclined towards her.*"

Scholars have mentioned among the conditions for a woman's attendance at prayer in the mosque that she should not be adorned or display what must be covered.²

This makes it clear that a woman's uncovering her face or adorning herself necessitates the prohibition of mixing, even at the lowest levels.

¹ Al-Fatawa al-Fiqhiyya al-Kubra, 1/201

² Al-Ikhtiyar li Ta'lil al-Mukhtar, 1/59. His wording: "*It is disliked for women to attend congregational prayers because of the Prophet's ﷺ statement, 'Their homes are better for them,' and due to the fear of fitnah. This applies to young women by consensus.*"

Guideline Two: Mixing with young women is more severe.

The precaution against young women going out to men and mixing with them is stricter than for others, as the likelihood of fitnah in their case is more apparent and stronger.

This is evidenced by the consensus of scholars on the dislike of young women going out for a number of acts of worship. Imam Abdullah ibn Mahmud ibn Maudud al-Mawsili al-Hanafi¹, Ibn Hubayrah, and Ibn Abd al-Barr reported consensus on the dislike of young women going out for the prayer for rain (istisqa).²

Al-Qadi Iyad from the Maliki school said: *"Scholars have stipulated that their going out should be at night, without adornment, and not as young women who may cause fitnah... If any of these conditions are present, it is obligatory to prevent them out of fear of fitnah."*³ Al-Dardir expressed a similar opinion.⁴

Al-Mawardi from the Shafi'i school said regarding young women attending Eid prayers: *"Their going out is disliked due to the fear of them being tempted by men or men being tempted by them."*⁵ Al-Nawawi said: *"Women are not prevented from going to the mosque, but with conditions mentioned by scholars, derived from the hadiths,"* including: *"She should not*

¹ Al-Ifsah, 1/206. His wording: *"They agreed that it is disliked for young women to attend men's congregational prayers."*

² Al-Istidhkar, 2/430.

³ Mawahib al-Jalil, 2/117.

⁴ Al-Sharh al-Kabir, 1/386.

⁵ Al-Hawi al-Kabir, 2/495.

be a young woman or someone who may cause fitnah."¹ Al-Rafi'i and Zakariyya al-Ansari expressed similar opinions²

Al-Kasani from the Hanafi school said: "*Because their going out—young women for Friday and Eid prayers—is undoubtedly a cause of fitnah, and fitnah is haram. Whatever leads to haram is haram.*"³ However, absolute prohibition is unlikely, and Allah knows best.

The definition of a young woman according to scholars is between fifteen and thirty years old, and some include those between thirty and forty⁴

¹ Sharh Muslim, 4/61.

Al-Nawawi said in another place: "*It is disliked for her—meaning a woman—to attend congregational prayers in the mosque if she is desirable.*" Al-Shabramallisi said: "*Among the desirable women are young women, even if they are not perfumed, because their appearance is known.*" Nihayat al-Muhtaj, 2/140.

Note: Al-Shirbini said: "*There is no barrier to young and desirable elderly women attending congregational prayers in the mosque having virtue despite the dislike of attendance, as the dislike is due to an external factor, which is the fear of fitnah.*" Al-Ghurar al-Bahiyyah, 1/404

² Fath al-Aziz bi Sharh al-Wajiz, 4/286; Al-Ghurar al-Bahiyyah fi Sharh al-Bahjah al-Wardiyyah, 1/404. Al-Rafi'i's wording: "*If they wish to attend the mosque for congregational prayers with men, it is disliked for young women due to the fear of fitnah, but it is not disliked for elderly women.*"

³ Bada'i al-Sana'i, 1/275.

⁴ Al-Talkhis fi Ma'rifat Asma' al-Ashya', 75; Uyun al-Akhbar, 4/48; Mufid al-Ulum wa Mubid al-Humum attributed to Abu Bakr al-Khwarizmi, p. 397; Majma' al-Anhur, 1/109; Al-Furu', 8/18

Guideline Three: The prohibition becomes stricter as the number of men increases.

The presence of many men in a place is one of the strongest reasons for stricter rulings regarding women going out to such places. For this reason, scholars have considered it a valid reason to exempt women from the obligation of attending congregational prayers, including the highly emphasised Friday prayer.

Al-Kasani said: *"Women are prohibited from going out to gatherings of men because going out is a cause of fitnah (temptation). This is why congregational prayers and Friday prayers are not obligatory for them."*¹

Ibn Abidin said: *"Friday prayer is not obligatory for women because it involves gatherings of men."*²

Shaykhzadeh said: *"Friday prayer is not obligatory for women due to the prohibition of going out, especially to gatherings of men."*³

Al-Tahtawi expressed a similar opinion.⁴

Ibn Qudamah said: *"Women are not among those who should attend gatherings of men, and therefore congregational prayers are not obligatory for them."*⁵

He also said: *"Friday prayer involves gatherings of men, and women are not among those who should attend such gatherings."*⁶

¹ Bada'i al-Sana'i, 1/258.

² Hashiyat Ibn Abidin, 2/154 (with some rephrasing).

³ Majma' al-Anhur, 1/169.

⁴ Hashiyat al-Tahtawi 'ala Maraqqi al-Falah, p. 504. His wording: *"Friday prayer is not obligatory for women, even if they are included in the general address by way of association, because they are specifically exempted by the general prohibition of going out, as stated in the verse: {And abide in your houses} (Quran 33:33), especially in gatherings of men."*

⁵ Al-Mughni, 2/250.

⁶ Al-Mughni, 2/243.

Al-Nawawi¹ and Ibn al-Qayyim² expressed similar views.

If such precautions are taken in places of worship, they are even more necessary in other places where there is no valid need. Al-Qadi Iyad said: *"If they are prevented from going to the mosque, they should be even more restricted from other places."*³

Ibn Abd al-Barr said: *"The exemption of women from the obligation of Friday prayer is evidence that they should refrain from going out for other purposes."*⁴

Ibn Muflih and others said: *"The same applies to other gatherings, such as sermons, and even more so."*⁵ Al-Ayni expressed a similar opinion.⁶

The reason for considering the large number of men as a factor in stricter rulings on mixing is that the more men there are, the more looking occurs—which is a pathway to fitnah. Taking precautions against many eyes is more necessary than taking precautions against a single eye, as is evident.

Ibn al-Arabi, commenting on the hadith of Fatimah bint Qays, said: *"The Prophet ﷺ ordered her to move from the house of Umm Sharik to the house of Ibn Umm Maktum because it was better for her than staying in Umm Sharik's house, as Umm Sharik was known for having many visitors, which would lead to many people seeing her. In Ibn Umm Maktum's house, no one would see her."*⁷

¹ Sharh Muslim, 6/172.

² Al-Turuq al-Hukmiyyah, 2/721

³ Mawahib al-Jalil, 2/449; see also Ikmal al-Mu'lim, 2/355.

⁴ Al-Tamhid, 3/233.

⁵ Al-Furu', 2/422; Kashshaf al-Qina', 1/456.

⁶ Al-Binayah, 2/355.

⁷ Al-Jami' li Ahkam al-Quran, 12/228.

Ibn Hajar, in the context of arguing for Al-Shafi'i's opinion on the dislike of women performing i'tikaf in the mosque, said: "*Because she would be exposed to many people seeing her.*"¹

As the number of men increases, the need for precaution becomes more emphasised. Al-Ayni's statement about women going out for Eid prayers seems to allude to this, as he said: "*Aisha said, 'If the Messenger of Allah ﷺ had seen what women have introduced, he would have forbidden them from going to the mosques...' If this is the case with going to mosques, it is even more applicable to going to the prayer grounds.*"² This is because the gathering of men at the prayer grounds is larger.³

Two additional points can be added here:

1. The more men there are, the stronger the likelihood of the presence of evil and immoral individuals, as well as those who are easily tempted and have strong desires. These possibilities weaken as the number of men decreases. Hanafi scholars mentioned this in explaining the dislike of women going out for prayers.⁴

Al-Munawi, commenting on the hadith, "*If a woman applies perfume and passes by a group of men so that they can smell her fragrance, she is an adulteress,*" He said: "*Gatherings of men are rarely free from those who have strong desires for women, especially when perfume is involved. Desire may overcome them, leading to actual adultery.*"⁵

¹ Fath al-Bari, 4/275; see also Al-Majmu', 6/520.

² Umdat al-Qari, 6/303.

³ It is established among the principles of jurisprudence that the stronger and more apparent the reason for a ruling, the stronger the ruling itself. Here, the reason (kathrat al-rijal, the large number of men) is strong, and the ruling (prohibition of women going out to them) is accordingly strong.

⁴ See: Al-Hidayah fi Sharh Bidayat al-Mubtadi, 1/58; Al-Binayah Sharh al-Hidayah, 2/355.

⁵ Fayd al-Qadir, 1/276. The hadith is narrated by Abu Dawud (4173) and Al-Tirmidhi (2786) from the hadith of Abu Musa (may Allah be pleased with him).

Al-Nawawi alluded to this when discussing a woman traveling without a mahram, as travel in the past often involved gatherings and many men. He said: "*Travel brings together the riffraff and scoundrels of society who do not refrain from immoral acts, even with elderly women, due to their overwhelming desires, weak faith, and lack of honor.*"¹

2. A woman's natural disposition is to feel shy about entering gatherings of men. Doing so is a form of boldness that is unbecoming of a woman.

Preserving the integrity of natural dispositions is one of the objectives of Sharia. If a woman deviates from what protects her modesty and alters her natural disposition, she is criticised for it, especially since modesty is the adornment of a woman and one of her defining characteristics.

¹ Meaning, "and there is a gathering of them."

Guideline Four: Women are prohibited from deliberately making themselves prominent in gatherings of men.

Once it is established that the Sharia mandates modesty and avoiding exposure to men, it becomes clear that if a woman deliberately makes herself prominent in gatherings of men—such as standing on a platform in front of them or walking among their gatherings—she contradicts this principle and violates it severely.

Since a woman making herself prominent in this way draws the attention of men, it is considered a form of tabarruj (displaying beauty) that is prohibited. The essence of tabarruj is "appearing and rising above"¹, or "deliberately displaying what should be concealed"², or "seeking to be seen and noticed by others, as in the verse {buruj mushayyadah} (lofty towers)"³, meaning there is no barrier to conceal them.⁴ These definitions are closely related in meaning.

From this, it is clear that the prohibited tabarruj includes anything that draws men's attention to a woman, whether through her clothing and adornment, the sound of her jewelry, or her location.⁵ These actions vary in the degree of prohibition.

¹ Sharh Muslim, 9/105.

² Tafsir al-Qurtubi, 10/9. He added: "*It is said that stars are called buruj (lofty towers) because of their visibility and elevation.*" Ibn Faris said: "*The root letters ba, ra, and jim have two meanings: one is appearance and visibility, and from this comes the term buruj, which refers to the wide expanse of the eye with intense blackness and whiteness.*" (Maqayis al-Lughah, 1/238). This is because the whiteness of the eye, when intense, makes the blackness more apparent. Abu Ali al-Farisi said: "*The origin of tabarruj is ascending a tower (burj), as one who ascends a tower becomes visible to those who look at him.*" (Ruh al-Bayan, 7/170); see also: Al-Muharrar al-Wajiz, 4/383.

³ Tafsir al-Baydawi, 4/114; see also: Ghara'ib al-Quran wa Ragha'ib al-Furqan, 5/212; Tafsir Abi al-Sa'ud, 6/195; Tafsir al-Alusi, 9/407.

⁴ Al-Muharrar al-Wajiz, 4/195.

⁵ Stated by Al-Qurtubi in his Tafsir, 12/309.

Scholars have applied the term tabarruj to all these matters:

- Tabarruj through clothing and adornment: Ibn Faris said: "*The root letters ba, ra, and jim have two meanings: one is appearance and visibility... From this comes tabarruj, which is a woman displaying her beauty.*"¹

- Tabarruj through the sound of jewellery: Al-Qurtubi, commenting on the verse **{nor stamp their feet to draw attention to their hidden ornaments}**, said: "*If a woman does this out of joy for her adornment, it is disliked. If she does it to display herself and attract men, it is haram and blameworthy. The same applies to a man who stamps his shoes: if he does so out of pride, it is haram, as pride is a major sin. If he does it to show off, it is not permissible.*"²

- Tabarruj through location: This refers to a woman making herself prominent in a gathering of men, such as walking among their gatherings or standing on a platform in front of them. This is the focus of this discussion.

Anyone who understands the command of hijab would find it abhorrent for a woman to sit in a place where she is on display for men.³ Ibn al-Arabi, explaining the prohibition of women serving as judges, said: "*A woman cannot be expected to appear in gatherings or mix with men. If she is young, it is forbidden to look at her or speak to her. If she is bold and outgoing, she cannot sit in gatherings with men where she would be*

¹ Maqayis al-Lughah, 1/238.

² Tafsir al-Qurtubi, 12/238. Ibn Hayyan said: "*Abu Muhammad ibn Hazm said—in essence—that Allah prohibited them from this (i.e., tabarruj) because when a woman passes by men, they may not notice her, and she dislikes not being noticed. If they do this, they draw attention to themselves.*" (Al-Bahr al-Muhit, 6/414). Al-Zamakhshari said: "*If they are prohibited from making the sound of their jewellery known after being prohibited from displaying their jewellery, it is understood that the prohibition of revealing the locations of their jewellery is even more emphatic.*" (Al-Kashshaf, 3/237).

³ It has already been mentioned that part of complying with the command of hijab is not allowing women to stand in front of men during prayer or walk in front of them during a funeral procession.

*crowded among them and on display. No one who imagines or believes this has ever succeeded.*¹

Al-Juwayni, discussing the issue of a woman leading men in prayer, said: *"An imam needs to be visible and prominent, which is not suitable for women."*²

Scholars have also applied the term tabarruj to a woman entering gatherings of men and walking among them. Ata, commenting on the verse **{and do not display yourselves as in the days of ignorance}**, said: *"Women used to go out and walk among men. That was the tabarruj of the days of ignorance."*³

Safiyyah bint Abi Ubayd said: *"Umar (may Allah be pleased with him) saw a slave girl coming out of Hafsa's house, walking among the people, dressed like free women. He entered his daughter Hafsa's house and said, 'Who is the woman who came out of your house, walking among the men?' She said, 'That is the slave girl of my brother Abd al-Rahman.' He said, 'What makes you dress your brother's slave girl in the clothes of free women? I entered your house and thought she was a free woman. I intended to punish her.' In another narration: 'He disapproved of it and intended to punish her.'"*⁴

Al-Baji, explaining this hadith, said: *"Slave women are not required to cover themselves like free women. If they dress like free women, those who do not know them might think they are free women who are displaying themselves. This is why Umar prohibited it."*⁵ He described her action as tabarruj.

¹ Ahkam al-Quran, 3/483.

² Nihayat al-Matlab, 2/379.

³ Tabaqat Ibn Sa'd, 8/157.

⁴ Al-Muwatta, 2/981; Musannaf Abd al-Razzaq, 3/136 (with this wording).

⁵ Al-Muntaqa Sharh al-Muwatta, 7/307

Ibn Abd al-Barr, in his explanation, said: "*Umar disliked slave women dressing like free women so that they would not be mistaken for free women and accused of tabarruj.*"¹

Scholars have also applied the term tabarruj to a woman making herself prominent by standing on something elevated—such as a horse, a platform, or similar—in a gathering of men.

Al-Barkawi al-Hanafi, commenting on the statement of Umar ibn Abd al-Aziz, "*No Muslim woman should ride on a saddle,*" said: "*This applies if she is young and rides to display herself and be seen. However, if she is elderly or young but rides with her husband for a valid reason, such as for jihad, hajj, or umrah, and is properly covered, there is no harm.*"²

His statement, "*rides to display herself,*" means with the intention of making herself visible to men.

His statement, "*and to be seen,*" indicates that permissibility depends on the presence of a valid need, as he explicitly stated afterward.

Burhan al-Din al-Hanafi mentioned two reasons for the prohibition of women riding in the presence of men. The second reason was: "*This involves publicising fitnah and exposing it to men, while women have been commanded to cover themselves.*"³

A woman standing on a platform in front of a gathering of men is something women naturally feel shy about. If a woman does this, it indicates a lack of modesty. This is why it is considered a characteristic of a bold woman (barzah)—one who is not secluded.

¹ Al-Istidhkar, 8/542.

² Al-Tariqah al-Muhammadiyah ma'a Sharhiha al-Bariqah al-Mahmudiyyah, 4/176.

³ Al-Muhit al-Burhani, 5/384; see also: Al-Siyar al-Kabir and its commentary, 1/137; Al-Durr al-Mukhtar with Hashiyat Ibn Abidin, 6/423; Al-Bahr al-Ra'iq, 8/215.

The first meaning he mentioned is: "*This is an imitation of men, and they have been prohibited from that.*"

Al-Bazdawi said: "*A secluded woman (mukhaddarah) is one who is not seen by non-mahram men. As for a woman who sits on a platform and is seen by non-mahram men, she is not secluded. If a secluded woman appoints someone to represent her in a legal dispute and needs to take an oath... the judge sends three trustworthy men to her, and one of them administers the oath while the other two witness it.*"¹

Contemporary examples of this type of tabarruj include:

1. Flight attendants, train attendants, and restaurant hostesses moving among male passengers or customers. This description refers to the general scenario, as this work involves the highest level of mixing with men, falling under the fifth level of mixing discussed earlier.
2. A woman standing on a stage or platform in front of men.
3. A woman teaching male students while standing in front of them in a classroom.
4. Women walking in front of men during award ceremonies, graduations, and similar events.

¹ al-Bināyah, 9/225.

Guideline Five: When people's piety weakens, stricter measures are taken regarding mixing and women going out.

This is because the likelihood of corruption increases. When piety weakens, women tend to display their adornment and engage in tabarruj, while men and women become more likely to interact inappropriately, leading to widespread immorality and sin.

Scholars derived this from Aisha's statement (may Allah be pleased with her):

"If the Messenger of Allah ﷺ had seen what women have introduced, he would have forbidden them from going to the mosques."

This is a foundational principle that changes in circumstances necessitate greater precaution and stricter measures.

Ibn al-Jawzi, after mentioning Aisha's statement, said: *"A jurist should weigh the circumstances, just as a doctor weighs the time, age, and location before prescribing treatment."*¹

Ibn Battal said: *"This is evidence that women should not go out to mosques if corruption becomes widespread among people."*²

Ibn Rajab said: *"Aisha (may Allah be pleased with her) is indicating that the Prophet ﷺ permitted certain things in his time because there was no corruption, but if corruption arises afterward, the ruling changes."*³

¹ Talbis Iblis, p. 212

² Sharh Sahih al-Bukhari, 2/471

³ Fath al-Bari, 5/308

Despite the explicit text prohibiting the prevention of women from going to mosques¹, the imams of the schools of thought considered changes in people's behavior as a reason to restrict women, interpreting the prohibition as applicable to the conditions of women at that time, who were modest, reserved, and avoided adornment.

Abu Hanifa said: *"Women were permitted to go out for Eid prayers, but today I dislike it."*²

Abdullah ibn Ahmad said: *"I heard my father being asked about women going out for Eid prayers, and he said, 'I do not approve of it in our time because they are a source of fitnah.'"*³

Malik said: *"As for young women, they should not go out for the prayer for rain, Eid prayers, or to mosques except in extreme cases..."* Ibn Rushd said: *"Malik's opinion, despite the hadith about young women and those in seclusion going out for Eid prayers, is based on the changes in women's behavior, as they no longer go out in the manner they were permitted to... Aisha said, 'If the Messenger of Allah ﷺ had seen what women have introduced, he would have forbidden them from going to the mosques.'"*⁴

Al-Shafi'i said: *"It is disliked for women who are adorned to attend Eid prayers."* Al-Nawawi said: *"If it is said that this contradicts the hadith of Umm Atiyyah, we respond that it is established in the Sahihayn that Aisha*

¹ This is mentioned in the hadith of Ibn Umar (may Allah be pleased with him): *"Do not prevent the female servants of Allah from the mosques of Allah."* Narrated by Al-Bukhari (900) and Muslim (442).

² Mukhtasar Ikhtilaf al-Ulama, 1/231; see also Fath al-Qadir, 1/365

³ Masail al-Imam Ahmad riwayat Abdullah, p. 130; similarly in Masail Salih, 1/468.

⁴ Abu Ubayd said: Al-fart refers to meeting someone after some days. It is said: *"I met him after al-fart,"* meaning after some time. (Mujmal al-Lughah by Ibn Faris, p. 717; Jamharat al-Lughah, 2/755).

said..." and he mentioned her statement.¹ Similar statements have been reported from many of their followers.²

¹ Al-Bayan wa al-Tahsil, 1/421; see also Al-Dhakhirah, 2/219; Fatawa Ibn Hajar al-Haytami, 1/203.

² Al-Majmu', 5/9; Sharh Muslim, 6/178; Tashil al-Maqasid li Zuwwar al-Masajid by Ibn al-Imad, p. 580.

Third Section: Guidelines for Leniency in the Ruling on Gender Mixing

Guideline One: Leniency is shown in mixing with women for whom the likelihood of fitnah (temptation) is low.

Mixing with women, in general, carries the risk of fitnah. However, in some cases, this risk is weaker. The most evident case is that of elderly women who have reached the age of retirement. At this stage, the likelihood of fitnah is generally absent, as men no longer desire them, and rare exceptions do not affect the ruling.¹

In Sahih al-Bukhari, Sahl ibn Sa'd (may Allah be pleased with him) said: *"We used to rejoice on Fridays because an elderly woman would... After we prayed the Friday prayer, we would leave and greet her, and she would serve us food."*²

Ibn Abd al-Barr said: *"This is evidence that it is permissible for elderly, righteous women to interact with men in her home and converse with them. Similarly, she may visit them in their homes, and they may see her and she may see them in a manner that is permissible, appropriate, and beneficial without causing harm. Allah says: {As for elderly women who no longer hope for marriage, there is no blame on them if they remove their outer garments without displaying adornment}³. In Arabic, ghashyan (interaction) refers to brief visits and encounters."*⁴

¹ Al-Qarafi said: *"In most cases in Sharia, potential causes (mazinnah) are not considered if we are certain that the expected outcome (maznun) will not occur."* (Al-Furuq, 2/178). Here, the potential cause is women appearing before men, and the expected outcome is fitnah (temptation). The leniency here refers to mixing, not being alone with a woman, touching her, or traveling with her without a mahram. See: Sharh al-Nawawi 'ala Muslim, 8/104; Al-Ghurar al-Bahiyyah, 1/138. See also: Kifayat al-Akhyar, p. 353.

² Narrated by Al-Bukhari (6248).

³ Quran 24:60

⁴ Al-Tamhid, 19/158

In Sahih Muslim¹, there is the account of Abu Bakr and Umar (may Allah be pleased with them) visiting Umm Ayman after the death of the Prophet ﷺ. Al-Bayhaqi mentioned this in the chapter titled "*What Has Been Narrated About Elderly Women*"², a chapter he dedicated to explaining the rulings that differ for elderly women compared to other women.

Imam Malik even permitted a man to eat with an elderly woman and for her to sit with craftsmen while waiting for her needs to be met, as reported by his students.³

The permission for elderly women to remove their jilbab (outer garment) also indicates leniency in the ruling of hijab for them. If it is permissible for them to remove the jilbab, which covers the body, it is even more permissible for them to forgo the hijab (barrier), which covers the person.

Ibn Atiyyah said: "*Since it is generally the case that women of this age are no longer desired by men, they are permitted what others are not, and the burden of strict covering is lifted from them, as the reason for such modesty no longer applies to them.*"⁴

As for women with physical deformities, there is no doubt that the likelihood of fitnah with them is weaker than with others.⁵ However, this alone is not sufficient to grant them the same leniency as elderly women, as they still possess other feminine qualities, such as a pleasant voice or a graceful figure, which may attract men.

¹ Sahih Muslim (2454), which includes her crying when she mentioned the cessation of revelation from the heavens.

² Sunan al-Bayhaqi, 7/93.

³ Al-Muwatta, 2/524; Jami' Ibn Abi Zayd al-Qayrawani, p. 243; Al-Dhakhirah, 9/335.

⁴ Al-Muharrar al-Wajiz, 4/195.

⁵ This is why some scholars permit looking at such women. See: Kifayat al-Akhyar, p. 351; Tuhfat al-Muhtaj, 5/417; Fath al-Mu'in bi Sharh Qurrat al-'Ayn, p. 446; Al-Furu', 9/266; Sharh Muntaha al-Iradat, 2/288.

The general principle is that the Sharia warns against the fitnah of women in a comprehensive manner, addressing all women—whether beautiful or not—as in the verse: *{Beautiful for people is the love of desires, such as women}*¹. The Prophet ﷺ said:

*"I have not left behind a fitnah more harmful to men than women."*²

He also said:

*"Fear the world and fear women, for the first fitnah of the Children of Israel was caused by women."*³

The narration of Ibn Mas'ud (may Allah be pleased with him) states:

*"A woman is awrah (something to be concealed). When she goes out, Satan beautifies her in the eyes of others."*⁴

This indicates that Satan beautifies every woman, regardless of her appearance, as the narration is general and not restricted to any specific description.

Moreover, beauty is subjective and varies from person to person. What one finds attractive, another may not. As Al-Juwayni said: *"It is appropriate for the principles of Sharia to close the door on such matters and avoid detailing every possible scenario."*⁵

¹ Quran 3:14

² Surah Al-Imran, 3:14. Abd al-Malik ibn Habib narrated in Adab al-Nisa', p. 187, that Aisha (may Allah be pleased with her) used to say: *"Part of our misfortune is that Allah made us the pinnacle of desires and mentioned us first in His verse: {Beautiful for people is the love of desires, such as women, children, heaps of gold and silver, branded horses, cattle, and crops}."*

³ Narrated by Al-Bukhari (5096) and Muslim (2740).

⁴ Narrated by Al-Tirmidhi (1173).

⁵ Nihayat al-Matlab, 12/31. This was mentioned in refuting the opinion that permits looking at a woman's face and hands if there is no fear of fitnah. Al-Ghazali also explained it by saying: "Because desire cannot be regulated." (Kifayat al-Akhyar, p. 351).

However, in situations where mixing is unavoidable, preference should be given to employing women for whom the likelihood of fitnah is lower, as a way of choosing the lesser of two evils.

Guideline Two: Leniency is shown in mixing with men who have lost or weakened their desires.

This is because the likelihood of fitnah is either absent or weak in such cases. Therefore, the texts permit mixing with men who have no sexual desire (ghayr uli al-irbah)¹ and do not require women to cover in front of them, as in the verse:

وَلَا يُبْدِينَ زِينَتَهُنَّ إِلَّا مَا ظَهَرَ مِنْهَا وَلْيَضْرِبَنَّ بِخُمُرِهِنَّ عَلَىٰ جُيُوبِهِنَّ وَلَا يُبْدِينَ زِينَتَهُنَّ إِلَّا لِبُعُولَتِهِنَّ أَوْ آبَائِهِنَّ أَوْ أَبْنَائِهِنَّ أَوْ بُعُولَتِهِنَّ أَوْ إِخْوَانِهِنَّ أَوْ بَنَىٰ إِخْوَانِهِنَّ أَوْ بَنَىٰ أَخَوَاتِهِنَّ أَوْ نِسَائِهِنَّ أَوْ مَا مَلَكَتْ أَيْمَانُهُنَّ أَوِ التَّابِعِينَ غَيْرَ أُولَىٰ إِلَٰرَبَةٍ مِنَ الرِّجَالِ

{And they should not display their adornment except to their husbands} until it says {or male attendants who have no sexual desire}².

Similarly, a mukhannath (effeminate man) by nature, not by choice³, is included in this category. In Sahih al-Bukhari and Sahih Muslim, Aisha (may Allah be pleased with her) narrated that:

“An effeminate man used to visit the wives of the Prophet ﷺ, and they considered him to be among those with no sexual desire. One day, the Prophet ﷺ entered while the man was with one of his wives, describing a woman by saying, “When she comes forward, she comes forward with four (folds of her dress), and when she turns away, she turns away with eight.”

¹ These are men who are not attentive to women’s affairs, as previously mentioned.

² Surah An-Nur, verse 31

³ A mukhannath is a man who resembles women in his manners, speech, and movements. This may be natural or artificial. The latter is condemned and cursed in the hadith, not the former. If it is natural, such a man typically has no desire for women. See: Al-Mufhim, 18/15; Sharh Muslim by Al-Nawawi, 14/163; Umdat al-Qari, 22/42.

The Prophet ﷺ said: "I see that this one knows what is here. Do not let him enter upon you." So, they prevented him from entering.¹

The initial permission for him to enter indicates that it is permissible for men with no sexual desire to interact with women. However, the Prophet's statement, *"I see that this one knows what is here,"* indicates that the key factor is the presence of knowledge, discernment, and awareness of women's affairs. If a man possesses these qualities, he is prohibited from entering upon women, and women are prohibited from appearing before him, as Al-Nawawi explained.²

From this, it is understood that an elderly man is not equivalent to a man with no sexual desire, as he is still capable of discernment and knowledge, making the likelihood of fitnah still present. However, he is not equivalent to a young man either, as fitnah is more likely with the latter. This is why scholars recommend appointing older men for roles that require interaction with women, as *"youth is a form of madness,"* as Abu al-Darda' said.³

Among the roles mentioned by scholars is that of a deputy judge who is sent to a woman's home if her testimony or oath is needed.

In Manh al-Jalil, it is stated: *"If the judge needs to send someone to her home, he should choose someone whose age, piety, and righteousness ensure his trustworthiness to handle her case."*⁴

¹ Narrated by Al-Bukhari (5887), Muslim (2180), and Abu Dawud (4107) in the chapter on the verse: **{Or male attendants who have no sexual desire}**. In the hadith of Sa'd ibn Abi Waqqas, narrated by Ibn Abi Shaybah in Al-Adab, p. 237: *"I do not think this man is anything but a pretender. I think he knows about women's affairs."* The explanation of *"those with no sexual desire"* was previously mentioned in the first section of the first chapter of the third level.

² Sharh Muslim, 14/163.

³ Al-Zuhd by Imam Ahmad, p. 116.

⁴ Manh al-Jalil, 8/307.

In Al-Iqna' and its commentary, it is stated: *"The judge should strive to ensure that his deputies and assistants are elderly or middle-aged men of religion, knowledge, and integrity, as the opposite would harm the people. Elderly and middle-aged men are preferable to others, for youth is a form of madness, and the judge deals with women, and mixing young men with women leads to corruption."*¹

Similarly, a eunuch is not included in the category of "those with no sexual desire," as he still possesses discernment, knowledge, and some level of desire. Therefore, the majority of scholars prohibit him from looking at women or being alone with them.² However, his desire is weaker than that of other men.³ If there is a need for a man to perform a role that involves frequent interaction with women, a eunuch is preferred over others. The Shafi'i scholar Al-Mawardi said: *"It is preferred for the judge, when dealing with women in court, to have a eunuch present to organise the litigants."*⁴

¹ Kashshaf al-Qina', 6/318. A similar statement is found in Al-Sharh al-Kabir, 11/406, and Sharh al-Muntaha, 3/501. The phrase *"for youth is a form of madness"* is an addition from Al-Sharh al-Kabir and Sharh al-Muntaha.

² Bada'i al-Sana'i, 5/122; Mughni al-Muhtaj, 4/209; Asna al-Matalib, 3/112; Bada'i al-Fawa'id, 3/1095.

³ Mughni al-Muhtaj, 2/38; Al-Sharh al-Mumti', 8/311.

⁴ Al-Hawi al-Kabir, 16/277.

Guideline Three: Distance lessens the ruling on mixing.

This is because the likelihood of fitnah weakens with distance, as the causes of fitnah are reduced. In contrast, closeness increases the risk. Therefore, scholars have instructed women, when they must be present in places of worship with men, to maintain as much distance as possible.

Ibn Khuzaymah said: *"The rows of women are better if they are far from the rows of men."* He derived this from the hadith of Abu Hurairah (may Allah be pleased with him): *"The best rows for women are the last, and the worst are the first."*¹

Al-Ayni said: *"It is the Sunnah for women to maintain distance from men during Tawaf."*²

Some scholars conditioned the permissibility of women attending congregational prayers and Eid prayers on the ability to maintain distance. Al-Marghinani, a Hanafi scholar, said: *"There is no harm in an elderly woman going out for Fajr, Maghrib, and Isha prayers to attend the congregation, provided the prayer area³ is spacious enough for her to isolate herself from men."*⁴

Al-Khurashi, a Maliki scholar, said—while discussing the difference between the prayer ground and the mosque for Eid prayers—: *"The women were kept at a distance from the men. After the Prophet ﷺ finished his sermon and prayer, he went to them to advise and remind them. If they had been close, they would have heard the sermon. As for the mosque, even if it is*

¹ Sahih Ibn Khuzaymah, 3/96. The hadith is narrated by Muslim (440).

² Umdat al-Qari, 9/262. This is derived from the hadith of Umm Salamah (may Allah be pleased with her), in which the Prophet ﷺ said to her: *"Perform Tawaf behind the people while riding."* She said: *"So I performed Tawaf while the Messenger of Allah ﷺ was leading the people in prayer near the Kaaba."* Narrated by Al-Bukhari (1552) and Muslim (1276).

³ Sharh Mukhtasar Khalil, 2/103.

⁴ Al-Hidayah, 1/58; Al-'Inayah, 2/83; Al-Binayah, 2/355; Sharh Fath al-Qadir, 1/366; Durar al-Hukam, 1/86

*large, crowding occurs at its entrances, with men and women entering and exiting, leading to the risk of fitnah in places of worship."*¹

If the distance is increased to the point where a man who knows the woman would not recognise her if he saw her, it appears that this distance nullifies the ruling on her going out, equating her to a woman in hijab.

An example of this is the narration from Aisha (may Allah be pleased with her), who said:

"Sawdah went out after the hijab was imposed to relieve herself. She was a large woman who stood out among women. Umar ibn al-Khattab saw her and said, 'O Sawdah, by Allah, you cannot hide from us.'

In another narration, he said,

*'We have recognised you, Sawdah,' hoping that the verse of hijab would be revealed."*²

This indicates that hijab requires that a man who knows a woman should not recognise her if he sees her after the hijab is imposed. Ibn Hajar said: *"After the hijab was revealed, women covered themselves with their garments, but their figures could still be distinguished. This is why Umar said to Sawdah the second time, after the hijab was revealed, 'By Allah, you cannot hide from us.'"*³

This can also be understood from Aisha's statement when she described the believing women who attended Fajr prayer: *"They would return to their homes without anyone recognising them in the darkness."*⁴

¹ Sharh Mukhtasar Khalil, 2/103.

² Narrated by Al-Bukhari (146) and Muslim (2170).

³ Fath al-Bari, 1/249.

⁴ Narrated by Al-Bukhari (867) and Muslim (645). See also: Ikmal al-Mu'lim, 2/610; Al-I'lam by Ibn al-Mulaqqin, 2/234.

Fourth Section: Guidelines on the Reasons for Prohibiting Gender Mixing

Guideline One: The reason for prohibiting gender mixing is "the likelihood of fitnah," not "suspicion."

Scholars have consistently stated that the reason for prohibiting gender mixing is the likelihood of fitnah, which is inherent in human nature, not mere suspicion—as some contemporaries have mistakenly assumed, leading them to conclude that if suspicion is absent, mixing is entirely permissible. However, if suspicion is added to the likelihood of fitnah, it becomes a strong reason to prohibit mixing at all levels, even if there is a need for it.¹

This is why scholars prohibited allowing suspicious or untrustworthy individuals to interact with women in buying and selling. Al-Qadi Abu Ya'la, Al-Mawardi, and Al-Qarafi said: *"If there are individuals in the market who specialise in dealing with women, the market inspector must assess their character and trustworthiness. If they are found to be trustworthy, they are allowed to interact with women. If they are found to be suspicious or immoral, they are prohibited from interacting with women and disciplined for approaching them."*² Scholars also prohibited judges from appointing untrustworthy individuals to handle cases involving women.³

The likelihood of fitnah is not limited to men, as is evident. Al-Muwaffaq Ibn Qudamah said, while discussing the evidence for those who prohibit women from looking at men: *"Allah commanded women to lower their gaze, just as He commanded men to do so. Women are one of the two types of humans, so it is prohibited for them to look at the other type, by analogy to men. This is confirmed by the fact that the reason for prohibiting*

¹ Necessities have their own rulings, as is well known.

² Al-Ahkam al-Sultaniyyah by Abu Ya'la, 1/286; Al-Ahkam al-Sultaniyyah by Al-Mawardi, p. 372; Al-Dhakhirah, 10/53

³ Manh al-Jalil, 8/307

*looking is the fear of fitnah, and this is even more applicable to women... Fitnah arises more quickly with women."*¹

Once it is established that the reason for the prohibition is the likelihood of fitnah, it becomes clear that the presence of a mahram (male guardian) does not lift the prohibition, as it does not prevent men from looking at the woman. Fitnah is not eliminated by his presence, but it is reduced, as his presence deters some boldness in looking and prevents men from unnecessarily conversing with the woman or becoming overly familiar with her, as in the case of sellers.

Below are some statements from scholars explaining the reason for prohibiting mixing at each level:

1. First Level (Mixing in Public Spaces): Ibn Hajar, commenting on the previously mentioned hadith of Umm Salamah about men delaying their departure after prayer until the women had left, said: *"This shows the importance of avoiding anything that could lead to harm and the dislike of men mixing with women in public spaces."*²

2. Second Level (Brief Interactions): Allah explicitly stated the reason when He commanded modesty during such interactions, saying: *{That is purer for your hearts and their hearts}*³, meaning from the temptations and whispers of Satan and suspicion.⁴

Al-Hakim al-Tirmidhi said: *"Speech has a tone, and in tone there is fitnah and desire. If a woman speaks to a non-mahram man, she gives him a taste of her desire... This is why the Prophet ﷺ said: 'If something happens during prayer, men should say "subhanallah", and women should clap,' because the*

¹ Al-Mughni, 7/106.

² Fath al-Bari, 2/336.

³ Quran 33:53

⁴ Tafsir al-Tabari, 20/313; Tafsir al-Razi, 25/180; Ahkam al-Quran by Ibn al-Arabi, 1/616; Al-Jami' li Ahkam al-Quran, 14/227; Al-Hidayah ila Bulugh al-Nihayah by Makki ibn Abi Talib, 9/5863; Tafsir al-Nasafi, 3/250.

*tone of a woman's voice saying "subhanallah" could cause fitnah among the worshippers."*¹

Hasan al-Basri said: *"A man will continue to talk to a woman until he experiences desire."*²

3. Third Level (Social Gatherings): Al-Nawawi, discussing the benefits of the hadith of Jabir (may Allah be pleased with him) about women isolating themselves from men during Eid prayers, said: *"This shows that women should be kept at a distance from men to avoid fitnah, looking, or inappropriate thoughts."*³

Al-Shawkani explained this isolation by saying: *"Because mixing may lead to fitnah arising from looking or other causes."*⁴ A similar statement was made by the author of Matlab Uli al-Nuha.⁵

Prolonged social interaction leads to conversation, then affection, then attachment, and then to other things. Abu Bakr al-Amiri said: *"When men and women mix, gather in one place, and look at each other, something stirs in the man's heart for the woman, and in the woman's heart for the man. From this arises love, followed by affection and desire, leading to intimacy and companionship, as was the custom of the pre-Islamic era of ignorance. This is what the Quran prohibits and equates with adultery, as Allah says: {Not those who commit unlawful sexual intercourse nor those who take secret lovers}"*⁶ ⁷

In the fourth level (social interaction and communication), Al-Lakhmi said: *"Frequent conversation between a young woman and a man*

¹ Al-Manhiyyat, p. 65. The hadith is narrated by Al-Bukhari (1203) and Muslim (422).

² Tafsir Ibn Abi Hatim, 10/3352.

³ Sharh Muslim, 6/172 (abridged).

⁴ Nayl al-Awtar, 3/362.

⁵ 1/798.

⁶ Quran 4:25

⁷ Ahkam al-Nazar, pp. 287–288.

*should be avoided to prevent fitnah."*¹ Al-Mawardi said: *"Prolonged conversation with her is a cause of temptation."*² Al-Shirazi expressed a similar opinion.

As for the fifth level (companionship), the likelihood of fitnah reaches its peak. In fact, it is a direct path to immorality. Al-Sarakhsi said: *"Adultery, before a woman makes it a habit, arises from companionship, familiarity, intimacy, and idleness."*³

Ibn al-Hajj, while warning against men mixing with their female cousins, neighbours, or those they grew up with, said: *"This leads to many violations due to constant interaction, conversation, joking, and being alone together."*⁴

Al-Mushtuli al-Shafi'i said: *"Some people are careless in matters such as allowing a boy to enter their homes to run errands, eat, and drink with their wives and daughters until he grows a beard. When someone knowledgeable tells them, 'It is now haram for this grown boy to enter your homes,' the man and woman respond, 'He grew up with us and our children; he is like one of them, and we have only seen good from him.' They fail to recognise this great calamity, and most corruption arises from this."*⁵

He also said: *"Some people, such as a weaver, practice their craft at home, with their workers and apprentices. Their wife enters among them, and the husband instructs her to assist the workers by spinning yarn or other tasks. They see no harm in this, and it becomes a habit. Familiarity and affection develop between non-mahrams due to this vile practice..."*⁶

¹ Mawahib al-Jalil, 5/119.

² Al-Hawi al-Kabir, 9/413.

³ Al-Mabsut, 9/72.

⁴ Al-Madkhal, 4/104.

⁵ Salwat al-Ahzan, p. 60 (digital edition).

⁶ Meaning a tailor.

Another point may be added, one that pertains specifically to the third level of interaction and those above it, and that is: The prolonged presence of a woman among men rarely passes without some part of her becoming exposed to them, due to the difficulty of maintaining full concealment during extended presence.

The Sunnah alludes to this. When the Prophet ﷺ instructed Fatimah bint Qays to observe her waiting period (iddah) in the house of Umm Sharik, he later changed his mind and said:

*"Umm Sharik is a woman who receives many guests. I fear that your headscarf may slip, or your garment may reveal your legs, and the men may see something of you that you dislike. Instead, move to the house of your cousin, Ibn Umm Maktum, for he is a blind man, and you can remove your garments in his presence."*¹

Al-Baji said: *"The Prophet's ﷺ statement to Fatimah bint Qays, 'Observe your waiting period in the house of Ibn Umm Maktum, for he is a blind man, and you can remove your garments in his presence,' implies that it is difficult for a woman to remain in a state where people are permitted to look at her."*²

Imam Malik, Al-Kasani, Al-Nawawi, and Al-Rafi'i also referred to this issue.³

This is evident in households where non-mahram men and women gather. It does not take long before a man sees the face of the woman sitting with him or glimpses her arms and legs. This is because it is difficult for a woman to remain fully covered and cautious for long periods, especially when she needs to move, stand, sit, eat, or perform other activities.

¹ Narrated by Muslim (2942).

² Al-Muntaqa, 4/105.

³ Al-Bayan wa al-Tahsil, 3/434; Bada'i al-Sana'i, 4/189; Rawdat al-Talibin, 3/9; Sharh al-Wajiz by Al-Rafi'i, 7/22

Guideline Two: Mixing weakens or eliminates a woman's modesty, depending on its level.

A woman's habitual mixing with men diminishes her modesty, which is one of her most essential and perfect qualities. Al-Raghib al-Isfahani said: "*Shyness is the confusion of the soul due to extreme modesty. It is praiseworthy in women and children but blameworthy in men by consensus.*"¹

A Persian scholar was asked: "*What is the most disgraceful thing for a person's character?*" He replied: "*For kings, it is low ambition; for scholars, it is following desires; and for women, it is a lack of modesty.*"³

The Sharia has honoured and protected this noble trait. It exempted women from the obligation of earning a living and providing financially, as this typically requires going out and interacting with men.

Umar (may Allah be pleased with him) indicated that limiting a woman's interaction with men by reducing her outings preserves her modesty. Commenting on the verse: *{Then one of the two women came to him walking shyly}*⁴, he said: "*She was not one of those bold women who go out frequently. Rather, she came covered, placing the sleeve of her garment over her face out of modesty.*"⁵

Al-Zajjaj said: "*She walked like someone unaccustomed to going out, modest and shy.*"⁶

¹ Al-Dhari'ah ila Makarim al-Shari'ah, p. 207.

² Meaning a flaw or ugliness. See: Al-Mukhasas, 3/385; Al-Sihah, 6/2217; Al-Misbah al-Munir, 2/635. Al-Sarakhsi said: "Modesty is an adornment for women." (Al-Mabsut, 5/208).

³ Al-Muru'ah by Ibn al-Marzuban, p. 104

⁴ Quran 28:25

⁵ Musannaf Ibn Abi Shaybah, 6/334; Tafsir al-Tabari, 18/219; Tafsir Ibn Abi Hatim, 9/2965; authenticated by Ibn Kathir in Tafsir al-Quran al-Azim, 6/228228

⁶ Ma'ani al-Quran, 4/140.

Al-Razi said: *"When a woman remains in this state—staying at home and not going out to men—she becomes accustomed to chastity and avoiding adultery."*¹

Al-Mushtuli al-Shafi'i criticised those who instruct their wives to interact with workers and converse with them, saying: *"Conversation and joking between them become frequent, until their modesty is lost."*²

¹ Mafatih al-Ghayb, 9/530

² Salwat al-Ahzan, p. 60 (digital edition).

Fifth Section: Guidelines on Accountability for Mixing

Guideline One: Unauthorised mixing does not permit accidental glances.

It is established in Sharia that a Muslim is prohibited from exposing themselves to fitnah and is commanded to avoid its causes.

Specifically, looking has been explicitly prohibited. In the hadith of Abu Sa'id (may Allah be pleased with him), the Prophet ﷺ said:

"Avoid sitting in the streets." They said: "O Messenger of Allah, we have no choice but to sit in our gatherings to converse." The Prophet ﷺ said: "If you insist on sitting, then give the street its rights." They asked: "What are its rights?" He said: "Lowering your gaze, refraining from causing harm..."¹

One of the main reasons for prohibiting sitting in the streets is the risk of looking. Al-Qadi Iyad said: *"This clarifies the reason for the prohibition of sitting in the streets: the risk of fitnah due to the presence of young women and the fear of looking at them and being tempted by them."*²

Ibn Hajar said: *"A person is commanded not to expose themselves to fitnah. The Prophet ﷺ encouraged them to avoid sitting [in the streets] to eliminate the cause,"*³ meaning to block the means of looking. Many scholars have expressed similar opinions.⁴

¹ Narrated by Al-Bukhari (2465) and Muslim (2121). The mention of these five rights after the prohibition of sitting in the streets indicates that neglecting them is one of the reasons for the prohibition. The Prophet ﷺ began with lowering the gaze, as all narrations of the hadith consistently prioritize it.

² Ikmal al-Mu'lim, 7/44; similarly, Al-Nawawi in Sharh Muslim, 14/142.

³ Fath al-Bari, 11/16.

⁴ Ibn Abi Sufra, a Maliki scholar, said: *"This involves blocking the means, as sitting in the streets is a means to allowing the gaze."* (Sharh al-Bukhari by Ibn Battal, 6/589). If it is said: *"The Prophet ﷺ permitted sitting when the Companions insisted, saying, 'If you insist on sitting, then give the street its rights...'"*, the response is: This concession is conditional on necessity, as the Prophet ﷺ mentioned it in consideration of their need, which they

If a man deliberately mixes with women without a valid reason, he has violated this command and exposed himself to looking. If he looks, he is accountable for his gaze and is not covered by the concession for the first glance. The first glance is excused due to the difficulty of avoiding it, as it is involuntary. However, in this case, the man did not find it difficult to avoid; rather, he engaged in the cause of looking by going to a place where he expected it to happen. His action is unauthorised, and the resulting looking and temptation are sins for which he is accountable. This is supported by the principle: *"What results from an unauthorised action is liable."*

This is like someone entering another's home without permission. Whatever they see of private areas is not excused, even if they did not intend to look.

A similar principle is mentioned by Al-Wansharisi regarding the impurity of disbelievers' bodies that may affect those living among them: *"There is no concession for them or their companions regarding the impurities that affect their clothes and bodies, as the concession is conditional on the difficulty of avoiding it. There is no difficulty when they choose to reside and act improperly."*¹

Scholars have prohibited men from entering women's markets without a valid reason, even if they do not repeatedly look. Ibn al-Arabi said: *"I heard the elders of knowledge say, 'Men should only enter the markets of books and weapons.'"*

Al-Qurtubi commented: *"What the elders of knowledge mentioned is excellent, as these markets are free from looking at women and mixing with*

expressed by saying, *"We have no choice but to sit in our gatherings to converse."* If there is no necessity, sitting violates the Prophet's ﷺ command to avoid sitting.

¹ Al-Mi'yar al-Mu'rib, 2/141.

*them, as books and weapons are not related to women's needs. Other markets are filled with women."*¹

In contrast, if a man enters the market for a valid reason and unintentionally looks but then averts his gaze, he is covered by the concession mentioned in the hadith, as his entry is authorised.

¹ Ahkam al-Quran, 3/434; Tafsir al-Qurtubi, 13/17.

Guideline Two: Those who cause unauthorised mixing are partners in the sins that occur, no matter how numerous.

Whoever causes men and women to gather in one place without a valid need is a partner in the sins that result from this gathering, as the principle states: "*Those who assist in or facilitate sin are partners of the one who commits it.*"¹

This includes organising recreational events and exhibitions that do not meet the level of necessity, as well as other gatherings.

This differs from gatherings that occur naturally, such as markets, where the gathering is caused by people's needs.

The scholars' discussions on building public baths (hammams)—places for bathing²—support this principle. Public baths are facilities needed for purification, especially in winter when water is heated for bathers, as not every home has this capability.³ Several Companions and successors, such as Ibn Abbas, Abu Hurairah, Abu al-Dardaa, Khalid ibn al-Walid, Al-Hasan, and Ibn Sirin, entered them.⁴

However, since some bathers do not take precautions to cover themselves, scholars stipulated that entering a bath is only permissible if one does not expect to see what is unlawful.⁵

¹ See: Kashf al-Asrar, 1/188; Bada'i al-Sana'i, 3/188; Al-Mustadrak 'ala Majmu' Fatawa Shaykh al-Islam, 5/129; Al-Furu', 13/185; Ighathat al-Lahfan, 2/289; Kashshaf al-Qina', 6/167.

² See: Al-Mu'jam al-Wasit, 1/200; Mu'jam Lughat al-Fuqaha, p. 186. Ibn Sidah said: "Bathing (istihmam means bathing or washing)

³ Al-Rahibani reported: "*Whoever Allah wishes good for, He makes them a caretaker of a mosque. Whoever Allah wishes evil for, He makes them a caretaker of a bath.*" The caretaker (qayyim) is one who earns his livelihood from the bath. (Matlab Uli al-Nuha, 1/186).

⁴ See: Sharh al-Umdah by Ibn Taymiyyah, 1/450.

⁵ See: Musannaf Ibn Abi Shaybah, 1/103–104.

Despite the need for public baths, Imam Ahmad disliked using them as a source of income. Abu Dawud said: *"I asked Ahmad about renting baths. He said, 'I fear it,' as if he disliked it."*¹

Ibn Taymiyyah reported: *"If someone owns a bath, they should not sell it as a bath but as real estate and demolish the bath."* He disliked its income.²

Ibn Qudamah said: *"He disliked it because of the sins that occur there, such as exposing private parts and seeing them."*³

Therefore, scholars prohibited building baths in places where they are not needed, such as warm regions. Al-Qadi Abu Ya'la said: *"It is not permissible to build, sell, or rent them, just as it is not permissible to make, sell, or rent musical instruments, gold and silver vessels, or fire temples and churches."*⁴

Ibn Taymiyyah said: *"This should be applied to regions where baths are not necessary, such as the Hijaz, Iraq, and Egypt. As for cold regions like Syria, the Jazira, Armenia, and similar areas, people cannot bathe in winter except in baths."*⁵

The common factor between building baths and organising these gatherings is the facilitation of unlawful looking and the presence of those who are careless about modesty.

Anyone who observes the behaviour of many women today—being careless about displaying adornment, failing to cover what must be

¹ Imam Ahmad said: *"Enter if you are covered and others are covered from you. I do not think you will be safe unless you enter at night or at a time when no one is in the bath."* Al-Qadi Abu Ya'la said: *"If one cannot avoid that—meaning looking—it is not permissible for them to enter."* Ibn Taymiyyah said: *"This means if one expects to see private parts."* (Sharh al-Umdah, 1/447).

² Masail al-Imam Ahmad riwayat Abi Dawud, p. 265.

³ Al-Mughni, 1/169.

⁴ Sharh al-Umdah, 1/450.

⁵ Ibid

covered, and wearing tight abayas—as well as the carelessness of many men in looking, would not hesitate to prohibit gathering men and women in one place.

Preventing such people from entering or stopping exposure and looking cannot be guaranteed. Imam Ahmad was asked: "*What if the renter stipulates that no one enters without a waistcloth?*"¹ He replied: "*Can this be enforced?*"² Allowing what cannot prevent all sins is accepting the occurrence of what cannot be avoided.

¹ Meaning, if the owner of the bath stipulates to the renter that no one may enter without being covered.

² Sharh al-Umdah, 1/450; Al-Mughni, 1/169.

FREE MIXING

ITS LEVELS, LIMITS AND GUIDELINES

Sheikh Dr. Ibrāhīm bin Muhammad Al-Ubaykī

THE STUDY OF ISLAM IS AN OBLIGATION UPON EVERY MUSLIM. IT IS ONLY THROUGH SOUND KNOWLEDGE THAT A BELIEVER ACQUIRES CLARITY, CONVICTION, AND STEADFASTNESS—ENABLING HIM TO WORSHIP ALLAH WITH UNDERSTANDING, SINCERITY, AND CONFIDENCE, UPON THE GUIDANCE BROUGHT BY THE FINAL MESSENGER, MUHAMMAD ﷺ. TRUE KNOWLEDGE ILLUMINATES THE HEART, PROTECTS THE FAITH, AND PROVIDES THE BELIEVER WITH THE MEANS TO NAVIGATE THE TRIALS OF LIFE WITH WISDOM.

THIS BOOK ADDRESSES A VITAL ISSUE THAT HAS FAR-REACHING IMPLICATIONS FOR MUSLIM SOCIETIES: THE ISLAMIC RULING ON FREE MIXING BETWEEN MEN AND WOMEN. THE ORIGINAL ARABIC WORK, AUTHORED WITH CLARITY, SCHOLARLY PRECISION, AND FIDELITY TO THE SOURCES, EXAMINES THE EVIDENCES FROM THE QUR'AN, THE SUNNAH, AND THE STATEMENTS OF THE EARLY GENERATIONS REGARDING THE BOUNDARIES OF LAWFUL INTERACTION BETWEEN THE SEXES. IT HIGHLIGHTS THE WISDOM OF THESE DIVINE INJUNCTIONS AND THEIR ROLE IN SAFEGUARDING FAITH, MORALITY, AND THE WELL-BEING OF THE COMMUNITY.

BY MAKING THIS IMPORTANT DISCUSSION ACCESSIBLE IN ENGLISH, THE TRANSLATION SEEKS TO BENEFIT A WIDER AUDIENCE—PARTICULARLY MUSLIMS STRIVING TO PRESERVE THEIR VALUES IN A WORLD WHERE SOCIAL NORMS INCREASINGLY ENCOURAGE PERMISSIVENESS AND THE EROSION OF MODESTY. IT IS HOPED THAT THIS WORK WILL SERVE AS A REMINDER OF THE TIMELESS GUIDANCE OF ISLAM AND A SOURCE OF STRENGTH FOR THOSE WHO SEEK TO LIVE BY IT WITH CONVICTION.



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